

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[979 NE2d 1178, 955 NYS2d 851]

DOUGLAS ELLIMAN LLC, Doing Business as PRUDENTIAL DOUGLAS ELLIMAN REAL ESTATE, Respondent, v FRANKLIN TRETTER et al., Appellants.

Argued October 9, 2012; decided November 19, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 5, 2011. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Marcy S. Friedman, J.), which had denied plaintiff's and defendants' motions for summary judgment. The modification consisted of granting plaintiff's motion. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of the Supreme Court, properly made?"

Douglas Elliman LLC v Tretter, 84 AD3d 446, affirmed.

HEADNOTE

Brokers — Real Estate Brokers — Commission — No Showing That Broker with Exclusive Listing Acted as Dual Agent

In an action to recover a commission by plaintiff real estate broker which had an exclusive listing for defendants' property, plaintiff was entitled to the agreed-upon commission as a matter of law notwithstanding that plaintiff showed the eventual purchasers other properties prior to the sale. The statements and conduct cited by the defendant sellers did not raise a material issue of fact as to whether plaintiff was acting as a dual agent in the transaction with a duty to disclose plaintiff's divided loyalties and obtain the parties' consent. The parties did not "specifically agree" that plaintiff was required to decline a prospective purchaser's request to see another property, and thus, plaintiff had no duty to refrain from offering other properties to the eventual buyers of defendants' cooperative apartment. A contrary holding would

unreasonably restrain brokers from cultivating potential clients at open houses for their principals and would be inconsistent with the nature and fundamental requirements of the real estate marketplace in New York.

APPEARANCES OF COUNSEL

Gallet Dreyer & Berkey, LLP, New York City (*Randy J. Heller* of counsel), for appellants.

Cole Hansen Chester LLP, New York City (*Michael S. Cole* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question not answered upon the ground it is unnecessary.

In July 2008, Franklin and Sheila Tretter (collectively, the sellers) retained Prudential Douglas Elliman Real Estate to sell their cooperative apartment at 785 Park Avenue in Manhattan. Barbara Lockwood served as the broker for the exclusive listing. The brokerage agreement contained an asking price of \$1.65 million and provided that the sellers would pay Douglas Elliman a 6% commission from the proceeds of the sale. Lockwood arranged for a photo shoot and preparation of a floor plan, and began to show the apartment at open houses and by appointment. In November 2008, a bidder made an oral offer of \$1.5 million, which was acceptable to the sellers.

Meanwhile, Lockwood met Taurie Zeitzer at an open house in the sellers' apartment. Throughout November, while the initial bidder was providing information necessary to secure the cooperative board's approval, Lockwood communicated with Zeitzer and her husband (collectively, the buyers) via email, offering to show them additional apartments, including another apartment at 785 Park Avenue. Lockwood showed the buyers five other properties; one was listed with Douglas Elliman, the other four were listed with other agencies. Lockwood also discussed 12 additional apartments with Zeitzer.

The sellers' deal with the initial bidder fell through later in November. Within a week afterwards, Lockwood again showed the sellers' apartment to the buyers. Thereafter, the buyers made an offer of \$1.4 million for the apartment—i.e., \$100,000 less than the initial bidder's offer. In December 2008, Lockwood sent the sellers the deal sheet, which listed a \$70,000 brokerage

commission (5% of \$1.4 million), and Douglas Elliman thereafter confirmed in writing its agreement to reduce its commission from 6% to 5% if the sellers sold their apartment to the buyers. The agreement further stated that the 5% commission would be due and payable at closing.

In December 2008, the sellers entered into a contract with the buyers to sell their apartment to them for \$1.4 million. The contract listed “Prudential Douglas Elliman (Barbara Lockwood)” as the broker, provided a purchase price of \$1.4 million, and stated that the sellers were solely responsible for the broker’s commission. In February 2009, Douglas Elliman sent a letter to the buyers’ attorney, asking that the commission either be paid to it or held in escrow pending the resolution of any dispute with the sellers. The closing took place in March 2009; Lockwood did not attend. The buyers paid \$1.4 million, \$70,000 of which was held in escrow.

In April 2009, Douglas Elliman commenced this action against the sellers to recover its \$70,000 commission. In their answer, the sellers asserted that Douglas Elliman was not entitled to a commission because Lockwood breached her fiduciary duties to them by acting as a dual agent to the buyers. The sellers moved for summary judgment to dismiss the complaint; they submitted affidavits by the sellers and email exchanges between Lockwood and Zeitzer regarding listings for other apartments. Douglas Elliman cross-moved for summary judgment on its claim for a commission and, in support of its motion, relied on the parties’ brokerage agreement; the executed contract for sale of the sellers’ apartment; Douglas Elliman’s agreement with the sellers to reduce its commission after the initial offer collapsed; and deposition testimony and an affidavit detailing relevant facts.

Supreme Court denied both motions, concluding that there were triable issues of fact as to whether Lockwood was “acting in a dual agency relationship as agent for both . . . sellers and . . . Zeitzer.” Both parties appealed. The Appellate Division, with one Justice dissenting, modified the order by granting Douglas Elliman’s cross motion for summary judgment to recover its commission, and otherwise affirmed (84 AD3d 446 [1st Dept 2011]). The Court concluded that the evidence demonstrated “as a matter of law that Ms. Lockwood did not act as a dual agent” with the concomitant “duty to disclose her divided loyalties and obtain the parties’ consent thereto” (*id.* at 448-449) because

“Ms. Lockwood had a signed exclusive agency agreement with the [sellers]. She had no similar agreement with [the buyers], and she received no remuneration from them. Ms. Lockwood’s actions indicate that she wanted this transaction to close, and Douglas Elliman’s submissions support the conclusion that she ultimately obtained permission to reduce her own commission to bring the parties to an agreement. The negotiated contract was signed by both [parties], it listed Ms. Lockwood as the agent, and it explicitly stated that the sellers were exclusively responsible for her fee” (*id.* at 449).

The Court observed that, “absent an agreement with the [sellers] to the contrary, Ms. Lockwood owed them no duty to refrain from” showing the buyers “a number of other apartments” without the sellers’ permission or knowledge (*id.*, citing *Sonnenschein v Douglas Elliman-Gibbons & Ives*, 96 NY2d 369, 375-376 [2001]). Further,

“[i]t is uncontested that Lockwood found buyers who were ready, willing and able to purchase their apartment, who were capable of doing so (with the assistance of a guarantor), and whose offer matured into a signed contract, cooperative board approval, and a closing transferring ownership of the apartment to them. Thus, Douglas Elliman is entitled to the reduced 5% commission negotiated by the parties to this transaction in a letter agreement as a matter of law” (*id.* at 450).

The dissenting Justice agreed with Supreme Court that triable issues of fact existed as to whether Lockwood was a dual agent (*id.* at 451 [Manzanet-Daniels, J., dissenting]). The sellers moved for reargument or for leave to appeal. The same panel denied the motion for reargument, granted the motion for leave to appeal and certified the following question: “Was the order of this Court, which modified the order of the Supreme Court, properly made?”* We now affirm.

The parties here did not—although free to do so—“specifically agree” that Douglas Elliman was required to “decline a prospective purchaser’s request to see another property” (*Sonnenschein*, 96 NY2d at 376). As a result, Lockwood had “no duty to refrain” from offering other properties to the buyers

* Douglas Elliman’s cross motion for summary judgment encompassed both liability and damages. Thus, the Appellate Division’s order granting that motion is final, and certification was unnecessary.

(*id.* at 375). A contrary holding would “unreasonably restrain” brokers from cultivating potential clients at open houses for their principals (*id.* at 376). The sellers would limit *Sonnenschein* to its facts—i.e., they argue that because the parties here entered into an “exclusive seller’s agreement,” which was not the case in *Sonnenschein*, Lockwood was not permitted to show the buyers any other apartments, or, alternatively, was only allowed to show them other properties listed for sale by Douglas Elliman, not other brokers. But such a narrow interpretation runs counter to the thrust of the decision, which sought to formulate a rule “consistent with the nature and fundamental requirements of the real estate marketplace in New York” (*id.*; see also *Rivkin v Century 21 Teran Realty LLC*, 10 NY3d 344, 356-357 [2008] [recognizing the importance of “practical considerations” when adopting rules governing relationships between buyers and their real estate agents]).

In sum, Douglas Elliman has established its entitlement to the commission as a matter of law. The statements and conduct cited by the sellers do not raise a material issue of fact as to whether Lockwood was acting as a dual agent in the transaction. Finally, we have reviewed the sellers’ claim that Douglas Elliman and Lockwood breached an implied covenant of good faith and fair dealing, which we consider to be without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur in memorandum.

Order affirmed, etc.

[979 NE2d 1192, 955 NYS2d 865]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TOBIAS BOYLAND, Appellant.

Decided November 19, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered December 30, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Erie County (M. William Boller, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree (three counts) and criminal possession of a weapon in the fourth degree.

The Appellate Division concluded that Supreme Court properly refused to suppress weapons seized by the police from a walk-in closet on the second floor of defendant's residence. The evidence at the suppression hearing established that the original search warrant identified the place to be searched as a "lower floor apartment" but that, during the execution of the initial search warrant, the officers discovered that the residence had been converted from a two-family to a single-family dwelling. The Appellate Division found that when the police officers heard voices upstairs, they properly conducted a protective sweep of the second floor based upon articulable facts that warranted a reasonably prudent officer's belief that the second floor might harbor an individual posing a danger to those on the scene. The Court further held that the protective sweep properly encompassed the walk-in closet, which was described at the suppression hearing as being large enough to conceal five or six individuals, and the rifle found in plain view therein was properly seized by the police. The Appellate Division found that the remaining weapons were properly seized subsequent to the issuance of an amended warrant identifying the place to be searched as the entire residence.

People v Boyland, 79 AD3d 1658, affirmed.

HEADNOTE

Crimes — Search Warrant — Protective Sweep

Whether a protective sweep by the police is justified under particular circumstances involves a mixed question of law and fact. As there existed record support for the Appellate Division's resolution of the question, the issue was beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

David J. Seeger, Buffalo, and *Leigh E. Anderson*, for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Donna A. Milling* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. Whether a protective sweep is justified under particular circumstances involves a mixed question of law and fact. Where, as here, there exists record support for the Appellate Division's

resolution of this question, the issue is beyond this Court's further review. Defendant's remaining claims are without merit.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

[980 NE2d 945, 957 NYS2d 280]

JADE REALTY LLC, Respondent, v CITIGROUP COMMERCIAL MORTGAGE TRUST 2005-EMG et al., Appellants, et al., Defendant.

Argued October 9, 2012; decided November 19, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, New York County (Michael D. Stallman, J.), entered June 20, 2011. The Supreme Court awarded damages to plaintiff on its first cause of action for breach of contract, dismissed plaintiff's second cause of action, and dismissed the counterclaim by defendant LaSalle Bank National Association. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 26, 2011. The Appellate Division had (1) reversed, on the law, so much of an order of that Supreme Court (op 2009 NY Slip Op 32926[U] [2009]), as granted defendants' motion for summary judgment dismissing the complaint and denied plaintiff's cross motion for summary judgment on its first cause of action for breach of contract, (2) denied the motion, (3) reinstated the complaint, and (4) granted the cross motion.

Jade Realty LLC v Citigroup Commercial Mtge. Trust 2005-EMG, 83 AD3d 567, affirmed.

HEADNOTE

Mortgages — Prepayment — Penalty — Enforcement of Literal Language of Promissory Note

The borrower on a promissory note with a 10-year term, who voluntarily prepaid during the fourth year of the loan, did not owe a "yield maintenance amount" under note terms that provided if the note was paid within the first six loan years, the yield maintenance amount was to be computed "by taking the positive difference (if any) between the Note Rate" and the relevant current yield "on the actual date of default under the loan" with such calculation being "made as of the actual date of default under the loan." None of the agreement's 15 "Events of Default" included voluntary prepayment. The holders of the note did not claim that they were entitled to reformation, and absent such a claim, courts may as a matter of interpretation carry out the

intention of a contract by transposing, rejecting or supplying words to make the meaning of the contract more clear, but only in those limited instances where some absurdity has been identified or the contract would otherwise be unenforceable either in whole or in part. However, application of the note's literal language relative to voluntary prepayment and the yield maintenance amount did not result in either absurdity or an unenforceable agreement. While an interpretation of the note resulting in a potentially lower prepayment premium in the first six years might be "novel or unconventional," that, by itself, did not render the result absurd. The lender received the agreed upon interest rate for the time it held the loan and it did not lose its principal.

APPEARANCES OF COUNSEL

Zeichner Ellman & Krause LLP, New York City (*Jantra Van Roy* and *Michael E. Sims* of counsel), for appellants.

Greenberg Freeman LLP, New York City (*Michael A. Freeman* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment appealed from and the order of the Appellate Division brought up for review should be affirmed, with costs.

On September 17, 2003, Jade Realty LLC, the owner and operator of a shopping center in Hartsdale, New York, closed on a mortgage loan with Emigrant Securities Corp. in the principal amount of \$4 million as part of a refinancing of an earlier loan. The loan had a 10-year term with a maturity date of October 1, 2013 and had an interest rate of 5.48% per year (Note Rate).

Although the promissory note permitted Jade to voluntarily prepay the note before its maturity date "[p]rovided an Event of Default and an acceleration of the Maturity Date ha[d] not occurred and [was] continuing," it also called for Jade to pay a "yield maintenance amount"* that varied as the note matured. As relevant here, if the note was paid within the first six loan years, the "yield maintenance amount" was to be computed "by taking the positive difference (*if any*) between the Note Rate . . . minus the current yield, *on the actual date of default under the loan* . . . of U.S. Treasury Securities having the closest longer maturity to the remaining total term of this Note," with such calculation being "made as of the *actual date of default* under the loan" (emphasis supplied). The note does not define the word "default," although the mortgage agreement contains 15 "Events of Default," none of which includes voluntary prepayment.

* The "yield maintenance amount" is the prepayment penalty a borrower pays a lender as a condition of prepaying a loan prior to its maturity date.

In 2005, Jade's loan was sold to Citigroup Commercial Mortgage Trust 2005-EMG, with LaSalle Bank National Association serving as trustee (collectively, Citigroup defendants). During the fourth year of the loan, Jade notified the loan servicer, Capmark Finance, Inc., that Jade intended to refinance the loan with another bank and that, because it had not defaulted on its loan, Jade did not owe a yield maintenance amount. Capmark disagreed and demanded Jade pay yield maintenance in the amount of \$146,104.56.

Jade paid the amount under protest with a reservation of rights and, as relevant here, commenced this action against Citigroup defendants for breach of contract when Capmark refused to issue Jade a refund. After discovery, the parties brought their respective motions for summary judgment. Supreme Court granted the Citigroup defendants' motion to dismiss the complaint, holding that it was "absurd and illogical" for Jade to take the position that, because it had not "defaulted," it owed no yield maintenance amount (2009 NY Slip Op 32926[U], *10 [Sup Ct, NY County 2009]). Relying on this Court's holding in *Matter of Wallace v 600 Partners Co.* (86 NY2d 543 [1995]), Supreme Court held that it was within the court's purview to "transpose, reject or supply words to make the meaning of the . . . Note more clear so as to carry out the intention of the contract," and it did so by adding the words "prepayment or" before the word "default" in the yield maintenance amount formula (2009 NY Slip Op 32926[U], *10, 12 [2009]).

The Appellate Division reversed and granted Jade's cross motion for summary judgment on its breach of contract claim, holding that Supreme Court erred in rejecting Jade's argument that no yield maintenance amount was due because "[w]hile [Jade's] interpretation of the note could possibly lead to the prepayment premium being lower in the early years rather than the later years of the prepayment period, that is the way Emigrant's counsel drafted the note" (83 AD3d 567, 568 [1st Dept 2011]). It acknowledged that Jade's interpretation of the note was "technical and . . . apparently not what [Emigrant] intended," but concluded that "it is not a court's function to imply a term to save a defendant from the consequences of an agreement that it drafted" (*id.* [citation omitted]).

Citigroup defendants are not claiming that they are entitled to reformation. Absent such a claim, "courts may as a matter of

interpretation carry out the intention of a contract by transposing, rejecting, or supplying words to make the meaning of the contract more clear,” but this approach is suitable “only in those limited instances where some absurdity has been identified or the contract would otherwise be unenforceable either in whole or in part” (*Matter of Wallace*, 86 NY2d at 547-548 [citations omitted]). We reject the Citigroup defendants’ argument that such an approach is warranted here.

Application of the note’s literal language relative to voluntary prepayment and the yield maintenance amount does not result in either absurdity or an unenforceable agreement. To be sure, Jade’s interpretation of the note results in a potentially lower prepayment premium in the first six years, instead of the potentially lower prepayment premiums in the seventh through tenth years. While these terms might be “novel or unconventional,” that, by itself, does not render the result here absurd (*Matter of Wallace*, 86 NY2d at 548). Citigroup received 5.48% interest for the time it held the loan and it did not lose its principal, so it could hardly be said that there is economic absurdity, as the Citigroup defendants charge (*cf. Reape v New York News*, 122 AD2d 29 [2d Dept 1986], *lv denied* 68 NY2d 610 [1986]). The note, as written, is enforceable according to its terms. A reasonable interpretation of the note is that, there having been no default on Jade’s part and acceleration of the maturity date by Citigroup, there could be no “positive difference (if any)” between the Note Rate and the relevant “current yield,” such that Jade owed no yield maintenance under the note.

SMITH, J. (dissenting). The result in this case is indisputably contrary to what the parties intended. They did not go to all the trouble of providing for voluntary prepayment conditioned on payment of a “yield maintenance amount” on the understanding that no yield maintenance amount could be calculated. Indeed, Jade does not say that the omission of language permitting the amount to be calculated in a non-default situation was anything but a drafting error. Jade’s managing member, a sophisticated real estate lawyer, pointed out the anomaly to his brother and coinvestor in an email saying: “There is a drafting problem with the yield maintenance provision, which applies only where there is a default.” In proposing to his brother the argument that Jade has now successfully made to this Court, the lawyer described it as “[c]ute but textually accurate.”

The majority accepts this argument—that no yield maintenance amount is payable—because it finds that to accept it does not lead to “absurdity” (majority mem at 884). The majority does not say what it means by “absurdity.” It is, beyond question, absurd to think that this result is consistent with what the parties intended: If that is not what absurdity means, what does it mean? The majority suggests that it will insist on “economic absurdity”—which, the majority says, is not present here because Citigroup receives interest on the loan and does not lose its principal (majority mem at 884). But why that justifies frustrating the parties’ intention is unexplained.

Perhaps the majority’s literalism could be defended if it were following a strict, consistent rule that all agreements will be enforced exactly as they are written. But the majority endorses no such rule, and it has never been the law of New York. On the contrary, cases involving clear drafting errors hold that “[t]o carry out the intention of a contract, words may be transposed, rejected, or supplied, to make its meaning more clear” (*Castellano v State of New York*, 43 NY2d 909, 911 [1978]; see also *Nash v Kornblum*, 12 NY2d 42, 47 [1962]; *Bintz v City of Hornell*, 268 App Div 742, 748 [4th Dept 1945]; *Castelli v Burns*, 156 App Div 200, 203 [1st Dept 1913]; *Potthoff v Safety Armored Conduit Co.*, 143 App Div 161, 163 [2d Dept 1911]). In each of those cases, the Court departed from the literal words of a contract to avoid an absurd result. The majority does not attempt to explain why the result here is less absurd.

I acknowledge that I could (and probably would, if I had been on the Court) have written a similar dissent in two of our cases, *Matter of Wallace v 600 Partners Co.* (86 NY2d 543 [1995]) and *Reiss v Financial Performance Corp.* (97 NY2d 195 [2001]). In each of them, we found that the result indicated by the literal language of an agreement was not absurd, though it seems highly unlikely that the result was the one intended by the parties. This case, however, goes further than either *Wallace* or *Reiss*. In those cases, the agreements, read literally, were at least internally consistent, so that it was theoretically possible that the parties meant what they said: in *Wallace*, that the rent for a renewal term could not be calculated until decades after the term began (see 86 NY2d at 546-548), and in *Reiss*, that warrants to purchase stock were exercisable without adjustment to reflect a reverse stock split (see 97 NY2d at 198). Here, the agreement is, on its face, at war with itself: The parties expressly provided that a yield maintenance amount would be payable in the event of a voluntary prepayment, then described

the calculation of the yield maintenance amount in a way that is not applicable to that contingency.

Nothing except injustice is accomplished by reading the contract as the majority reads it. I therefore dissent.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and PIGOTT concur in memorandum; Judge SMITH dissents in an opinion.

Judgment appealed from and order of the Appellate Division brought up for review affirmed, etc.

In the Matter of PERRY BELLAMY, Appellant, v NEW YORK CITY
POLICE DEPARTMENT, Respondent.

Submitted October 29, 2012; decided November 19, 2012

Reported below, 87 AD3d 874.

Motion for poor person relief granted.

ISLAND PARK, LLC, Appellant, v STATE OF NEW YORK, Respon-
dent.

Submitted October 29, 2012; decided November 19, 2012

Reported below, 93 AD3d 1064.

Motion by New York Farm Bureau for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AKIVA
DANIEL ABRAHAM, Appellant.

Submitted November 5, 2012; decided November 19, 2012

Reported below, 94 AD3d 1332.

Motion for assignment of counsel granted and Jonathan S. Fishbein, Esq., 35 Fairview Ave., Delmar, New York 12054 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL
BOYER, Appellant.

Submitted October 29, 2012; decided November 19, 2012

Reported below, 91 AD3d 1183.

Motion for assignment of counsel granted and Mark C. Davison, Esq., care of Davison Law Office, PLLC, 61 North Main Street, Suite C, Canandaigua, New York 14424 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE
COLLIER, Appellant.

Submitted October 22, 2012; decided November 19, 2012

Reported below, 91 AD3d 987.

Motion for assignment of counsel granted and Claude Castro, Esq., 355 Lexington Ave., Suite 1400, New York, NY 10017 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS
GUAMAN, Appellant.

Submitted October 29, 2012; decided November 19, 2012

Reported below, 36 Misc 3d 128(A).

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FELIX
HERNANDEZ, Appellant.

Submitted November 13, 2012; decided November 19, 2012

Reported below, 98 AD3d 449.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN JOSE PEQUE, Also Known as JUAN JOSE PEQUE SICAJAN, Appellant.

Submitted November 5, 2012; decided November 19, 2012

Reported below, 88 AD3d 1024.

Motion for assignment of counsel granted and Melissa A. Latino, Esq., 45 Hudson Ave., PO Box 1776, Albany, New York 12207 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE J. REED, Appellant.

Submitted November 13, 2012; decided November 19, 2012

Reported below, 97 AD3d 1142.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE RODRIGUEZ, Appellant.

Submitted October 29, 2012; decided November 19, 2012

Reported below, 96 AD3d 1079.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS SANTIAGO, JR., Appellant.

Submitted November 13, 2012; decided November 19, 2012

Reported below, 96 AD3d 1495.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENISE
M. TALLMAN, Appellant.

Submitted October 29, 2012; decided November 19, 2012

Reported below, 92 AD3d 1082.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CAVELL
CRAIG TYRELL, Appellant.

Submitted November 5, 2012; decided November 19, 2012

Reported below, 37 Misc 3d 16; 36 Misc 3d 133(A).

Motions for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARL
D. WELLS, Appellant.

Submitted November 5, 2012; decided November 19, 2012

Reported below, 95 AD3d 696.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

TIMOTHY A. ROULAN, Appellant, v COUNTY OF ONONDAGA et al.,
Respondents.

Submitted November 5, 2012; decided November 19, 2012

Reported below, 90 AD3d 1617.

Motion by New York State Defenders Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

[980 NE2d 523, 956 NYS2d 474]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VINCENT TORRES, Respondent. (Appeal No. 1.)

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VINCENT TORRES, Respondent. (Appeal No. 2.)

Decided November 20, 2012

SUMMARY

APPEAL, in the first above-entitled action, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 6, 2012. The Appellate Division (1) reversed, on the law, a judgment of the Onondaga County Court (William D. Walsh, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, attempted sodomy in the first degree, sodomy in the first degree (two counts) and sexual abuse in the first degree, (2) granted a new trial on counts two through five and seven of the indictment, and (3) dismissed an appeal from the judgment insofar as it imposed sentence on the conviction of burglary in the second degree.

APPEAL, in the second above-entitled action, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 6, 2012. The Appellate Division vacated a sentence of the Onondaga County Court (William D. Walsh, J.), entered upon defendant's conviction of burglary in the second degree.

In a prosecution for burglary and various sex crimes, the Appellate Division concluded that reversal was required based on County Court's error in closing the courtroom, and that defendant had adequately preserved his objection notwithstanding that it was made off the record, since the parties and the court agreed during argument on defendant's posttrial motion to set aside the verdict that defendant had objected to the court's procedure. County Court closed the courtroom to defendant's wife at the start of jury selection on the ground that there "wasn't any room" in the courtroom for her. The Appellate Division concluded that a violation of the right to an open trial is not subject to harmless error analysis and a per se rule of reversal irrespective of prejudice is the only realistic means to implement that important constitutional guarantee. The Appellate Division also found that the closure of the courtroom was not so

trivial that it did not violate defendant's right to a public trial; during the time defendant's wife was excluded from the courtroom, jury selection began and five prospective jurors were eventually seated and sworn.

People v Torres, 97 AD3d 1125, affirmed.

People v Torres, 97 AD3d 1125, affirmed.

HEADNOTE

Crimes — Right to Public Trial — Closure of Courtroom — Exclusion of Defendant's Wife

In a criminal prosecution, defendant adequately preserved the argument that the exclusion of his wife from the courtroom violated his right to a public trial. The closure of the courtroom during jury selection was not trivial. Accordingly, an order of the Appellate Division reversing defendant's conviction and granting a new trial was affirmed.

APPEARANCES OF COUNSEL

William J. Fitzpatrick, District Attorney, Syracuse (*Victoria M. White* of counsel), for appellant in the first and second above-entitled actions.

J. Scott Porter, Seneca Falls, for respondent in the first and second above-entitled actions.

OPINION OF THE COURT

MEMORANDUM.

The orders of the Appellate Division should be affirmed.

Defendant adequately preserved the argument that the exclusion of his wife from the courtroom violated his right to a public trial (*see People v Alvarez*, 20 NY3d 75, 81 [2012]; *see also People v Caban*, 14 NY3d 369, 373 [2010]). The closure of the courtroom during jury selection was not trivial (*see People v Martin*, 16 NY3d 607, 613 [2011]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), orders affirmed in a memorandum.

[980 NE2d 523, 956 NYS2d 475]

TINA M. HOLSTEIN, Respondent, v COMMUNITY GENERAL HOSPITAL OF GREATER SYRACUSE, Appellant.

Argued October 17, 2012; decided November 20, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered July 1, 2011. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Onondaga County (James P. Murphy, J.), entered upon a jury verdict, which had awarded plaintiff damages in the sum of \$1,690,000 plus interest.

Holstein v Community Gen. Hosp. of Greater Syracuse, 86 AD3d 911, affirmed.

HEADNOTE

Trial — Verdict — Setting Verdict Aside — Failure to Poll Jury — Waiver

In a medical malpractice action in which the court failed to honor defendant's request to poll the jury, an order of the Appellate Division, which affirmed the judgment awarding plaintiff damages, was affirmed. A party has an absolute right to poll the jury and a court's denial of that right mandates reversal and a new trial. However, it was not unreasonable for the trial court to have concluded that defendant's request had been withdrawn or waived in light of the nature of counsel's response to the judge's inquiry, where the judge remarked: "Jury be polled? They have signed. They each have individually signed," and defense counsel stated: "Okay. All right. Thank you," whereupon the jury was dismissed.

APPEARANCES OF COUNSEL

Meiselman, Denlea, Packman, Carton & Eberz, P.C., White Plains (*Myra I. Packman* of counsel), for appellant.

D.J. & J.A. Cirando, Esqs., Syracuse (*John A. Cirando, Bradley E. Keem* and *Elizabeth deV. Moeller* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff Tina Holstein commenced this medical malpractice action seeking damages for injuries she sustained based on the

alleged negligence of an employee of defendant Community General Hospital of Greater Syracuse (the Hospital). Following trial, the jury returned a verdict on liability, by a vote of five to one, in favor of Holstein and awarded approximately \$1.7 million in damages. After the verdict was announced, the Hospital requested that the jury be polled. In response, the court remarked: “Jury be polled? They have signed. They each have individually signed.” The Hospital’s counsel stated: “Okay. All right. Thank you” and the jury was dismissed. Two weeks later, the Hospital moved to set aside the verdict and requested a new trial. Supreme Court denied the motion and the Appellate Division affirmed Supreme Court’s judgment awarding plaintiff damages (86 AD3d 911 [4th Dept 2011]).

In *Duffy v Vogel*, we held that a party has an absolute right to poll the jury and a court’s denial of that right mandates reversal and a new trial (12 NY3d 169, 176-177 [2009]). In this case, however, it was not unreasonable for the trial court to conclude that the request had been withdrawn or waived in light of the nature of counsel’s response to the judge’s inquiry.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, with costs, in a memorandum.

[981 NE2d 248, 957 NYS2d 652]

MICHAEL GRUCCI, Appellant, v CHRISTINE GRUCCI, Respondent.

Argued October 16, 2012; decided November 20, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 15, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Suffolk County (Patrick A. Sweeney, J.), entered upon a jury verdict, which was in favor of defendant and against plaintiff dismissing the complaint.

Grucci v Grucci, 81 AD3d 776, affirmed.

HEADNOTES

Evidence — Tape Recordings — Authentication

1. In an action to recover damages for malicious prosecution, the trial judge did not err in refusing to permit a witness for plaintiff to introduce an audio-tape of a telephone conversation the witness had with the defendant. The

predicate for admission of tape recordings in evidence is clear and convincing proof that the tapes are genuine and that they have not been altered. There was no attempt to offer proof about who recorded the conversation, how it was recorded (e.g., the equipment used) or the chain of custody during the nearly nine years that elapsed between the date of the alleged conversation and the trial. Accordingly, given the facts and circumstances, the judge did not abuse his discretion by requiring more than the witness's representation that the tape was "fair and accurate" to establish a sufficient predicate before playing the tape for the jury.

Evidence — Hearsay Evidence — Defendant's Purported Remarks on Audiotape

2. In an action to recover damages for malicious prosecution arising out of plaintiff's arrest on charges of criminal contempt following his alleged violation of an order of protection directing plaintiff to stay away from defendant, it was not reversible error for the trial judge to have excluded from evidence, as inadmissible hearsay, statements made by defendant to a witness during a telephone conversation. Although plaintiff argued that defendant's alleged statements were being offered to prove her state of mind (i.e., malice) rather than for their truth, plaintiff wanted the witness to testify that defendant had told him that she was not afraid of plaintiff and that she had expressed an alternative motive for going to the police in order to show that defendant had lied to the authorities. However, for that tactic to work, plaintiff would have had to ask the jury to believe that defendant's alleged statements to the witness were, in fact, true. While defendant's statements were admissible as admissions of a party opponent, plaintiff never made that argument to the judge. Additionally, the omission of that testimony was not so crucial with respect to the issue of whether defendant initiated the prosecution as to require a new trial.

Torts — Malicious Prosecution — Refusal to Allow Transcript of Grand Jury Testimony into Evidence

3. In an action to recover damages for malicious prosecution, the trial court did not commit reversible error in refusing to allow the transcript of the grand jury testimony into evidence. Since the grand jury returned an indictment, there was a presumption of probable cause, and plaintiff could only succeed on his claim if he could prove that the indictment was procured by fraud, perjury, suppression of evidence, or other bad-faith conduct. While plaintiff argued that review of the grand jury and criminal trial transcripts by the jury would have strengthened his argument that defendant had lied to the grand jury, the court permitted plaintiff's attorney to freely use defendant's prior testimony to impeach her on cross-examination and allowed him to quote from it during summation. Moreover, the judge acted within his discretion when he excluded testimony allegedly proving that defendant fabricated an earlier incident that led to an order of protection directing plaintiff to stay away from her; notably, plaintiff did not dispute those facts when the order was issued.

Torts — Malicious Prosecution — Defendant's Initiation of Criminal Proceeding

4. In an action to recover damages for malicious prosecution, there was sufficient evidence to support the jury's verdict that defendant, plaintiff's ex-wife, did not initiate the underlying criminal contempt proceeding. The assistant district attorney responsible for prosecuting the contempt charges testified that a standing policy removed any discretion as to whether to make

an arrest when the police determined, after investigation, that an incident of domestic violence had occurred; that after consultation with his supervisor, he had made the decision to present the case to the grand jury and, after indictment, proceed to trial; that it was never up to a complainant or victim whether or not to go forward because the ultimate decision on whether to prosecute a case fell on the District Attorney's office; and that he remembered that defendant was "just a nice believable lady who presented well."

APPEARANCES OF COUNSEL

Arthur V. Graseck, Jr., Oakdale, for appellant.

Sinnreich, Kosakoff & Messina LLP, Central Islip (*Timothy Hill* and *Vincent J. Messina, Jr.*, of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff Michael Grucci (Michael) and defendant Christine Grucci (Christine) were married in 1988 and had two children. In 1998, Christine sued Michael for divorce. A few months later, Michael was charged with harassing Christine, and the District Court issued an order of protection directing him to stay away from her. In January 2000, Michael was accused of violating the order. The matter was presented to a grand jury, which returned an indictment charging Michael with two counts of first-degree criminal contempt for placing Christine in fear of death or injury by telephone, and harassing her by repeated telephone calls with no purpose of legitimate communication (Penal Law § 215.51 [b] [iii], [iv], respectively). After a bench trial in August 2001, County Court acquitted Michael. The court concluded that Christine's testimony was not credible because of "discrepancies" in the way she described Michael's alleged threat to the police, the grand jury and at trial. In March 2002, Michael brought this civil action against Christine to recover damages for malicious prosecution.

At trial in December 2008, Michael sought, through the testimony of his brother, Anthony Grucci (Anthony), to play for the jury an audiotape of a telephone conversation in which Christine purportedly made clear to Anthony, at some point after she went to the police, that she was not afraid of Michael. Christine's attorney successfully objected to admission of the audiotape, and to Anthony's testimony about what Christine said during the telephone conversation. After the close of evidence, the judge charged the jury as to the elements required to

establish malicious prosecution, which are that the defendant commenced or continued a criminal proceeding against the plaintiff; that the prosecution terminated in plaintiff's favor; the absence of probable cause; and actual malice (*Smith-Hunter v Harvey*, 95 NY2d 191, 195 [2000]). The court instructed the jurors that "[t]he first question for you to decide is whether [Christine] initiated the criminal prosecution" and "[i]f you find [that Christine was] not responsible for [initiating] the prosecution, *you will find for [her] and you will proceed no further*" (emphasis added); and additionally, if Christine "directed the District Attorney to prosecute or gave the District Attorney information that [she] knew to be false, [she was] responsible for prosecution."* The jury concluded that Christine did not initiate the prosecution, and, as instructed, did not consider the other elements of malicious prosecution. Accordingly, the trial judge entered judgment dismissing the complaint.

Upon Michael's appeal, the Appellate Division affirmed (81 AD3d 776 [2d Dept 2011]). The Court determined that "because the jury found that [Christine] did not initiate the underlying criminal proceeding . . . and the excluded evidence was not relevant to that issue, but only to the issue of [her] malice, [Michael] was not prejudiced by any error the trial court may have committed" in making the complained-of rulings (*id.* at 777). We subsequently granted Michael permission to appeal (17 NY3d 704 [2011]), and now affirm.

Michael claims that the trial judge made critical evidentiary errors warranting reversal and a new trial; namely, refusing to permit Anthony to authenticate the audiotape of the telephone conversation; excluding from evidence, as inadmissible hearsay, statements that Christine made to Anthony during the telephone conversation, which were supposedly offered only to show her state of mind; denying Michael's application to have the transcript of the grand jury testimony placed into evidence; and

* We have never elaborated on how a plaintiff in a malicious prosecution case demonstrates that the defendant commenced or continued the underlying criminal proceeding. The dissent points to *Hopkinson v Lehigh Val. R.R. Co.* (249 NY 296 [1928]) for an explanation of the "commencement" element of a malicious prosecution claim (*see* dissenting op at 901-903). In *Hopkinson*, however, we discussed a plaintiff's burden with respect to establishing the absence of probable cause—a separate element of malicious prosecution which is not at issue in this case—and did not mention commencement. Although the dissent argues that the elements of malicious prosecution cannot be easily disentangled (*id.* at 902-903), the trial judge instructed the jury to consider each element separately. For purposes of this appeal, we presume that the judge's uncontested instructions correctly stated the law.

preventing testimony allegedly showing that Christine lied to obtain the order of protection. First, while a party to a taped conversation can identify the speakers, “identity and authenticity are separate facets of the required foundation, both of which must be established” (*People v Ely*, 68 NY2d 520, 528 [1986]). Here, Michael’s attorney sought to play the audiotape during Anthony’s testimony “as part of [his] presentation of [the telephone] conversation” with Christine that Anthony was recounting. Christine’s attorney objected to the audiotape’s admission on the grounds it was unreliable, “pieced together from a number of things” and “unintelligible”; that no chain of custody had been established; and generally that “no foundation [had been] laid for it at [that] point.” In response, Michael’s attorney offered only to have Anthony identify the voices on the tape and state “whether or not the tape recording [was] fair and accurate.” When the judge asked if the tape had been authenticated, Michael’s attorney responded, “Not yet; this witness will authenticate.” The judge then sustained the objection, and Michael’s attorney stated that he had no further questions for Anthony.

[1] “The predicate for admission of tape recordings in evidence is clear and convincing proof that the tapes are genuine and that they have not been altered” (*id.* at 522). Here, there was no attempt to offer proof about who recorded the conversation, how it was recorded (e.g., the equipment used) or the chain of custody during the nearly nine years that elapsed between early 2000, when the conversation allegedly took place, and the trial in late 2008. Given the facts and circumstances of this case, the judge did not abuse his discretion by requiring more than Anthony’s representation that the tape was “fair and accurate” to establish a sufficient “predicate” before playing the tape for the jury.

[2] With respect to Michael’s protests that the trial judge “repeatedly” sustained improper hearsay objections during Anthony’s testimony, he cites only one example: Anthony was asked, essentially, what Christine said on the audiotape. Although Michael argues that Christine’s alleged statements were being offered to prove her state of mind (i.e., malice) rather than for their truth, he wanted Anthony to testify that Christine told him she was not afraid of Michael and that she expressed an alternative motive for going to the police in order to show that Christine lied to the authorities. For this tactic to work, Michael would have to ask the jury to believe that Christine’s

alleged statements to Anthony were, in fact, true. While Christine's statements were admissible as admissions of a party opponent, Michael never made this argument to the judge. Additionally, we cannot say that omission of this testimony was so crucial with respect to the issue of whether Christine initiated the prosecution as to require a new trial.

[3] Next, in cases in which the grand jury has returned an indictment, there is a presumption of probable cause, and the plaintiff can therefore only succeed on a malicious prosecution claim if he can prove that the indictment was procured by fraud, perjury, suppression of evidence, or other bad-faith conduct (*Colon v City of New York*, 60 NY2d 78, 82-83 [1983]). While Michael argues that review of the grand jury and criminal trial transcripts by the jury would have strengthened his argument that Christine lied to the grand jury, the trial judge permitted Michael's attorney to freely use Christine's prior testimony to impeach her on cross-examination, and allowed him to quote from it during summation. The judge similarly acted within his discretion when he excluded testimony allegedly proving that Christine fabricated the incident that led to the order of protection. Notably, Michael did not dispute these facts when the order was issued.

[4] Michael called the assistant district attorney (ADA) responsible for prosecuting the contempt charges, who testified that a standing policy removed any discretion as to whether to make an arrest when the police determined, after investigation, that an incident of domestic violence had occurred; that the ADA, after consultation with his supervisor, made the decision to present a case to the grand jury and, after indictment, proceed to trial; that "it was never up to a complainant or victim . . . whether or not to go forward" because "the ultimate decision on whether to prosecute a case or not falls on the District Attorney[']s office"; and that he remembered that Christine was "just a nice believable lady who presented well, with kids, had marital problems, and of the thousands of cases that [he] prosecuted, that's all [he could] remember [from] 8 years ago." In short, there was sufficient evidence to support the jury's verdict that Christine did not initiate the contempt proceeding.

PIGOTT, J. (dissenting). The trial court's rulings concerning the evidence of what defendant told plaintiff's brother amounted to reversible error. Moreover, the error was far from harmless, because the evidence that plaintiff sought to introduce was directly relevant to the question whether defendant was

responsible for commencing the underlying criminal proceeding against him. The trial court prevented plaintiff from presenting the most powerful evidence in his case. For that reason, I dissent.

I.

A difficult and contentious matrimonial situation devolved into a criminal indictment, resulting in an acquittal that bred a malicious prosecution claim. The evidence shows that plaintiff and defendant, his ex-wife, engaged in an angry telephone conversation, concerning plaintiff's desire to take their children on a vacation during school term. Defendant then accused plaintiff of violating an order of protection issued against him the previous year. She contacted the police, and filed a sworn statement claiming that plaintiff had threatened to "put a hit out on [her]." Plaintiff was then charged with two counts of first-degree criminal contempt (Penal Law § 215.51 [b] [iii], [iv])—for placing defendant in reasonable fear of injury or death by electronic means, and for repeatedly making telephone calls with intent to harass, annoy, threaten or alarm, and no purpose of legitimate communication. Plaintiff was acquitted, following a bench trial, by a court that found defendant's testimony incredible.

Plaintiff then sued his former wife for malicious prosecution, claiming that she lied to the police, causing him to be prosecuted on baseless charges. The matter proceeded to a jury trial.

To show that defendant's statement to the police that he had threatened to "put a hit out on [her]" was false, plaintiff offered an audiotape of a conversation between his brother and the defendant that occurred after plaintiff had been arrested. Plaintiff offered to prove that, during the conversation, defendant said, essentially, that she had contacted the police out of frustration, because there was no other way to force plaintiff to get psychiatric treatment, not because she was in fear of injury or death. He also offered to prove that, during the conversation, defendant told plaintiff's brother a "fabricated" story "about some prostitute being killed in Maine," which defendant invented to harm plaintiff's reputation.

The tape was offered on the following basis. "We would ask this witness [i.e., plaintiff's brother] if he recognized the voices and whether his prior relationship with [defendant] enabled him to identify her voice and whether or not the tape recording is fair and accurate." The trial court sustained defendant's

objections to admission of the tape and to testimony from plaintiff's brother regarding what defendant had said to him.

This, in my view, was clear error. An audiotape may be authenticated precisely the way that plaintiff's counsel suggested—"by the testimony of a party to the conversation that the tape is unaltered and completely and accurately reproduces the conversation" (Prince, Richardson on Evidence § 4-213 at 150 [Farrell 11th ed], citing *People v Ely*, 68 NY2d 520, 527-528 [1986]). As stated in a well-established treatise on the law of evidence,

"if a percipient witness overheard the voices as they were recorded, this witness may provide the required authentication foundation by testifying that the sound recording is an accurate record of what the witness did hear. In such a case, no chain of custody is required, since the purpose of proving the chain is to show that the recording is in the same condition as when first recorded" (2 Broun, McCormick on Evidence § 216 [6th ed] [footnotes omitted]; see also Martin, Capra and Rossi, New York Evidence Handbook § 9.8.1 at 907 [2d ed]).

The majority relies on our decision in *People v Ely* (68 NY2d 520 [1986]). But the holding in that case related to the authenticity of the tapes, not, as here, simple admissibility upon being identified by one of the participants. Indeed, *Ely* specifically states the rule the trial court failed to follow here: that "[t]he necessary foundation may be provided in a number of different ways" and that one such "well-recognized" foundation is "[t]estimony of a participant in the conversation that it is a complete and accurate reproduction of the conversation and has not been altered" (*id.* at 527, citing *People v McGee*, 49 NY2d 48, 60 [1979], *People v Arena*, 48 NY2d 944, 945 [1979], *United States v Sandoval*, 709 F2d 1553, 1555 [DC Cir 1983], and *United States v Buzzard*, 540 F2d 1383 [10th Cir 1976], *cert denied* 429 US 1072 [1977]). The majority does not suggest that this is no longer the law. Moreover, we noted that chain of custody is "not a requirement as to tape recordings" (*Ely*, 68 NY2d at 527-528; see also *McGee*, 49 NY2d at 60).

Our decision in *Ely* was supported by an earlier precedent, *People v McGee* (49 NY2d 48 [1979]), where we held that, with respect to a tape recording, "[a] foundation may be established by a participant to the conversation who testifies that the conversation has been accurately and fairly reproduced. Proof

that the evidence has not been altered may be established in a similar fashion” (*id.* at 60 [citations omitted]).

It was also reversible error to exclude, as improper hearsay, testimony by plaintiff’s brother about what defendant said on the audiotape. Defendant’s statements were admissible as admissions of a party opponent (*see e.g.* 2 Broun, McCormick on Evidence § 254 [6th ed]). Indeed, the majority accepts that defendant’s statements to plaintiff’s brother were admissible, though it dismisses the objection to their exclusion as unpreserved and the error as harmless (*see* majority mem at 898).

II.

I part with the majority most definitively with regard to the question whether the trial court’s errors were harmless. In my view, the evidence that was improperly excluded was directly relevant to the question whether defendant initiated the prosecution, and did so falsely.

To recover for malicious prosecution, plaintiff had to establish, initially, “the commencement or continuation of a criminal proceeding by the defendant against the plaintiff” (*Smith-Hunter v Harvey*, 95 NY2d 191, 195 [2000]). Our case law makes clear that, to establish this first element, plaintiff must show that “the indictment was procured by fraud, perjury, suppression of evidence, or other bad-faith conduct” (majority mem at 898, citing *Colon v City of New York*, 60 NY2d 78, 83 [1983]).

Contrary to the majority opinion (*see* majority mem at 896 n), we *have* explained how a plaintiff in a malicious prosecution case may demonstrate that the defendant “commenced” the underlying criminal proceeding. Plaintiff may do so “by showing that the defendant did not make a full and complete statement of the facts either to the magistrate or to the District Attorney; has misrepresented or falsified the evidence, or else has kept back information or facts which might have affected the result” (*Hopkinson v Lehigh Val. R.R. Co.*, 249 NY 296, 300 [1928]). On the other hand,

“[i]f a person disclose[s] fairly and truthfully to an officer whose duty it is to prosecute crime, all matters within his [or her] knowledge, which as a [person] of ordinary intelligence he [or she] is bound to suppose would have a material bearing upon the question of the innocence or guilt of the persons suspected, and leaves it to the prosecutor to act entirely upon [the prosecutor’s] own judgment and

responsibility as a public officer, and does no more, he [or she] cannot be held answerable in an action for malicious prosecution, even if the officer comes to a wrong conclusion and prosecutes when [the prosecutor] ought not to do so" (*id.* at 300-301; see also PJI 3:50.2).¹

While the quoted sentences from *Hopkinson v Lehigh Val. R.R. Co.* described the probable cause element within the context of that case, they have taken on a wider significance in subsequent case law. "New York law has long equated the civil defendant's failure to make a full and complete statement of the facts to the District Attorney or the court, or holding back information that might have affected the results, with that defendant's *initiation* of a malicious prosecution" (*Ramos v City of New York*, 285 AD2d 284, 299-300 [1st Dept 2001] [emphasis added], citing *Hopkinson v Lehigh Val. R.R. Co.*, 249 NY at 300; see also e.g. *Present v Avon Prods.*, 253 AD2d 183, 189-190 [1st Dept 1999] [citing *Hopkinson* for the proposition that "(o)ne who does no more than disclose to a prosecutor all material information within his knowledge is not deemed to be the initiator of the proceeding"]).

Moreover, the commencement of criminal proceeding element and the probable cause element are not as easily disentangled as the majority seems to assume. Although we have identified commencement as a separate element since at least *Broughton v State of New York* (37 NY2d 451, 457 [1975]), our earliest malicious prosecution cases make it clear that the gravamen of the tort is that "the defendant wickedly and maliciously and without probable cause gave false information . . . [causing prosecution] and that the proceedings terminated in plaintiff's favor" (*Al Raschid v News Syndicate Co.*, 265 NY 1, 3 [1934]; see also *Burt v Smith*, 181 NY 1, 5 [1905] ["(a) malicious prosecution is one that is begun in malice, without probable cause to

1. Supreme Court's jury instruction, which was drawn from PJI 3:50.2, accurately tracked this case law:

"If you find that the defendant fairly and truthfully disclosed to the District Attorney all matters within her knowledge that a reasonably prudent person would believe important on the question of plaintiff's guilt or innocence and that the decision to present the matter to the Grand Jury was made by the District Attorney, the defendant is not responsible for the prosecution. If, however, you find that the defendant directed the District Attorney to prosecute and gave the District Attorney information that the defendant knew to be false, the defendant is responsible for prosecution."

believe it can succeed, and which finally ends in failure’’)). Similarly, the commencement of proceeding element and the probable cause element are considered to be a single element in the Restatement of Torts: “initiates or procures the proceedings without probable cause and primarily for a purpose other than that of bringing an offender to justice” (Restatement [Second] of Torts § 653 [a]).

Here, plaintiff was prepared to prove that defendant was responsible for his prosecution, by lying to the police. The evidence was directly relevant to whether defendant “commenced” the proceeding within the meaning of our case law. Contrary to the majority’s analysis (*see* majority mem at 898), the fact that the ultimate decision whether or not to prosecute a case falls on the District Attorney’s office, not the complainant, proves nothing. Under our case law, if the complainant engages in bad faith conduct that results in a prosecution, she has “commenced” the prosecution.

The majority surely does not mean to hold that one who lies to the police in order to cause a criminal prosecution is immunized from a malicious prosecution suit because a prosecutor, misled by the false information, chooses to pursue the case. Such a holding would essentially abolish the tort of malicious prosecution. When a complainant

“has put in motion the officers of the law, . . . by his [or her] false and malicious statement it does not, either upon principle or authority, lay with him [or her] to say by way of defence that the injury resulting from the wrong committed by him [or her] would not have been consummated but for the innocent mistake of those imposed upon by him [or her]” (*Dennis v Ryan*, 65 NY 385, 389 [1875]).

The trial court both excluded the tape recording and refused to allow plaintiff’s brother to testify about what defendant had told him. In doing so, the court effectively blocked all methods by which plaintiff could establish his case. As such, the error was not harmless.²

Therefore, I would reverse the Appellate Division’s order.

2. Although my view of this case does not depend on it, I believe that the other evidentiary rulings raised by plaintiff were errors as well. As to the admission of the grand jury minutes, there is no dispute that they would have been admissible, and I believe they would have been particularly germane here where the very basis of plaintiff’s claim is that defendant lied before the grand jury so that he would be prosecuted. Finally, the trial court’s refusal to

(n. cont’d)

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO and READ concur; Judge PIGOTT dissents and votes to reverse in an opinion in which Judge SMITH concurs.

Order affirmed, with costs, in a memorandum.

GEOFFREY BOND et al., Respondents, v THOMAS A. TURNER et al., Appellants, and VILLAGE OF LAKEWOOD, Respondent.

Submitted September 17, 2012; decided November 20, 2012

Motion for leave to appeal dismissed upon the ground that simultaneous appeals do not lie to both the Appellate Division and the Court of Appeals (*see Parker v Rogerson*, 35 NY2d 751, 753 [1974]).

EXPEDIA, INC., et al., Respondents, et al., Plaintiffs, v CITY OF NEW YORK DEPARTMENT OF FINANCE et al., Appellants.

Submitted July 2, 2012; decided November 20, 2012

Reported below, 89 AD3d 640.

Motion for leave to appeal denied upon the ground that an appeal lies as of right (*see* CPLR 5601 [b] [1]).

KELLY A. HERR, Appellant, v JAMES E. HERR, Respondent.

Submitted August 27, 2012; decided November 20, 2012

Reported below, 97 AD3d 961.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARGUERITE JAMES, Appellant, v DAVID WORMUTH, M.D., et al., Respondents.

Submitted October 15, 2012; decided November 20, 2012

Reported below, 93 AD3d 1290 (Appeal No. 2).

Motion to dismiss appeal denied.

permit plaintiff to prove that defendant lied to obtain the order of protection that formed the basis of plaintiff's subsequent prosecution was an abuse of discretion, regardless of whether plaintiff challenged the order of protection when issued.

In the Matter of ANTHONY H. LINNEN, Appellant, v ALBERT PRACK, as Acting Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted August 27, 2012; decided November 20, 2012

Reported below, 92 AD3d 986; 2012 NY Slip Op 75596(U).

Motion, insofar as it seeks leave to appeal from the February 2012 Appellate Division judgment, dismissed as untimely (*see* CPLR 5513 [b]). The prior motion for leave to appeal made at the Appellate Division was untimely. Motion, insofar as it seeks leave to appeal from the June 2012 Appellate Division order, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* CONRADO PONS, Appellant, v WILLIAM A. LEE, Respondent.

Submitted August 27, 2012; decided November 20, 2012

Reported below, 2012 NY Slip Op 78923(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of VILLAGE OF PORT CHESTER, Appellant. DOMINICK D. BOLOGNA *et al.*, Respondents.

Submitted September 9, 2012; decided November 20, 2012

Reported below, 95 AD3d 895.

Motion by G&S Port Chester, LLC for leave to file a memorandum of law *amicus curiae* on the motion for leave to appeal herein granted and the memorandum of law is accepted as filed.

JOSEPH O. YEBO, Appellant, v HELENE M. CUADRA, Respondent.

Submitted September 10, 2012; decided November 20, 2012

Reported below, 98 AD3d 504.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[980 NE2d 527, 956 NYS2d 478]

BERNARD LEWIS, Respondent, v JOSEPH CAPUTO, Individually,
Appellant, et al., Defendants.

Decided November 27, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 10, 2012. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Milton A. Tingling, J.), which had awarded plaintiff, upon a jury verdict, the principal sum of \$50,000 as against defendant.

The jury found defendant liable for an unlawful arrest stemming from plaintiff's possession of a stolen laptop computer.

Lewis v Caputo, 95 AD3d 262, reversed.

HEADNOTE

Torts — False Imprisonment — False Arrest — Probable Cause

In an action for false arrest, the Appellate Division, which affirmed a judgment in favor of plaintiff, incorrectly determined that defendant had failed to provide a sufficient basis for establishing probable cause as a matter of law. While different inferences as to plaintiff's guilt or innocence of the underlying crime were possible, only one reasonable inference could be drawn from the facts regarding probable cause. Therefore, the issue was not one properly presented to the jury for determination.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*June A. Witterschein* of counsel), for appellant.

Michael J. Andrews, P.C., New York City (*Michael J. Andrews* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the complaint dismissed.

The Appellate Division incorrectly determined that defendant failed to provide a sufficient basis for establishing probable cause as a matter of law. While different inferences as to plaintiff's guilt or innocence of the underlying crime are possible, only one reasonable inference could be drawn from the facts regarding probable cause. Therefore, the issue was not one properly presented to the jury for determination (*see Veras v Truth Verification Corp.*, 57 NY2d 947 [1982], *affg for reasons stated at* 87 AD2d 381 [1st Dept 1982]; *cf. Smith v County of Nassau*, 34 NY2d 18 [1974]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[981 NE2d 256, 957 NYS2d 660]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JOHN M. GAVAZZI, Respondent.

Argued October 16, 2012; decided November 27, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 5, 2011. The Appellate Division (1) reversed, on the law, a judgment of the Chenango County Court (W. Howard Sullivan, J.), which had convicted defendant, upon his plea of guilty, of promoting a sexual performance by a child and possessing a sexual performance by a child, (2) granted defendant's motion to suppress evidence, and (3) remitted the matter to County Court for further proceedings.

People v Gavazzi, 84 AD3d 1427, affirmed.

HEADNOTE

Crimes — Search Warrant — Defective Warrant

In a prosecution for promoting a sexual performance by a child and another crime, the search warrant pursuant to which incriminating evidence was found in defendant's home did not substantially comply with CPL 690.45 (1) where the village justice who signed the warrant included no designation of his court, his signature was illegible, there was no seal, and the caption typed by the arresting police officer referred to a nonexistent town. While it was

clear that the warrant directed local village police officers to search a house in that village, there was no indication whatsoever which of the several courts that had authority to issue warrants in that village issued the warrant permitting the search. Rather, on its face the warrant appeared to have been issued by an unidentified judge in a nonexistent court and town in a different county. The requirement of CPL 690.45 (1) that the name of the issuing court appear on the warrant operates directly to protect and preserve a right guaranteed by the Fourth Amendment to the United States Constitution and by New York Constitution, article I, § 12—the right to have a neutral and detached magistrate sign the warrant to search one’s house. Accordingly, the evidence seized when the warrant was executed should have been suppressed.

APPEARANCES OF COUNSEL

Joseph A. McBride, District Attorney, Norwich (Michael J. Genute of counsel), for appellant.

John D. Cameron, Public Defender, Norwich, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

A New York State trooper, assigned to interview defendant John Mario Gavazzi, who was suspected of receiving and sending child pornography images by email, applied for a warrant to search defendant’s residence in the Village of Greene, Chenango County. In drafting the search warrant, the trooper inadvertently typed Local Criminal Court, Town of Broome, Broome County” at the head of the warrant, instead of “Local Criminal Court, Town of Greene, Chenango County.” There is no municipality of Broome in either Broome County or Chenango County. The Village Justice signed the warrant without correcting the mistake. His signature was affixed on a line marked “Signature of Judge or Justice,” but it is illegible, and the court is not named.

Upon executing the warrant, the trooper entered and searched defendant’s residence, where he found printed photographs of young, nude children. Defendant was arrested.

On a motion to suppress, defendant argued that the search warrant did not substantially comply with CPL 690.45 (1). The prosecutor countered that the mistake was merely a technical error. The defense motion was denied. County Court convicted defendant, upon his guilty plea, of promoting a sexual performance by a child and possessing a sexual performance by a child, but stayed his sentence pending appeal.

The Appellate Division granted defendant’s motion to suppress, and reversed County Court’s judgment. The Appellate

Division held that the search warrant did not substantially comply with CPL 690.45 (1), because it contained “no information from which the issuing court can be discerned” (84 AD3d 1427, 1429 [3d Dept 2011]). We agree with the Appellate Division.

A search warrant must contain “[t]he name of the issuing court” (CPL 690.45 [1]). The standard for adherence with the statutory requirement is “substantial—rather than literal—compliance” (*People v Taylor*, 73 NY2d 683, 688 [1989]; see *People v Brown*, 40 NY2d 183, 186 [1976]). If “a conscientious effort” (*Brown*, 40 NY2d at 188) was made to comply with the statutory requirement, and the warrant contains information from which the identity of the issuing court may reasonably be inferred, courts will typically validate a warrant (see e.g. *People v Smythe*, 172 AD2d 1028 [4th Dept 1991]; *People v Pizzuto*, 101 AD2d 1024, 1024-1025 [4th Dept 1984]).

Here, the Village Justice who signed the warrant included no designation of his court, his signature is illegible, there is no seal, and the caption typed by the trooper refers to a nonexistent town. While it is clear that the warrant directs Village of Greene police officers to search a house in Greene, there is no indication whatsoever which of the several courts that have authority to issue warrants in the Village of Greene issued the warrant permitting the search. As the Appellate Division put it, “on its face the warrant appears to [have been] issued by an unidentified judge in a nonexistent court and town in a different county” (84 AD3d at 1429). As such, we conclude that the warrant did not substantially comply with CPL 690.45 (1).

Finally, contrary to our dissenting colleague, suppression is warranted because the name requirement of CPL 690.45 (1) “operates directly to protect and preserve a constitutionally guaranteed right of the citizen” (*People v Patterson*, 78 NY2d 711, 717 [1991]; see also *People v Greene*, 9 NY3d 277, 280-281 [2007]). The right safeguarded by the name requirement is the right that is protected by the constitutional requirement of a warrant (US Const 4th Amend; NY Const, art I, § 12)—the right to have a “neutral and detached magistrate” (*Johnson v United States*, 333 US 10, 14 [1948]) sign the warrant to search one’s house.

SMITH, J. (dissenting). The suppression of evidence is a drastic remedy—one that increases the likelihood of, if it does not guarantee, an unjust result. Very often it means, in the famous

phrase of our most famous predecessor, that “[t]he criminal is to go free because the constable has blundered” (*People v De-fore*, 242 NY 13, 21 [1926, Cardozo, J.]). We have several times made clear that evidence should be suppressed only to protect constitutional rights, not to punish every violation of a statute (*People v Taylor*, 73 NY2d 683, 690-691 [1989]; *People v Patterson*, 78 NY2d 711, 714-718 [1991]; *People v Greene*, 9 NY3d 277, 280-281 [2007]). Yet here the majority grants suppression as a remedy for a clerical error where no constitutional right was endangered.

The majority relies on *Taylor* for the proposition that “[t]he standard for adherence with the statutory requirement is ‘substantial—rather than literal—compliance’ ” (majority mem at 909, quoting *Taylor*, 73 NY2d at 688). But we made clear in *Taylor* that application of the “substantial compliance” test turned on whether a constitutional right was in jeopardy. While the error in *Taylor*—violation of a statutory command that testimony in support of a search warrant application be either recorded or summarized on the record (CPL 690.40 [1])—did not itself violate a constitutional requirement, we emphasized that the purpose of the statute was to implement constitutional prohibitions against unreasonable searches and seizures. We explained:

“This failure of substantial compliance with the requirements of law requires that the evidence discovered during the search purportedly authorized by the defective warrant be suppressed, notwithstanding that the recordation requirement is set forth in a statute rather than in the State or Federal Constitution. The purpose of the recordation requirement of CPL 690.40 (1) is to provide the very basis for an appellate determination of probable cause for issuance of a search warrant. Thus, substantial failure to comply with this statute is wholly unlike other statutory violations. While not itself a constitutional requirement, compliance is indispensable to the determination whether the constitutional requirements for a valid search and seizure have been met” (73 NY2d at 690 [citations omitted]).

Patterson involved another statutory violation—a failure to return defendant’s photograph after a charge against him had been dismissed (see CPL 160.50 [1] [a]). We denied suppression of evidence that resulted from this error, saying:

“Although CPL 160.50 was violated, that violation did not infringe upon any constitutional right of the defendant sufficient to warrant invocation of the exclusionary rule” (78 NY2d at 714).

Distinguishing *Taylor* and other cases, we said:

“[W]e have, in limited circumstances, held that the violation of a statute may warrant imposing the sanction of suppression. However, we have done so only where a constitutionally protected right was implicated, a circumstance not here present” (*id.* at 716-717).

More recently, in *Greene*, we denied suppression of evidence resulting from a breach of the statutory physician-patient privilege (CPLR 4504 [a]), and reaffirmed the rule of *Taylor* and *Patterson*:

“Our decisions make clear that a violation of a statute does not, without more, justify suppressing the evidence to which that violation leads

“We have made an exception to this rule only when the principal purpose of a statute is to protect a constitutional right” (9 NY3d at 280).

The statute at issue here, CPL 690.45 (1), requires a search warrant to contain “[t]he name of the issuing court.” It seems clear to me that this requirement is neither constitutional in itself nor designed to protect constitutional rights. The majority says that it safeguards the right to have the warrant signed by a “‘neutral and detached magistrate’ ” (majority mem at 909, quoting *Johnson v United States*, 333 US 10, 14 [1948]); the implicit suggestion—that to tolerate errors in naming the court will open the door to alleged “warrants” that are not in fact signed by a judge at all—is, I respectfully submit, far-fetched. The name requirement is essentially formal, and sloppiness in complying with it, while regrettable, endangers no one’s liberty. In this, it is in contrast to the requirement of CPL 690.40 (1), at issue in *Taylor*, that the evidence supporting a search warrant be appropriately memorialized; a violation of that requirement creates the real risk that warrants issued without adequate support will escape scrutiny.

The majority concludes that the warrant here “did not substantially comply with CPL 690.45 (1)” (majority mem at 909) because the name of the court cannot be deduced from the face of the warrant. I grant that this warrant did not come close

to complying with the “name” requirement of the first subdivision of CPL 690.45. But following the rule of *Taylor, Patterson* and *Greene*, I would hold that that is not the decisive question. The warrant did comply—not just substantially, but literally—with those parts of CPL 690.45 that are designed for the protection of constitutional rights. Specifically, the warrant complied with CPL 690.45 (4) and (5) by describing the place to be searched and the things to be seized. These subdivisions implement the requirements of the Fourth Amendment to the United States Constitution and article I, § 12 of the New York Constitution.

The violation of the non-constitutional requirement of section 690.45 (1) does not justify the suppression of evidence. I would reverse the Appellate Division order, reinstate County Court’s order denying suppression, and reinstate defendant’s conviction.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and FIGOTT concur; Judge SMITH dissents and votes to reverse in an opinion.

Order affirmed in a memorandum.

[980 NE2d 527, 956 NYS2d 478]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES A. HARRIS, JR., Respondent.

Decided November 27, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered January 10, 2012. The Appellate Division reversed, on the law, a judgment of the Orange County Court (Robert Freehill, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, kidnapping in the first degree, and tampering with physical evidence. The appeal to the Appellate Division brought up for review the denial, after a hearing, of that branch of defendant’s omnibus motion which was to suppress his statements to law enforcement officials. The Appellate Division granted that branch of defendant’s omnibus motion and ordered a new trial.

In their investigation of a homicide, the police noticed defendant driving in the vicinity of a residence to which the victim

reportedly had ties. After defendant's car was pulled over, he was observed reaching toward the glove compartment, whereupon he was handcuffed and eventually brought to police headquarters. Defendant was given the *Miranda* warnings and, following several hours of questioning during which defendant repeatedly disavowed his involvement with the crime, he stated, "I think I want to talk to a lawyer and I want to go." Several hours later, the questioning ended and defendant was escorted to the lobby and permitted to leave. Several days later, defendant returned to the police headquarters to retrieve his car. Upon learning that defendant was at headquarters, an investigator decided to ask defendant additional questions. After defendant was again advised of his *Miranda* rights, he was questioned, whereupon he made certain incriminating statements.

On appeal, the Appellate Division concluded that defendant had unequivocally invoked his right to counsel while in police custody and that once the right had indelibly attached, the police were prohibited from questioning defendant without first obtaining a waiver of his right to counsel in the presence of an attorney. The Appellate Division found that since such a counseled waiver was not obtained, the statements that defendant made to the police when he returned to the police station should have been suppressed. Moreover, the Court held the erroneous admission of defendant's statements was not harmless, since there was a reasonable possibility that the error contributed to defendant's conviction, notwithstanding that the evidence of guilt was overwhelming.

People v Harris, 93 AD3d 58, affirmed.

HEADNOTE

Crimes — Confession — Invocation of Right to Counsel

In a criminal prosecution where the Appellate Division had overturned County Court's denial of defendant's motion to suppress his statements to law enforcement officials, reversed his conviction and ordered a new trial, there was record support for the Appellate Division's determination that defendant had unequivocally invoked his right to counsel while in custody, and that mixed question of law and fact was beyond further review at the Court of Appeals. Moreover, the hearing court's error in failing to suppress defendant's statements was not harmless beyond a reasonable doubt and defendant was entitled to a new trial.

APPEARANCES OF COUNSEL

Francis D. Phillips, II, District Attorney, Middletown (*Andrew R. Kass* of counsel), for appellant.

Warren S. Hecht, Forest Hills, for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. There is support in the record for the Appellate Division's determination that defendant unequivocally invoked his right to counsel while in custody, and that mixed question of law and fact is beyond our further review. We agree with the Appellate Division that the hearing court's error in failing to suppress defendant's statements was not harmless beyond a reasonable doubt and that defendant is entitled to a new trial.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

JEANA BARENBOIM et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

EUGENE WINANS et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

Decided November 27, 2012

See 698 F3d 104.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

ROGER A. CAMPFIELD, Respondent, v SHARLENE M. CAMPFIELD, Appellant.

Submitted September 17, 2012; decided November 27, 2012

Reported below, 95 AD3d 1429.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JENNIFER CANGRO, Appellant, v PARK SOUTH TOWERS ASSOCIATES et al., Respondents.

Submitted October 1, 2012; decided November 27, 2012

Reported below, 2012 NY Slip Op 81323(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of TUHIN S. DUTTA, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted September 17, 2012; decided November 27, 2012

Reported below, 2012 NY Slip Op 79335(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RICHARD GEORGE, Appellant, v YOMA DEVELOPMENT GROUP, INC., et al., Defendants, and JENNIFER E. LOZANA LUNA et al., Respondents.

Submitted October 1, 2012; decided November 27, 2012

Reported below, 2012 NY Slip Op 73056(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of GEORGIANA H. JUNGELS, Appellant, v SUNY BUFFALO, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted September 10, 2012; decided November 27, 2012

Reported below, 2012 NY Slip Op 79998(U); 2012 NY Slip Op 70753(U).

Motion, insofar as it seeks leave to appeal from that part of the April 2012 Appellate Division order as dismissed the appeal

from the October 2009 Workers' Compensation Board decision, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of EDWARD KOEHL, Appellant, v BRIAN S. FISCHER,
as Commissioner of Corrections and Community Supervi-
sion, Respondent.

Submitted October 1, 2012; decided November 27, 2012

Reported below, 96 AD3d 1301.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for poor person relief dismissed as academic.

FREDERICK J. PLATEK et al., Respondents, v TOWN OF HAMBURG
et al., Defendants, and ALLSTATE INDEMNITY COMPANY, Ap-
pellant.

Decided November 27, 2012

Reported below, 97 AD3d 1118.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

DOLORES STEWART, Respondent, v SANDY MARTE et al., Appel-
lants.

Submitted September 17, 2012; decided November 27, 2012

Reported below, 91 AD3d 754.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOSE TORRES, Appellant, v GAMMA TAXI CORP. et al., Respondents.

Decided November 27, 2012

Reported below, 97 AD3d 440.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

TRIBECA LENDING CORP., Respondent, v LINDA CRAWFORD, Appellant, et al., Defendants.

Submitted September 24, 2012; decided November 27, 2012

Reported below, 79 AD3d 1018.

Motion for leave to appeal dismissed upon the ground that it does not lie.

[980 NE2d 531, 956 NYS2d 482]

In the Matter of ROBERT P. APPLE.

Decided November 29, 2012

SUMMARY

CONSIDERATION, by the Court of Appeals, of whether the suspension of Honorable Robert P. Apple from his office of Justice of the Pawling Village Court, Dutchess County, should be continued.

HEADNOTE

Judges — Suspension from Office

The suspension of a Village Court Justice, with pay, was continued.

APPEARANCES OF COUNSEL

Thomas F. Purcell, Mahopac, for Hon. Robert P. Apple.

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On consideration of the continuation of this Court's October 23, 2012 suspension, with pay, of Honorable Robert P. Apple from his office of Justice of the Pawling Village Court, Dutchess

County (*see* 19 NY3d 1045 [2012]), it is determined that the suspension continue, with pay, effective immediately.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

[980 NE2d 532, 956 NYS2d 482]

KAYLA JAMES, an Infant, by Her Mother and Natural Guardian,
ATARA JAMES, et al., Appellants, v LORAN REALTY V CORP.,
Defendant, and FRANK PALAZZOLO et al., Respondents.

Decided November 29, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 23, 2011. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Stanley B. Green, J.), entered after a nonjury trial, which had dismissed plaintiffs' second cause of action seeking to pierce the corporate veil of defendant Loran Realty V Corp. and hold the individual defendants personally liable for plaintiffs' injuries. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

In an action for personal injuries sustained by the infant plaintiff as a result of exposure to lead-based paint in a building owned by defendant Loran Realty V Corp., plaintiffs sought to pierce the corporate veil and hold the individual defendants liable for plaintiff's injuries.

James v Loran Realty V Corp., 85 AD3d 619, affirmed.

HEADNOTE

Corporations — Disregarding Corporate Entity

In a personal injury action arising out of the infant plaintiff's exposure to lead-based paint in a building owned by defendant corporation, plaintiffs, who sought to pierce the corporate veil, failed to meet their burden of showing that the individual defendants abused the privilege of doing business in the corporate form to perpetrate a wrong or injustice against them. Plaintiffs failed to produce evidence that the individual defendants took steps to render the corporate defendant insolvent in order to avoid plaintiffs' claim for damages or otherwise defraud plaintiffs.

APPEARANCES OF COUNSEL

Sullivan Papain Block McGrath & Cannavo P.C., New York City (*Brian J. Shoot* of counsel), for appellants.

Hass & Gottlieb, Scarsdale (*Lawrence M. Gottlieb* of counsel),
for Frank Palazzolo, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Plaintiffs, as the party seeking to pierce the corporate veil, had the burden to show that the individual defendants “abused the privilege of doing business in the corporate form to perpetrate a wrong or injustice against” them (*Matter of Morris v New York State Dept. of Taxation & Fin.*, 82 NY2d 135, 142 [1993]). Plaintiffs did not meet this burden, inasmuch as they failed to produce evidence that the individual defendants took steps to render the corporate defendant insolvent in order to avoid plaintiffs’ claim for damages or otherwise defraud plaintiffs.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and the certified question answered in the affirmative, in a memorandum.

[980 NE2d 532, 956 NYS2d 483]

In the Matter of WEEKS WOODLANDS ASSOCIATION, INC., et al.,
Appellants, v DORMITORY AUTHORITY OF THE STATE OF NEW
YORK et al., Respondents.

Decided November 29, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 31, 2012. The Appellate Division, with two Justices dissenting, dismissed, as moot, appeals from (1) an order of the Supreme Court, New York County (Emily Jane Goodman, J.; op 2011 NY Slip Op 30286[U] [2011]), to the extent it had denied petitioners’ motion for a preliminary injunction and granted the cross motion of respondent New York State Department of Health to

dismiss the petition as against it, and (2) an order and judgment (one paper) of that Supreme Court, to the extent it had granted the motion of respondent Dormitory Authority of the State of New York for summary judgment declaring that it had the authority to provide financing for a certain construction project, denied petitioners' motion to renew, granted the cross motion of respondent New York City Department of Buildings for summary judgment dismissing the proceeding as against it, and denied petitioners' motion for summary judgment with respect to the applicability of section 24-111 (a) of the Zoning Resolution of the City of New York.

Alleging noncompliance with zoning requirements, petitioners had sought to enjoin a construction project to modernize a hospital for disabled children operated by a not-for-profit corporation.

Matter of Weeks Woodlands Assn., Inc. v Dormitory Auth. of the State of N.Y., 95 AD3d 747, affirmed.

HEADNOTE

Appeal — Academic and Moot Questions — Substantial Completion of Challenged Project

The Appellate Division properly dismissed as moot appeals to that Court in a proceeding to enjoin a construction project, since the challenged project was substantially complete.

APPEARANCES OF COUNSEL

Albert K. Butzel Law Offices, New York City (*Albert K. Butzel* and *Michael S. Gruen* of counsel), for appellants.

Wachtel Masyr & Missry LLP, New York City (*Karen Binder* of counsel), for Dormitory Authority of the State of New York and another, respondents.

Michael A. Cardozo, Corporation Counsel, New York City (*Edward F.X. Hart* of counsel), for New York City Department of Buildings, respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. Under the particular circumstances of this case, we agree with the Appellate Division majority that the challenged project is substantially complete and that the proper course of action was to dismiss the appeals taken to that Court as moot.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

[982 NE2d 74, 958 NYS2d 312]

KRISTIN KAHKONEN DUPREE, Respondent-Appellant, v JAMES E. GIUGLIANO, Appellant-Respondent.

Argued October 17, 2012; decided November 29, 2012

SUMMARY

CROSS APPEALS, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered September 13, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Suffolk County (William B. Rebolini, J.; op 23 Misc 3d 1110[A], 2009 NY Slip Op 50697[U] [2009]), entered upon a jury verdict on the issue of liability finding defendant 75% at fault and plaintiff 25% at fault in the causation of the plaintiff's injuries, and upon a jury verdict on the issue of damages awarding plaintiff damages against defendant in the sums of \$150,000 for past mental distress, \$50,000 for future mental distress, and \$134,000 for loss of past financial support, and \$166,000 in punitive damages. The following question was certified by the Appellate Division: "Was the decision and order of this Court dated September 13, 2011, properly made?"

Dupree v Giugliano, 87 AD3d 975, modified.

HEADNOTES

Physicians and Surgeons — Malpractice — Sexual Relationship with Patient with Psychological Problems

1. In a medical malpractice action arising out of the sexual relationship between plaintiff and defendant physician while defendant was treating plaintiff for depression and anxiety, the jury could reasonably have concluded that the sexual relationship was substantially related to and in fact interfered with the treatment so as to constitute medical malpractice. The standard for medical malpractice is that the challenged conduct constitute medical treatment or bear a substantial relationship to the physician's treatment of the patient. Defendant prescribed antidepressant medication for plaintiff, even switching medications in response to her concerns about diminished libido, and referred her to a therapist. Further, the jury heard considerable testimony about "erotized transference," a phenomenon in which the patient experiences near psychotic and irresistible attraction to a treating physician, and defendant's

professional duty to manage that once he began treating plaintiff's mental health problems.

Negligence — Comparative Negligence — Medical Malpractice Action Arising out of Sexual Relationship between Physician and Patient

2. In a medical malpractice action arising out of the sexual relationship defendant physician had with plaintiff patient, who had sought treatment for psychological problems, defendant's mismanagement of plaintiff's medical condition did not negate comparative fault. The parties' affair continued for nine months, during which time both plaintiff and defendant clearly sought out repeated sexual encounters. Moreover, although plaintiff's expert testified that plaintiff was suffering from "eroticized transference," a phenomenon in which a patient experiences near psychotic and irresistible attraction to a treating physician, the jury might reasonably discount plaintiff's expert's testimony that plaintiff was wholly without volition in the matter.

Damages — Punitive Damages — Physician Engaging in Sexual Relationship with Patient with Psychological Problems

3. In a medical malpractice action arising out of defendant physician's adulterous affair with plaintiff patient, during which plaintiff allegedly suffered from "eroticized transference," a medical phenomenon in which the patient experiences near psychotic attraction to a treating physician, and claimed to have endured 12 years of anguish as a result of the malpractice, including a contentious and protracted divorce, punitive damages were improperly charged as a matter of law. The standard for an award of punitive damages is that a defendant manifest evil or malicious conduct beyond any breach of professional duty. There must be aggravation or outrage, such as spite or malice, or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that the conduct may be called willful or wanton. However, defendant's acts did not measure up to that standard. There was no evidence the doctor willfully caused plaintiff's "transference" or harm.

APPEARANCES OF COUNSEL

Shayne, Dachs, Corker, Sauer & Dachs, LLP, Mineola (Norman H. Dachs of counsel), for appellant-respondent.

Kenneth S. Cooperstein, Centerport, for respondent-appellant.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by vacating the award for punitive damages and, as so modified, affirmed, and the certified question not answered upon the ground it is unnecessary.

In January 2000, plaintiff Kristin Kahkonen Dupree sought and obtained treatment for depression and stress from defendant James E. Giugliano, a licensed family physician with a concentration in osteopathic medicine. Defendant prescribed antidepressant drugs for plaintiff, and suggested that she get

more exercise or take warm baths to relieve stress. He also referred her to a therapist for counseling. In June 2001, plaintiff and defendant became involved in an adulterous relationship. Their first sexual encounter occurred at a gym where defendant was showing plaintiff exercises to alleviate stress and anxiety; these encounters continued several times a week for nine months before plaintiff and defendant mutually decided to end their affair. Plaintiff confessed the adultery to her husband, who subsequently sued for divorce. The divorce proceeding was contentious and protracted, lasting five years before a settlement was reached.

Plaintiff commenced suit for medical malpractice in February 2005. At trial, plaintiff offered testimony that she felt the affair was wrong, but was unable to control herself. Her expert testified that plaintiff's "romantic" feelings towards defendant were the result of "eroticized transference," a medical phenomenon in which the patient experiences "near psychotic attraction" to a treating physician, which the patient is powerless to resist. Plaintiff also introduced evidence of general and special damages. Her claimed general damages consisted of mental distress—i.e., 12 years of anguish proximately caused by defendant's malpractice. She asked for special damages of \$435,600 for loss of her husband's financial support, and \$155,000 for legal fees incurred in connection with the divorce.

The trial court charged comparative fault, and the jury found malpractice with plaintiff's conduct a substantial factor, setting her fault at 25%. The jury awarded plaintiff \$150,000 for past mental distress, \$50,000 for future mental distress, \$134,000 for past loss of income, \$0 for future lost income, \$0 for expenses of divorce, and \$166,000 in punitive damages. Defendant appealed the malpractice finding; plaintiff cross-appealed, arguing that comparative fault should not have been charged because of the "inherent compulsion doctrine," and that the legal fees were proved by her unrebutted testimony. The Appellate Division affirmed the judgment on the jury verdict, with one Justice dissenting (87 AD3d 975 [2d Dept 2011]). Both parties asked the Appellate Division for leave to appeal, which was granted in December 2011.

[1, 2] Plaintiff sought out defendant for medical treatment for depression and anxiety. Defendant prescribed antidepressant medication for plaintiff, even switching medications in response to her concerns about diminished libido; he referred her to a therapist. Further, the jury heard considerable testimony about

the “transference” phenomenon, and defendant’s professional duty to manage this once he began treating plaintiff’s mental health problems. The standard for medical malpractice is that “the challenged conduct constitute[] medical treatment or bear[] a *substantial relationship*” to the physician’s treatment of the patient (1B NY PJI3d 2:150 at 47-48 [2012] [emphasis added]; see also *Scott v Uljanov*, 74 NY2d 673, 675 [1989]). Here, where defendant was prescribing a course of treatment for plaintiff’s mental health problems, including medication and counseling, a jury might reasonably conclude that the sexual relationship was substantially related to and, in fact, interfered with the treatment so as to constitute medical malpractice. That defendant mismanaged plaintiff’s medical condition does not, however, negate comparative fault. The affair continued for nine months, during which time both plaintiff and defendant clearly sought out repeated sexual encounters. The jury might, as it obviously did, reasonably discount the expert’s testimony that plaintiff was wholly without volition in the matter.

[3] Finally, punitive damages were improperly charged as a matter of law. The standard for an award of punitive damages is that a defendant manifest evil or malicious conduct beyond any breach of professional duty. There must be

“ ‘aggravation or outrage, such as spite or “malice,” or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that the conduct may be called wilful or wanton’ ” (see *Prozeralik v Capital Cities Communications*, 82 NY2d 466, 479 [1993], quoting Prosser and Keeton, Torts § 2 at 9-10 [5th ed 1984]).

The circumstances here do not measure up to this standard: there is no evidence the doctor willfully caused plaintiff’s “transference” or harm.

We consider the remaining issues raised on the appeal and cross appeal to be without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur in memorandum.

Order modified, etc.

[981 NE2d 281, 957 NYS2d 685]

KENDRA CIVIDANES, Respondent, v CITY OF NEW YORK, Defendant, and MANHATTAN AND BRONX SURFACE TRANSIT OPERATING AUTHORITY et al., Appellants.

Decided November 29, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 22, 2012. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Faviola A. Soto, J.), to the extent it had denied the cross motion of defendants Manhattan and Bronx Surface Transit Operating Authority and New York City Transit Authority for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: “Was the order of the Supreme Court, as affirmed by this Court, properly made?”

Cividanis v City of New York, 95 AD3d 1, affirmed.

HEADNOTES**Insurance — No-Fault Automobile Insurance — Applicability — Injuring Ankle after Stepping off Bus into Hole**

1. In an action to recover damages for injuries plaintiff allegedly sustained to her left ankle when she stepped off the last step into a hole and fell as she was exiting a bus owned and operated by defendants, the No-Fault Insurance Law was inapplicable because plaintiff’s injury did not arise out of the “use or operation” of a motor vehicle (Insurance Law § 5104 [a]). The “use or operation” of the bus was neither a “proximate cause” nor an “instrumentality” that produced plaintiff’s injury.

Insurance — No-Fault Automobile Insurance — Applicability

2. *Manuel v New York City Tr. Auth.* (82 AD3d 1059 [2d Dept 2011]), which held that the No-Fault Insurance Law’s restrictions on tort liability were applicable to an action in which plaintiff was injured while exiting a bus and stepping into a hole, should not be followed.

APPEARANCES OF COUNSEL

Lawrence A. Silver, Brooklyn, and *Wallace D. Gossett*, for appellants.

Burns & Harris, New York City (*Blake G. Goldfarb* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

[1, 2] Plaintiff Kendra Cividanes testified at a General Municipal Law § 50-h hearing that she injured her left ankle when she “stepped off the last step into a hole and fell” as she exited the rear of a bus owned and operated by defendants New York City Transit Authority and Manhattan and Bronx Surface Transit Operating Authority. The Appellate Division properly held that the No-Fault Insurance Law is inapplicable because plaintiff’s injury did not arise out of the “use or operation” of a motor vehicle (Insurance Law § 5104 [a]). The “use or operation” of the bus was neither a “proximate cause” nor an “instrumentality” that produced plaintiff’s injury (*see Walton v Lumbermens Mut. Cas. Co.*, 88 NY2d 211, 214 [1996] [noting that the No-Fault Insurance Law’s scope of coverage should be interpreted to “reflect the Legislature’s intent to draw a line between motor vehicle accidents and all other types of torts and to remove only the former from the domain of common-law tort litigation”]). *Manuel v New York City Tr. Auth.* (82 AD3d 1059 [2d Dept 2011]), which held on similar facts that the No-Fault Insurance Law’s restrictions on tort liability were applicable, should not be followed.

PIGOTT, J. (dissenting). Plaintiff sued the City of New York, the Manhattan and Bronx Surface Transit Operating Authority and the New York City Transit Authority in negligence, after she stepped in a pothole while alighting from a bus, injuring her ankle. The case against the City of New York was dismissed based upon plaintiff’s failure to show prior written notice of the defect. Plaintiff’s claim against the Authorities is based upon alleged breach of the duty to stop at a place where she could safely disembark.

The majority, in affirming the Appellate Division’s order, holds that the No-Fault Insurance Law is inapplicable because plaintiff’s injury did not arise out of the use or operation of a motor vehicle. I disagree and therefore respectfully dissent.

Under the No-Fault Insurance Law, a person is entitled to first-party benefits, from the insurer of the vehicle, for personal injury “arising out of the use or operation” of a motor vehicle in New York (Insurance Law § 5103 [a] [1]; *see also* Insurance Law § 5104 [a]). “The vehicle must be a proximate cause of the injury before the absolute liability imposed by the statute arises” (*Walton v Lumbermens Mut. Cas. Co.*, 88 NY2d 211, 215 [1996]). Where, on the other hand, “the plaintiff’s injury was caused by an instrumentality other than the insured vehicle” (*id.* at 214), plaintiff’s recourse is tort litigation. Here, plaintiff’s

theory against the Authorities is that her injuries resulted from the bus driver's positioning of the bus next to a hole in the street, when stopping the vehicle. In other words, she alleges that her loss was caused by "negligence in the . . . operation of a motor vehicle" (Insurance Law § 5104 [a]). That, in my view, triggers no-fault coverage.

The majority cites—and the Appellate Division relied upon—our decision in *Walton v Lumbermens Mut. Cas. Co.* There, a worker was injured when a "levelator" that he was standing on tipped over. The worker was transferring goods from the bed of his employer's truck to a loading dock that he had backed up to for the purpose of unloading. The levelator was a device, separate from both the truck and the dock, that formed a height-adjustable bridge between the two. There was no allegation that the truck was negligently parked or was in any way a cause of the accident. In fact, the worker "never disputed that the truck itself did not cause his injuries or that the failure of the levelator was the proximate cause of his injuries" (*Walton*, 88 NY2d at 214). We held that if

"the plaintiff's injury was caused by an instrumentality other than the insured vehicle, liability for the losses sustained are more properly addressed outside the area of no-fault motor vehicle insurance. . . .

"The mere fortuity that plaintiff's injury occurred while he was engaged in unloading the truck does not support a claim for no-fault benefits because the vehicle itself was not a cause of the damage" (*id.* at 214-215).

The present case is clearly distinguishable from *Walton*. In *Walton*, the plaintiff conceded that the cause of his injuries was *not* the truck, but nevertheless tried to recover on the theory that, in unloading the truck, he was using or operating it within the meaning of the No-Fault Insurance Law. Here, by contrast, plaintiff alleges that a proximate cause of her injuries was the bus, i.e., the commonsense position that the bus driver, by stopping where he did, caused her accident. The majority's citation of *Walton* is therefore inapposite. In my view, the correct precedent to apply to the present case is *Manuel v New York City Tr. Auth.* (82 AD3d 1059 [2d Dept 2011]), which held that the no-fault statute applies where, as here, "[t]he plaintiff's theory of liability is that her injuries resulted from the manner in which the bus driver operated the bus, specifically his positioning of

the bus next to a hole in the street when he pulled over at the bus stop” (*id.* at 1061).

I disagree with the majority’s position that “[t]he ‘use or operation’ of the bus was neither a ‘proximate cause’ nor an ‘instrumentality’ that produced plaintiff’s injury” (majority mem at 926). A bus driver’s negligent operation of a bus is regarded as a proximate cause of plaintiff’s injury if it was a substantial factor in bringing about that injury. Here, it can be concluded as a matter of law that the operation of the bus was a proximate cause of plaintiff’s fall (*see generally Argentina v Emery World Wide Delivery Corp.*, 93 NY2d 554, 560 n 2 [1999], citing *Forte v City of Albany*, 279 NY 416, 422 [1939], and PJI 2:71).

To me, the analysis of this case is straightforward. Plaintiff alleges that her accident was proximately caused by the use or operation of a motor vehicle. Her allegation cannot be refuted as a matter of law. She is therefore entitled to seek basic economic loss coverage under the No-Fault Insurance Law and must prove serious injury as defined in that statute in order to recover for noneconomic loss (Insurance Law § 5104 [a]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO and READ concur; Judge PIGOTT dissents in an opinion in which Judge SMITH concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and the certified question answered in the affirmative, in a memorandum.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted October 15, 2012; decided November 29, 2012

Reported below, 256 AD2d 372.

Motion for reargument of motion for leave to appeal denied [*see* 19 NY3d 1004 (2012)].

VICTOR BAROCAS, Respondent, v DEBORAH BAROCAS, Appellant.

Submitted October 1, 2012; decided November 29, 2012

Reported below, 94 AD3d 551.

Motion to vacate this Court’s August 14, 2012 dismissal order denied [*see* 19 NY3d 993 (2012)].

MAHMOUD DIARASSOUBA, Respondent, v SPENCER LUBIN et al.,
Appellants.

Submitted October 9, 2012; decided November 29, 2012

Reported below, 95 AD3d 930.

Motion for reargument of motion for leave to appeal denied
[*see* 19 NY3d 1016 (2012)].

In the Matter of GREGORY JOHN FISCHER et al., Appellants, v
NYS BOARD OF ELECTIONS et al., Respondents.

Submitted November 5, 2012; decided November 29, 2012

Reported below, 98 AD3d 1067.

Motion for reconsideration of this Court's October 18, 2012
dismissal order denied [*see* 19 NY3d 1040 (2012)].

PATRICIA KANE, as the Limited Administratrix of the Estate of
JEANNE KANE, Deceased, and PATRICIA KANE, Individually,
Respondent, v JOHN GALTIERI, Appellant, and MARILYN GAL-
TIERI, Intervenor.

Decided November 29, 2012

Reported below, 36 Misc 3d 1239(A).

Appeal transferred, without costs, by the Court of Appeals,
sua sponte, to the Appellate Division, Second Department, upon
the ground that a direct appeal does not lie when questions
other than the constitutional validity of a statutory provision
are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601
[b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GERARD
J. RYAN, Appellant.

Submitted October 22, 2012; decided November 29, 2012

Reported below, 96 AD3d 1692.

Motion for leave to appeal dismissed as untimely.

WEI XU, Appellant, v FANGRUO CHEN, Respondent.

Submitted October 1, 2012; decided November 29, 2012

Reported below, 2012 NY Slip Op 81308(U); 2011 NY Slip Op 88143(U).

Motion, insofar as it seeks leave to appeal from the October 2011 Appellate Division order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the August 2012 Appellate Division order, denied.

APPEALS WITHDRAWN AND DISCONTINUED

(November 1, 2012 through November 30, 2012)

City of Utica, Matter of, v Daines*	3d Dept: 95 AD3d 1467	11/21/12
Ferguson v Rochester City Sch. Dist.	4th Dept: 99 AD3d 1184	11/13/12

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(November 1, 2012 through November 30, 2012)

People v Adams	App Div, 2d Dept: 2012 NY Slip Op 84991(U) (Kings)	dismissed 11/2/12 (Jones, J.)
People v Aguayo	App Div, 2d Dept: 2012 NY Slip Op 79853(U) (Kings)	dismissed 11/1/12 (Pigott, J.)
People v Allah	2d Dept: 95 AD3d 1136 (Kings)	denied reconsideration 11/19/12 (Ciparick, J.)
People v Allen	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 137(A) (Kings)	denied 11/27/12 (Lippman, Ch. J.)
People v Alsaifullah	App Div, 3d Dept: 2012 NY Slip Op 84353(U) (Albany)	dismissed 11/5/12 (Smith, J.)
People v Ames	2d Dept: 96 AD3d 867 (Suffolk)	denied 11/13/12 (Lippman, Ch. J.)
People v Anderson	2d Dept: 98 AD3d 524 (Suffolk)	denied 11/19/12 (Ciparick, J.)
People v Antonio	2d Dept: 96 AD3d 880 (Queens)	denied 11/27/12 (Read, J.)
People v Archer	2d Dept: 98 AD3d 524 (Kings)	denied 11/20/12 (Pigott, J.)
People v Arrington	2d Dept: 94 AD3d 903 (Nassau)	denied 11/26/12 (Smith, J.)

* Appeal by appellants is withdrawn.

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People v Badru	2d Dept: 98 AD3d 1132 (Richmond)	denied 11/26/12 (Pigott, J.)
People v Baker	1st Dept: 99 AD3d 436 (NY)	denied 11/26/12 (Smith, J.)
People v Barnes	App Div, 1st Dept: 2012 NY Slip Op 76447(U) (NY)	denied 11/19/12 (Ciparick, J.)
People v Bell	2d Dept: 82 AD3d 997 (Orange)	granted 11/26/12 (Smith, J.)
People v Bibbes	4th Dept: 98 AD3d 1267 (Erie)	denied 11/30/12 (Grafteo, J.)
People v Black	App Div, 4th Dept: 2012 NY Slip Op 81669(U) (Erie)	dismissed 11/1/12 (Pigott, J.)
People v Boone	2d Dept: 98 AD3d 629 (Queens)	denied 11/20/12 (Smith, J.)
People v Boulart	App Term, 1st Dept: 37 Misc 3d 127(A) (NY)	denied 11/26/12 (Smith, J.)
People v Brown	1st Dept: 90 AD3d 556 (Bronx)	denied 11/26/12 (Lippman, Ch. J.)
People v Bruno	3d Dept: 97 AD3d 986 (Washington)	denied 11/19/12 (Ciparick, J.)
People v Bullock	2d Dept: 98 AD3d 1133 (Kings)	denied 11/28/12 (Pigott, J.)
People v Butler	4th Dept: 96 AD3d 1367 (Ontario)	denied 11/27/12 (Lippman, Ch. J.)
People v Carncross	4th Dept: 98 AD3d 1325 (Onondaga)	denied 11/30/12 (Lippman, Ch. J.)
People v Charles	2d Dept: 97 AD3d 604 (Kings)	denied 11/28/12 (Lippman, Ch. J.)
People v Chmura (Victor)	County Ct, 7/10/12 (Sullivan)	denied 11/19/12 (Ciparick, J.)
People v Chmura (Victor)	County Ct, 9/6/12 (Sullivan)	dismissed 11/19/12 (Ciparick, J.)
People v Collucci	App Term, 1st Dept: 36 Misc 3d 145(A) (NY)	denied 11/30/12 (Lippman, Ch. J.)
People v Conceicao	App Term, 1st Dept: 33 Misc 3d 132(A) (Bronx)	denied* 11/27/12 (Ciparick, J.)
People v Conner	App Div, 4th Dept, 8/31/12 (Wayne)	dismissed 11/5/12 (Grafteo, J.)
People v Cono	1st Dept: 98 AD3d 894 (Bronx)	denied 11/27/12 (Read, J.)
People v Crawford	2d Dept: 96 AD3d 964 (Dutchess)	denied 11/26/12 (Smith, J.)
People v Cruz	4th Dept: 98 AD3d 1273 (Cayuga)	denied 11/30/12 (Lippman, Ch. J.)
People v Daniels	3d Dept: 97 AD3d 845 (Warren)	denied 11/19/12 (Read, J.)

* Motion for reconsideration is granted and, upon reconsideration, application for leave to appeal is denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Tyrell* (37 Misc 3d 16 [2012], *lv granted* 19 NY3d 1105 [2012]).

People v DeLeon	2d Dept: 99 AD3d 720 (Rockland)	denied 11/30/12 (Lippman, Ch. J.)
People v Derouchie	3d Dept: 98 AD3d 815 (St. Lawrence)	denied 11/29/12 (Grafteo, J.)
People v Diallo	App Div, 4th Dept: 2012 NY Slip Op 81673(U) (Monroe)	denied 11/19/12 (Ciparick, J.)
People v Dickens	2d Dept: 97 AD3d 837 (Kings)	denied 11/20/12 (Grafteo, J.)
People v Dilone	2d Dept: 98 AD3d 630 (Suffolk)	denied 11/19/12 (Lippman, Ch. J.)
People v Dizak	4th Dept: 93 AD3d 1182 (Monroe)	denied reconsideration 11/19/12 (Ciparick, J.)
People v Ekstra	App Term, 2d Dept, 9th & 10th Jud Dists: 36 Misc 3d 160(A) (Westchester)	denied 11/19/12 (Ciparick, J.)
People v Ellis	County Ct, 8/7/12 (Rensselaer)	dismissed 11/29/12 (Grafteo, J.)
People v English	County Ct, 7/9/12 (Erie)	denied 11/13/12 (Lippman, Ch. J.)
People v Feder	2d Dept: 96 AD3d 970 (Nassau)	dismissed 11/19/12 (Lippman, Ch. J.)
People v Flemming	App Div, 1st Dept: 2012 NY Slip Op 76452(U) (NY)	denied 11/19/12 (Ciparick, J.)
People v Flynn	App Div, 3d Dept: 2012 NY Slip Op 81783(U) (Clinton)	denied 11/19/12 (Ciparick, J.)
People v Gardner	1st Dept: 98 AD3d 901 (NY)	denied 11/30/12 (Grafteo, J.)
People v Gilchrist	4th Dept: 98 AD3d 1232 (Monroe)	denied 11/30/12 (Grafteo, J.)
People v Gilpin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 160(A) (Kings)	denied 11/29/12 (Grafteo, J.)
People v Goldblatt	3d Dept: 98 AD3d 817 (Warren)	denied 11/19/12 (Ciparick, J.)
People v Gonzalez (Hector)	4th Dept: 89 AD3d 1443 (Erie)	denied reconsideration 11/19/12 (Lippman, Ch. J.)
People v Gonzalez (Jose)	County Ct, 8/22/12 (Erie)	denied 11/26/12 (Pigott, J.)
People v Gordon	4th Dept: 98 AD3d 1230 (Chautauqua)	denied 11/30/12 (Grafteo, J.)
People v Grant	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 159(A) (Kings)	denied 11/26/12 (Pigott, J.)
People v Grice	3d Dept: 98 AD3d 755 (Clinton)	denied 11/19/12 (Ciparick, J.)
People v Griffin	2d Dept: 98 AD3d 688 (Suffolk)	denied 11/27/12 (Read, J.)
People v Guillory	4th Dept: 98 AD3d 835 (Onondaga)	denied 11/1/12 (Pigott, J.)

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People v Hackett	2d Dept: 93 AD3d 807 (Suffolk)	denied 11/29/12 (Smith, J.)
People v Harvey	3d Dept: 96 AD3d 1098 (Albany)	denied 11/27/12 (Lippman, Ch. J.)
People v Hernandez	App Term, 1st Dept: 36 Misc 3d 145(A) (NY)	denied 11/20/12 (Pigott, J.)
People v Holt	4th Dept: 93 AD3d 1304 (Onondaga)	denied 11/27/12 (Lippman, Ch. J.)
People v Hsu	2d Dept: 97 AD3d 603 (Dutchess)	denied 11/13/12 (Lippman, Ch. J.)
People v Hunter	4th Dept: 98 AD3d 835 (Onondaga)	denied 11/1/12 (Pigott, J.)
People v "Indio"	4th Dept: 89 AD3d 1443 (Erie)	denied reconsideration 11/19/12 (Lippman, Ch. J.)
People v Jackson	App Div, 1st Dept: 2012 NY Slip Op 79645(U) (NY)	denied 11/21/12 (Pigott, J.)
People v Johnson	App Div, 4th Dept, 4/3/12 (Monroe)	denied reconsideration 11/19/12 (Ciparick, J.)
People v Kenrick	2d Dept: 97 AD3d 604 (Kings)	denied 11/28/12 (Lippman, Ch. J.)
People v Kerr	2d Dept: 97 AD3d 764 (Kings)	denied 11/27/12 (Read, J.)
People v Kinard	2d Dept: 96 AD3d 976 (Nassau)	denied 11/27/12 (Lippman, Ch. J.)
People v Kyser	4th Dept: 91 AD3d 1276 (Oneida)	denied 11/19/12 (Read, J.)
People v Lanorith	2d Dept: 97 AD3d 765 (Richmond)	denied 11/28/12 (Lippman, Ch. J.)
People v Leach	2d Dept: 90 AD3d 1072 (Kings)	denied reconsideration 11/30/12 (Lippman, Ch. J.)
People v Leon	2d Dept: 98 AD3d 1065 (Suffolk)	denied 11/19/12 (Ciparick, J.)
People v Lewin	App Div, 2d Dept: 2012 NY Slip Op 84830(U) (Kings)	dismissed 11/29/12 (Grafteo, J.)
People v "Lite"	2d Dept: 98 AD3d 693 (Dutchess)	denied 11/30/12 (Grafteo, J.)
People v Lopez	2d Dept: 98 AD3d 1135 (Kings)	denied 11/30/12 (Grafteo, J.)
People v Lynch	App Term, 1st Dept: 36 Misc 3d 155(A) (NY)	denied 11/20/12 (Smith, J.)
People v Martinez	1st Dept: 98 AD3d 894 (Bronx)	denied 11/27/12 (Read, J.)
People v McCoy	2d Dept: 98 AD3d 1135 (Queens)	denied 11/27/12 (Read, J.)

People v McFadden	App Div, 3d Dept: 2012 NY Slip Op 82343(U) (Schenectady)	denied 11/26/12 (Smith, J.)
People v McNear (Samuel)	4th Dept: 94 AD3d 1480 (Genesee)	dismissed 11/19/12 (Ciparick, J.)
People v McNear (Samuel)	4th Dept: 96 AD3d 1702 (Genesee)	denied 11/19/12 (Ciparick, J.)
People v McRobbie	3d Dept: 97 AD3d 970 (St. Lawrence)	denied 11/19/12 (Ciparick, J.)
People v Mears	App Div, 1st Dept: 2012 NY Slip Op 62383(U) (NY)	denied reconsideration 11/19/12 (Ciparick, J.)
People v Missimer	App Div, 3d Dept: 2012 NY Slip Op 81781(U) (Schenectady)	denied 11/1/12 (Pigott, J.)
People v Mohamed	4th Dept: 94 AD3d 1462 (Erie)	denied reconsideration 11/30/12 (Lippman, Ch. J.)
People v Molina	2d Dept: 98 AD3d 751 (Richmond)	denied 11/19/12 (Ciparick, J.)
People v Morency	2d Dept: 93 AD3d 736 (Kings)	denied 11/5/12 (Smith, J.)
People v Morrison	4th Dept: 90 AD3d 1554 (Oneida)	denied reconsideration 11/30/12 (Grafteo, J.)
People v Mosby	App Div, 3d Dept: 2012 NY Slip Op 79996(U) (Tompkins)	denied 11/30/12 (Lippman, Ch. J.)
People v Nyenekor	App Div, 2d Dept: 2012 NY Slip Op 82011(U) (Orange)	withdrawn 11/5/12 (Smith, J.)
People v Orlando	2d Dept: 98 AD3d 691 (Nassau)	denied 11/27/12 (Read, J.)
People v O'Toole	1st Dept: 96 AD3d 435 (NY)	granted 11/20/12 (Pigott, J.)
People v Pabellon	1st Dept: 91 AD3d 484 (Bronx)	denied 11/26/12 (Lippman, Ch. J.)
People v Padilla	App Div, 2d Dept: 2012 NY Slip Op 81568(U) (Nassau)	dismissed 11/5/12 (Grafteo, J.)
People v Pagan	3d Dept: 97 AD3d 963 (Fulton)	denied 11/27/12 (Read, J.)
People v Patel	2d Dept: 97 AD3d 701 (Queens)	granted 11/27/12 (Pigott, J.)
People v Pena	1st Dept: 95 AD3d 541 (NY)	denied 11/9/12 (Pigott, J.)
People v Pennix	1st Dept: 99 AD3d 420 (NY)	denied 11/30/12 (Lippman, Ch. J.)
People v Peterkin	App Div, 3d Dept: 2012 NY Slip Op 82343(U) (Schenectady)	denied 11/26/12 (Smith, J.)
People v Peters	2d Dept: 98 AD3d 587 (Kings)	denied 11/20/12 (Pigott, J.)

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People v Pierre	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 158(A) (Kings)	denied 11/28/12 (Pigott, J.)
People v Pooler	2d Dept: 98 AD3d 751 (Nassau)	denied 11/19/12 (Ciparick, J.)
People v Redmon	2d Dept: 98 AD3d 752 (Kings)	denied 11/20/12 (Pigott, J.)
People v Reyes	App Div, 2d Dept: 2012 NY Slip Op 80130(U) (Queens)	dismissed 11/1/12 (Pigott, J.)
People v Richins	App Div, 3d Dept: 2012 NY Slip Op 82378(U) (Albany)	denied 11/29/12 (Grafteo, J.)
People v Riley	3d Dept: 97 AD3d 982 (Warren)	denied 11/29/12 (Grafteo, J.)
People v Rivera (Christopher)	2d Dept: 97 AD3d 704 (Queens)	denied 11/19/12 (Ciparick, J.)
People v Rivera (Dennis)	App Term, 1st Dept: 36 Misc 3d 156(A) (NY)	denied 11/26/12 (Pigott, J.)
People v Rivera (Hector)	2d Dept: 98 AD3d 529 (Kings)	denied 11/27/12 (Read, J.)
People v Rodney	2d Dept: 96 AD3d 880 (Queens)	denied 11/27/12 (Read, J.)
People v Rodriguez (Eduardo)	2d Dept: 98 AD3d 693 (Dutchess)	denied 11/30/12 (Grafteo, J.)
People v Rodriguez (Luis)	2d Dept: 98 AD3d 530 (Kings)	denied 11/26/12 (Smith, J.)
People v Rosario (Carlos)	1st Dept: 93 AD3d 605 (Bronx)	denied reconsideration 11/19/12 (Pigott, J.)
People v Rosario (Leonardo)	App Div, 2d Dept: 2012 NY Slip Op 78552(U) (Nassau)	dismissed 11/5/12 (Grafteo, J.)
People v Ross	3d Dept: 97 AD3d 843 (Chemung)	denied 11/19/12 (Ciparick, J.)
People v Salerno	App Term, 2d Dept, 9th & 10th Jud Dists: 36 Misc 3d 151(A) (Nassau)	denied 11/19/12 (Ciparick, J.)
People v Sandstrom	2d Dept: 98 AD3d 633 (Suffolk)	denied 11/19/12 (Ciparick, J.)
People v Santiago	2d Dept: 97 AD3d 704 (Dutchess)	granted 11/26/12 (Lippman, Ch. J.)
People v Santos	2d Dept: 98 AD3d 590 (Kings)	denied 11/19/12 (Read, J.)
People v Simmons	2d Dept: 97 AD3d 842 (Kings)	denied 11/19/12 (Ciparick, J.)
People v Smith	3d Dept: 96 AD3d 1088 (Chemung)	denied 11/27/12 (Lippman, Ch. J.)
People v Stemples	County Ct, 36 Misc 3d 1232(A) (St. Lawrence)	denied 11/20/12 (Smith, J.)
People v Stewart	2d Dept: 96 AD3d 880 (Kings)	denied reconsideration 11/26/12 (Smith, J.)
People v Sweeney	2d Dept: 92 AD3d 810 (Queens)	denied 11/5/12 (Smith, J.)

People v Walker (Carlton)	App Div, 2d Dept: 2012 NY Slip Op 84553(U) (Queens)	dismissed 11/27/12 (Read, J.)
People v Walker (Taska)	County Ct, 8/22/12 (Erie)	denied 11/26/12 (Smith, J.)
People v Walls	App Div, 2d Dept, 7/13/12 (Kings)	denied reconsideration 11/29/12 (Grafteo, J.)
People v Weir	4th Dept: 96 AD3d 1486 (Jefferson)	denied 11/19/12 (Read, J.)
People v White	County Ct, 8/31/12 (Monroe)	denied 11/19/12 (Ciparick, J.)
People v Williams	2d Dept: 96 AD3d 1082 (Kings)	denied 11/27/12 (Read, J.)
People v Zapata	2d Dept: 98 AD3d 539 (Queens)	denied 11/28/12 (Lippman, Ch. J.)

[982 NE2d 590, 958 NYS2d 670]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MICHAEL
Mox, Respondent.

Argued November 13, 2012; decided December 11, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered May 6, 2011. The Appellate Division (1) reversed, on the law, a judgment of the Monroe County Court (Richard A. Keenan, J.), which had convicted defendant, upon his plea of guilty, of manslaughter in the first degree, (2) vacated the plea, and (3) remitted the matter to County Court for further proceedings on the indictment.

People v Mox, 84 AD3d 1723, affirmed.

HEADNOTE

Crimes — Plea of Guilty — Sufficiency of Allocution — Duty to Inquire into Possible Insanity Defense

In a homicide prosecution, the trial court erred in accepting defendant's guilty plea to first-degree manslaughter where defendant stated at the plea allocution that he was "in a psychotic state" and "hearing voices" on the day of the crime. When, during a plea allocution, the defendant's recitation of the facts underlying the crime pleaded to clearly casts significant doubt upon the defendant's guilt or otherwise calls into question the voluntariness of the plea, the trial court has a duty to inquire further to ensure the guilty plea is knowing and voluntary. Defendant's statements signaled that he may have been suffering from a mental disease or defect at the time of the crime and,

consequently, was unable to form the intent necessary to commit first-degree manslaughter. The trial court therefore had a duty to inquire whether defendant's decision to waive a potentially viable insanity defense was an informed one such that his guilty plea was knowing and voluntary. The court's single question to defendant verifying that he had discussed that defense with his attorney and opted not to assert it was insufficient to meet that obligation.

APPEARANCES OF COUNSEL

Sandra Doorley, District Attorney, Rochester (Geoffrey Kaeuper of counsel), for appellant.

Easton Thompson Kasperek Shiffryn LLP, Rochester (William T. Easton of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

A Monroe County grand jury returned an indictment charging defendant with the crime of murder in the second degree (Penal Law § 125.25 [1]) for the killing of his elderly father. The indictment alleged that defendant caused his father's death by stabbing him and striking him in the head with a blunt instrument. Defendant had a documented history of mental illness and had been hospitalized in psychiatric treatment for much of the year preceding his father's death.

After approximately six months of psychiatric hospitalization, defendant was declared competent to stand trial pursuant to CPL article 730. Defendant had filed a notice of intent to present psychiatric evidence, pursuant to CPL 250.10, to demonstrate that, at the time of the alleged crime, he suffered from a mental disease or defect. While both defendant's and the People's psychiatrists concluded that defendant suffered from schizophrenia or schizoaffective disorder, the experts disagreed as to whether the condition rendered defendant unable to appreciate the nature or wrongfulness of his conduct. The People's psychiatrist, however, did find support for the affirmative defense of extreme emotional disturbance. The People subsequently offered a plea to the lesser included offense of manslaughter in the first degree under a theory of extreme emotional disturbance (Penal Law § 125.20 [2]) with a determinate sentence of 25 years plus five years' postrelease supervision and a waiver of the right to appeal. Defendant accepted the offer and pleaded guilty.

During the plea colloquy before County Court, defendant stated that on the day of the crime, he was "hearing voices"

and feeling painful bodily sensations, was “in a psychotic state” and had not taken his prescribed medication for several days. County Court accepted defendant’s plea. Immediately following, defense counsel informed County Court that she had discussed “the potential defense of not guilty by reason of mental disease or defect with [defendant] at length and that he was willing to forgo that defense in order to accept this plea.” County Court asked defendant if that was correct, and defendant replied, “Yes.” The court did not inquire further. Represented by new counsel, defendant moved before sentencing to withdraw his plea pursuant to CPL 220.60. County Court denied the motion and sentenced defendant in accordance with the terms of the plea agreement.

With one Justice dissenting, the Appellate Division reversed defendant’s conviction, holding that defendant’s plea allocution raised doubts as to his guilt of first-degree manslaughter as it tended to negate the intent element of that crime. The majority further held that County Court failed to fulfill its duty to make further inquiry to ensure the plea was knowing and voluntary (see *People v Mox*, 84 AD3d 1723, 1724 [4th Dept 2011]).

“[W]hen a criminal defendant waives the fundamental right to trial by jury and pleads guilty, due process requires that the waiver be knowing, voluntary and intelligent” (*People v Hill*, 9 NY3d 189, 191 [2007], citing NY Const, art I, § 6). “[N]o catechism is required in connection with the acceptance of a plea” (*People v Goldstein*, 12 NY3d 295, 301 [2009]). However, “where the defendant’s recitation of the facts underlying the crime pleaded to clearly casts significant doubt upon the defendant’s guilt or otherwise calls into question the voluntariness of the plea, . . . the trial court has a duty to inquire further to ensure [the] guilty plea is knowing and voluntary” (*People v Lopez*, 71 NY2d 662, 666 [1988]; see *People v Serrano*, 15 NY2d 304, 308 [1965] [“the requisite elements should appear from the defendant’s own (factual) recital”]). Accordingly, “[w]here the court fails in this duty and accepts the plea without further inquiry, the defendant may challenge the sufficiency of the allocution on direct appeal” despite failing to do so in the form of a “postallocation motion” (*Lopez*, 71 NY2d at 666).

Here, defendant’s statements that he was “in a psychotic state” and “hearing voices” on the day of the crime signaled that he may have been suffering from a mental disease or defect at that time and, consequently, was unable to form the intent necessary to commit first-degree manslaughter under Penal

Law § 125.20 (2) (*see* Penal Law § 40.15; *People v Almonor*, 93 NY2d 571, 580 [1999] [the affirmative defense of insanity “contemplates that as a result of mental disease or defect, the defendant lacks substantial capacity to know or appreciate either the nature and consequences of such conduct or that such conduct was wrong”]). County Court therefore had a duty under *Lopez* and *Serrano* to inquire further into whether defendant’s decision to waive a potentially viable insanity defense was an informed one such that his guilty plea was knowing and voluntary.* The court’s single question to defendant verifying that he discussed that defense with his attorney and opted not to assert it was insufficient to meet that obligation. Thus, County Court erred in accepting defendant’s guilty plea (*see Lopez*, 71 NY2d at 666).

SMITH, J. (dissenting). This Court, speaking through Judge Breitel, observed 45 years ago that plea allocutions are best evaluated through “a sound discretion exercised in cases on an individual basis” rather than by “a uniform procedure which, like as not, would become a purely ritualistic device” (*People v Nixon*, 21 NY2d 338, 355 [1967]). The majority today forgets this wise admonition and erects the rule of *People v Lopez* (71 NY2d 662 [1988]) into a rigid requirement that a guilty plea must be vacated when the words spoken in the allocution leave significant doubt as to the defendant’s guilt. This case is a good illustration of why such rigid rules are unwise.

I agree with the majority that defendant’s allocution here, in which he said among other things that, when he killed his father, he was “hearing voices,” was “off [his] medication” and was “in a psychotic state,” left open the possibility that he could be found by a jury to have been legally insane. The record makes quite clear, however, that defendant was aware of the possibility of an insanity defense, had discussed it with his lawyer, and had decided to forgo it after a negotiation in which the People agreed to accept the partial defense of “extreme emotional disturbance,” reducing what would otherwise be a

* The dissent opines that we have enacted a “requirement that a guilty plea must be vacated when the words spoken in the allocution leave significant doubt as to the defendant’s guilt” (dissenting op at 939). But that statement overlooks the crux of *Lopez* and of our holding today: Vacatur is warranted where such doubt is raised *and* the trial court takes no or inadequate measures to resolve it and ensure that the defendant’s plea is knowing and voluntary. The burden of further inquiry that *Lopez* places on the trial judge, even one who is “harried [and] calender-conscious” (dissenting op at 940, quoting *Nixon*, 21 NY2d at 354), is minimal.

murder to a manslaughter conviction (*see* Penal Law §§ 125.25 [1] [a]; 125.20 [2]). I see no reason why defendant was not free to make that choice, or why he should not now be bound by the terms of his plea bargain.

The Appellate Division found this to be “one of those rare cases” mentioned in *Lopez* in which the allocution “cast[s] significant doubt upon the defendant’s guilt” (*see People v Mox*, 84 AD3d 1723, 1724 [4th Dept 2011], quoting *Lopez*, 71 NY2d at 666), and the majority here apparently agrees. But the words of *Lopez* should be read in their full context:

“In that rare case, however, where the defendant’s recitation of the facts underlying the crime pleaded to clearly casts significant doubt upon the defendant’s guilt or *otherwise calls into question the voluntariness of the plea*, we have held that the trial court has a duty to inquire further *to ensure that defendant’s guilty plea is knowing and voluntary*” (71 NY2d at 666 [emphasis added]).

Thus the *Lopez* rule was designed as a safeguard to be sure that the defendant made a well-informed and voluntary choice to plead guilty; where he clearly did make such a choice, *Lopez* should not be used to invalidate the plea.

A rule that an allocution may never cast “significant doubt upon the defendant’s guilt” will often be unworkable in the case where a defendant has mental problems that may or may not rise to the level of insanity. The question of whether a defendant was legally insane or merely extremely emotionally disturbed is usually less simple than the question of whether he did or did not do the act of which he is accused. At a trial, the question of whether a defendant was insane is one to be decided by the factfinder, usually with the help of expert psychiatric evidence. It is hard to see how it can, in most cases, be resolved simply by questioning the defendant about his own, indisputably impaired, mental state. And it is particularly true, in cases of this kind, that the advice of the defense lawyer—which will generally be informed, as it was here, by expert reports—is more valuable than the allocution in assuring the voluntariness of a plea. To quote again Judge Breitel’s opinion in *Nixon*:

“[I]f independent and good advice in the interest of the defendant is the goal, it is more important that he consult with competent counsel than that a harried, calendar-conscious Judge be the one to perform

the function in displacement of the lawyer” (21 NY2d at 354).

The record here shows that defendant made a knowing and voluntary decision, after discussion with his lawyer, to plead guilty to a reduced charge. His guilty plea should be reinstated.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and PIGOTT concur; Judge SMITH dissents in an opinion.

Order affirmed, in a memorandum.

[982 NE2d 587, 958 NYS2d 667]

In the Matter of STATE OF NEW YORK, Respondent, v JOHN P, Appellant.

Argued November 13, 2012; decided December 11, 2012

SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 28, 2011. The Appellate Division affirmed an order and judgment (one paper) of the Supreme Court, Suffolk County (Mark D. Cohen, J.), entered in a proceeding pursuant to Mental Hygiene Law article 10, which upon a finding, made after a nonjury trial, that appellant suffered from a mental abnormality as defined in Mental Hygiene Law § 10.03 (i), and upon a determination, made after a dispositional hearing, that appellant was a dangerous sex offender requiring civil confinement, had granted the petition for civil management and directed that appellant be committed to a secure treatment facility for care, treatment, and control until such time he no longer required confinement.

Matter of State of New York v John P., 85 AD3d 1189, affirmed.

HEADNOTES

Crimes — Sex Offenders — Civil Commitment or Supervision — Statutory Right to Counsel

1. In a proceeding under Mental Hygiene Law article 10 in which appellant was found to be a dangerous sex offender requiring confinement, his statutory right to counsel was not violated by the admission into evidence of appellant's statement to a psychologist, during a screening examination at which appellant had no counsel, that he had had sexual contact with three children in addition to those mentioned in the records of his crimes. Appellant's statement

was relevant and no statute barred its use. Mental Hygiene Law § 10.06 (c) and (d) say that the court “shall appoint counsel” for a person against whom an article 10 proceeding is brought either “[p]romptly upon the filing of a sex offender civil management petition” or upon a request to the court by the Attorney General to order a psychiatric evaluation. Mental Hygiene Law § 10.08 (g) specifically says “that the respondent shall not be entitled to appointment of counsel prior to the time provided in section 10.06.” The psychiatric examination at issue was held before the petition was filed, and before the case had been referred to the Attorney General. It was not a court-ordered examination, but part of the process required by statute to identify those cases in which article 10 proceedings should be brought.

Crimes — Sex Offenders — Civil Commitment or Supervision — Constitutional Right to Counsel

2. In a proceeding under Mental Hygiene Law article 10 in which appellant was found to be a dangerous sex offender requiring confinement, his constitutional right to counsel was not violated by the admission into evidence of appellant’s statement to a psychologist, during a screening examination at which appellant had no counsel, that he had had sexual contact with three children in addition to those mentioned in the records of his crimes. At the time of his examination appellant’s right to counsel had not attached. Neither the State nor the Federal Constitution forbids any questioning without counsel of anyone against whom a proceeding may later be brought. The psychiatric examination of appellant not only preceded the commencement of a formal adversarial proceeding, it occurred before any decision to bring such a proceeding was made. Moreover, there was nothing in the record to suggest that the screening was a sham—a mere cover for an effort to gather evidence against appellant. The examination was not ordered by a court, and appellant was not required to participate in it. The examination was not fundamentally an adversarial procedure, and was not one in which counsel was necessary to protect appellant against the coercive power of the State and its agents.

APPEARANCES OF COUNSEL

Lesley M. Delia, Mental Hygiene Legal Service, Mineola (Scott M. Wells and Dennis B. Feld of counsel), for appellant.

Eric T. Schneiderman, Attorney General, New York City (Matthew W. Grieco, Barbara D. Underwood and Cecelia C. Chang of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

In this proceeding under Mental Hygiene Law article 10 (the Sex Offender Management and Treatment Act), appellant was found to be a dangerous sex offender requiring confinement. The evidence offered by the State included the testimony of a psychologist who had examined appellant as part of a screening process to decide whether an article 10 petition should be filed. Such examinations are authorized by Mental Hygiene Law

§ 10.05 (e), which says that where a detained sex offender is referred to a “case review team” for evaluation, the case review team “may arrange for a psychiatric examination.” The psychologist testified that, during the examination, appellant had admitted to having sexual contact with three children in addition to those mentioned in the records of appellant’s sex crimes.

Appellant argues that his statement to the psychologist should not have been admitted into evidence. But it was obviously relevant, and no statute prohibits its use. Appellant offers no reason that would justify excluding it except his contention that, because he had no counsel at the psychologist’s examination, the use of his statement violated his statutory and constitutional rights to counsel. We hold that these rights were not violated.

[1] Appellant’s statutory claim is barred by the plain text of article 10. Mental Hygiene Law § 10.06 (c) and (d) say that the court “shall appoint counsel” for a person against whom an article 10 proceeding is brought either “[p]romptly upon the filing of a sex offender civil management petition” or upon a request to the court by the Attorney General to order a psychiatric evaluation. Section 10.08 (g) specifically says “that the respondent shall not be entitled to appointment of counsel prior to the time provided in section 10.06.” The psychiatric examination at issue here was held before the petition was filed, and before the case had been referred to the Attorney General; it was not a court-ordered examination, but part of the process required by statute to identify those cases in which article 10 proceedings should be brought. Appellant had no statutory right to counsel at the examination.

[2] Appellant’s constitutional claim is also lacking in merit. We need not decide here whether there exists a constitutional right to counsel in article 10 proceedings that is similar to, or coextensive with, the right to counsel in criminal cases, because even under the rules applicable to criminal cases appellant’s rights were not violated.

Under the Federal Constitution, the right to counsel “attaches only at or after the time that adversary judicial proceedings have been initiated” (*Kirby v Illinois*, 406 US 682, 688 [1972]). Under the State Constitution,

“attachment occurs when (1) a person in custody requests the assistance of an attorney or a lawyer

enters the case or (2) a criminal proceeding is commenced against the defendant by the filing of an accusatory instrument” (*People v Lopez*, 16 NY3d 375, 380 [2011]).

At the time of the examination at issue here, appellant’s right had not attached under either the federal or the state test.

Appellant reads *People v Hawkins* (55 NY2d 474 [1982]), in which we rejected the argument that a right to counsel should exist at *lineups* held before the commencement of formal criminal proceedings, to imply that there might be a different rule for pre-commencement *interrogations*; we pointed out in *Hawkins* that the role of counsel at an interrogation is much more significant than at a lineup (*id.* at 485). But whatever inferences might be drawn from *Hawkins*, it cannot mean that either the Sixth Amendment to the Federal Constitution or its New York counterpart (NY Const, art I, § 6) forbids any questioning without counsel of anyone against whom a proceeding may later be brought. And short of such an unacceptably broad holding, we can see no rationale for concluding that counsel was required here.

The psychiatric examination of appellant not only preceded the commencement of a formal adversarial proceeding; it occurred before any decision to bring such a proceeding was made, and was part of a screening process. Appellant does not assert, and nothing in the record suggests, that the screening was a sham—a mere cover for an effort to gather evidence against him. Indeed, the State informs us that article 10 proceedings are brought only in a minority of the cases evaluated by case review teams. The examination was not ordered by a court, and appellant was not required to participate in it (*compare* Mental Hygiene Law § 10.06 [d] [“(T)he court shall order that the respondent submit to an evaluation by a psychiatric examiner chosen by the attorney general”] *with* § 10.05 [e] [omitting similar mandatory language]; *see* *Mental Hygiene Legal Serv. v Cuomo*, 785 F Supp 2d 205, 228 [SD NY 2011], *vacated on other grounds sub nom. Mental Hygiene Legal Servs. v Schneiderman*, 472 Fed Appx 45 [2d Cir 2012]; *Matter of State of New York v Doe*, 26 Misc 3d 962, 965-966 [Sup Ct, Franklin County 2009], *revd on other grounds sub nom. Matter of State of New York v Daniel OO.*, 88 AD3d 212 [3d Dept 2011]). This was not fundamentally an adversarial procedure, and was not one in which counsel was necessary to protect appellant against “the coercive power of the State and its agents” (*Hawkins*, 55 NY2d at 485 [internal quotation marks and citation omitted]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, without costs, in a memorandum.

[982 NE2d 81, 958 NYS2d 319]

MUSA CALLISTRO, an Infant, by His Mother and Natural Guardian, JESSICA RIVERA, Appellant, v MICHAEL W. BEBBINGTON, M.D., et al., Respondents.

Decided December 11, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 3, 2012. The Appellate Division (1) affirmed a judgment of the Supreme Court, Bronx County (Howard H. Sherman, J.), which had dismissed the complaint, and (2) dismissed, as subsumed in the appeal from the judgment, an appeal from an order of the same Supreme Court which had granted defendants' motion for summary judgment. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the judgment of the Supreme Court and dismissed the appeal from an order of the same Court as subsumed in the appeal from the aforesaid judgment, properly made?"

Plaintiff claimed that defendants deviated from good and accepted medical practice by failing to perform a cesarean section during his birth and that that failure caused him to sustain a hypoxic event, which was responsible for expressive and language deficits and a developmental disorder that were diagnosed when he was about 4^{1/2} years old. The trial court granted defendants' motion for summary judgment primarily on the grounds that expert evidence disclosed that no hypoxic event occurred during plaintiff's birth, and that plaintiff failed to raise a triable issue of fact because his main expert was unqualified to give an opinion, pursuant to the "locality rule." The Appellate Division concluded that while the locality rule may not have applied, defendants were correctly granted summary judgment because plaintiff did not raise factual issues as to either a departure or a resulting injury.

Callistro v Bebbington, 94 AD3d 408, affirmed.

HEADNOTE**Physicians and Surgeons — Malpractice — Causation**

The complaint was properly dismissed in a medical malpractice action since plaintiff failed to raise a triable issue of fact concerning whether defendants' alleged malpractice in failing to perform a caesarean section rather than a vaginal delivery was the cause of plaintiff child's alleged cognitive, receptive, and expressive deficits and developmental disability.

APPEARANCES OF COUNSEL

Law Offices of Fitzgerald & Fitzgerald, P.C., Yonkers (*John M. Daly* of counsel), for appellant.

Heidell, Pittoni, Murphy & Bach, LLP, New York City (*Daniel S. Ratner* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered on the ground that it is unnecessary. Plaintiff failed to raise a triable issue of fact concerning whether defendants' alleged malpractice in failing to perform a caesarean section rather than a vaginal delivery was the cause of the child's alleged cognitive, receptive, and expressive deficits and developmental disability.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

[982 NE2d 594, 958 NYS2d 674]

In the Matter of STRAY FROM THE HEART, INC., Appellant, v
DEPARTMENT OF HEALTH AND MENTAL HYGIENE OF THE CITY
OF NEW YORK et al., Respondents.

Argued November 13, 2012; decided December 11, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 19, 2011. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, New York County (Marilyn Shafer, J.; op 25 Misc 3d 1214[A], 2009 NY Slip Op 52092[U] [2009]), entered in a proceeding pursuant to CPLR article 78, which had granted a petition to compel respondents to comply with their obligation under the

City Animal Shelters and Sterilization Act (former Administrative Code of City of NY § 17-801) to provide full-service animal shelters in all five boroughs of New York City, and had ordered the issue of the calculation of incidental damages payable to petitioner referred to a special referee, (2) denied the petition, and (3) dismissed the proceeding for lack of standing.

Matter of Stray from the Heart, Inc. v Department of Health & Mental Hygiene of the City of N.Y., 83 AD3d 521, affirmed.

HEADNOTE

Animals — Animal Rights — Animal Shelters and Sterilization Act — Private Right of Action — Animal Rescue Organization

Petitioner animal rescue organization, which alleged that it had done work and bore costs that allegedly would have been unnecessary if defendant City had fulfilled its duty under the Animal Shelters and Sterilization Act (former Administrative Code of City of NY § 17-801), had no private right of action for money damages. When a statute or local law does not expressly authorize a private right of action, the inquiry is whether the plaintiff is one of the class for whose particular benefit the law was enacted, whether recognition of a private right of action would promote the legislative purpose, and whether creation of such a right would be consistent with the legislative scheme. The Animal Shelters and Sterilization Act was enacted for the benefit of the general public in New York City and for the safety of unwanted dogs and cats and petitioner did not belong to the class for whose specific benefit the law was enacted.

APPEARANCES OF COUNSEL

Kaye Scholer LLP, New York City (*Catherine St. John*, *H. Peter Haveles, Jr.*, *Juan Garcia* and *Joseph Clark* of counsel), for appellant.

Michael A. Cardozo, *Corporation Counsel*, New York City (*Avshalom Yotam*, *Karen M. Griffin* and *Francis F. Caputo* of counsel), for respondents.

Jimmy Yan, *General Counsel*, *Office of the Manhattan Borough President*, New York City, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

When a statute or local law does not expressly authorize a private right of action, the inquiry becomes whether the plaintiff is one of the class for whose particular benefit the law was enacted, whether recognition of a private right of action would promote the legislative purpose, and whether creation of such a right would be consistent with the legislative scheme (*see Uhr v*

East Greenbush Cent. School Dist., 94 NY2d 32, 38 [1999]). It is clear from the legislative findings here (former Administrative Code of City of NY § 17-801) that the Animal Shelters and Sterilization Act was enacted for the benefit of the general public in New York City and for the safety of unwanted dogs and cats. Petitioner, an animal rescue organization “whose mission is to rescue, rehabilitate and place homeless dogs with loving new families,” does not belong to the class for whose specific benefit the law was enacted. Rather, petitioner alleges that it did work and bore costs that would have been unnecessary if the City had fulfilled the duty enjoined upon it by operation of that law. While petitioner’s work is commendable, the law does not provide for damages under such circumstances. Assuming, without deciding, that petitioner had standing to seek enforcement of the Animal Shelters and Sterilization Act, it has no private right of action for money damages, the only relief it seeks on this appeal.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, with costs, in a memorandum.

ACCURATE REALTY, LLC, Respondent, v SAMUEL C. DONADIO et al., Appellants.

Submitted August 20, 2012; decided December 11, 2012

Reported below, 80 AD3d 1041.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Items of relief sought in the first cause of action remain pending.

CEDARWOODS CRE CDO II, LTD., et al., Appellants, v GALANTE HOLDINGS, INC., et al., Respondents, et al., Defendants.

Submitted October 1, 2012; decided December 11, 2012

Reported below, 96 AD3d 581.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BRENDA CORNELL, Respondent, v 360 WEST 51ST STREET REALTY, LLC, et al., Defendants, and 360 W. 51ST STREET CORP., Appellant.

Submitted November 5, 2012; decided December 11, 2012

Reported below, 95 AD3d 50.

Motion to dismiss appeal denied.

In the Matter of MICHAEL A. CUNNINGHAM, Appellant, v NEW YORK STATE DEPARTMENT OF LABOR, Respondent.

Submitted October 29, 2012; decided December 11, 2012

Reported below, 89 AD3d 1347.

Motion to dismiss appeal etc. denied.

In the Matter of GREGORY A. GOODWINE, SR., Appellant, v WILLIAM A. LEE, Respondent.

Submitted October 1, 2012; decided December 11, 2012

Reported below, 2012 NY Slip Op 77630(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SHAWN G. GRANGER, Respondent, v DANIELLE D. MISERCOLA, Appellant.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 96 AD3d 1694.

Motion for a stay granted.

In the Matter of LYDIA D., Respondent, v THOMAS B., IV, Appellant.

Submitted October 1, 2012; decided December 11, 2012

Reported below, 89 AD3d 630.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARKO S., Also Known as MARKO ALEXANDER S. and Another,
Respondent, v HEATHER S., Also Known as HEATHER KIM
S., Appellant.

Submitted July 23, 2012; decided December 11, 2012

Reported below, 2012 NY Slip Op 67049(U).

Motion for reargument denied [*see* 19 NY3d 875 (2012)].

SHARLENE MCKENZIE, as Executrix of OSCAR MCKENZIE, JR.,
Deceased, Appellant, v ONONDAGA COUNTY et al., Respon-
dents.

Submitted August 20, 2012; decided December 11, 2012

Reported below, 94 AD3d 1524.

Motion to vacate this Court's July 27, 2012 dismissal order granted [*see* 19 NY3d 970 (2012)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of M.G.M. INSULATION, INC., et al., Appellants, v
COLLEEN C. GARDNER, as Commissioner of Labor, Respon-
dent.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 86 AD3d 812.

Motion by New York State Council of the National Electrical Contractors Association Chapters for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of MORRIS BUILDERS, LP, et al., Respondents, v
EMPIRE ZONE DESIGNATION BOARD et al., Appellants.

Submitted October 29, 2012; decided December 11, 2012

Reported below, 95 AD3d 1381.

Motion to strike addendum to appellants' brief and references thereto in appellants' brief granted and this material is deemed stricken.

LISA M. OAKES, Individually and as Executrix of DANIEL C. OAKES, Deceased, Respondent, v RAJNIKANT PATEL, M.D., et al., Appellants.

Submitted September 10, 2012; decided December 11, 2012

Reported below, 87 AD3d 816.

Motion to strike denied.

JAMES PAROLISI, Appellant, et al., Plaintiffs, v JANET SLAVIN, Respondent.

Submitted September 10, 2012; decided December 11, 2012

Reported below, 98 AD3d 488.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVIS D. BAKER, Appellant.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 82 AD3d 1656.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH HARRIS, Appellant.

Submitted November 26, 2012; decided December 11, 2012

Reported below, 96 AD3d 502.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place,

Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN JOHNSON, Appellant.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 88 AD3d 503.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT PEALER, Appellant.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 89 AD3d 1504.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRENDAN J. RHODES, Appellant.

Submitted November 19, 2012; decided December 11, 2012

Reported below, 91 AD3d 1280.

Motion for assignment of counsel granted and John A. Cirando, Esq., care of D.J. & J.A. Cirando, Esqs., 101 South Salina Street, Suite 1010, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v SIDNEY WISDOM, Respondent.

Submitted December 10, 2012; decided December 11, 2012

Reported below, 98 AD3d 241.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

In the Matter of the Arbitration between SHENENDEHOWA CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION, Appellant, and CIVIL SERVICE EMPLOYEES ASSOCIATION, INC., LOCAL 1000, AFSCME, AFL-CIO, LOCAL 864, et al., Respondents.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 90 AD3d 1114.

Motion by New York State School Boards Association, Inc., et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of the Arbitration between SHENENDEHOWA CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION, Appellant, and CIVIL SERVICE EMPLOYEES ASSOCIATION, INC., LOCAL 1000, AFSCME, AFL-CIO, LOCAL 864, et al., Respondents.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 90 AD3d 1114.

Motion by New York State United Teachers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

UNITED STATES FIDELITY & GUARANTY COMPANY et al., Respondents, v AMERICAN RE-INSURANCE COMPANY et al., Appellants, et al., Defendants.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 93 AD3d 14.

Motion by Complex Insurance Claims Litigation Association et al. for leave to file a brief amici curiae on the appeal herein denied.

Chief Judge LIPPMAN taking no part.

UNITED STATES FIDELITY & GUARANTY COMPANY et al., Respondents, v AMERICAN RE-INSURANCE COMPANY et al., Appellants, et al., Defendants.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 93 AD3d 14.

Motion by James J. Wrynn, Esq. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

UNITED STATES FIDELITY & GUARANTY COMPANY et al., Respondents, v AMERICAN RE-INSURANCE COMPANY et al., Appellants, et al., Defendants.

Submitted December 3, 2012; decided December 11, 2012

Reported below, 93 AD3d 14.

Motion by United Policyholders for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

[982 NE2d 1245, 959 NYS2d 112]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDREW SPENCER, Appellant.

Argued November 14, 2012; decided December 13, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 30, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Michael Aloise, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree, criminal possession of a weapon in the third degree (two counts), assault in the third degree, and menacing in the second degree.

People v Spencer, 87 AD3d 751, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Improper Preclusion of Evidence That Complainant Had Motive to Fabricate Testimony

In a prosecution for criminal possession of a weapon and other crimes arising out of an altercation between defendant and a third party, which was witnessed by complainant off-duty police officer and others, while the trial court improperly precluded evidence pertaining to the complainant's friendship with the third party on the ground that it was collateral, the error was harmless beyond a reasonable doubt. A defendant always has the constitutional right to present a complete defense, and while a trial court may curtail exploration of collateral matters, extrinsic proof tending to establish a reason to fabricate is never collateral. Defendant's alleged personal observations of complainant's friendship with the third party described by counsel to the court supplied a good faith basis for defendant's proposed trial testimony. Moreover, the excluded evidence, if credited by the jury, tended to establish complainant's motive to protect the third party by inculcating defendant. Nevertheless, given the overwhelming independent proof adduced at trial, including the testimony of several other eyewitnesses who corroborated complainant's version of the events and the 911 calls admitted into evidence, the error was harmless beyond a reasonable doubt.

APPEARANCES OF COUNSEL

Law Offices of Randall D. Unger, Bayside (*Randall D. Unger* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*Sharon Y. Brodt* and *John M. Castellano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

A Queens County grand jury charged defendant with one count of criminal possession of a weapon in the second degree and other related charges. At defendant's jury trial, the People adduced evidence that on the evening of August 16, 2006, defendant engaged in a street level altercation with a third party. Shortly thereafter, complainant, an off-duty police officer, arrived at the scene. Complainant and a number of other eyewitnesses testified that defendant punched complainant and brandished a firearm. Complainant ordered defendant to surrender his firearm, which was loaded. In addition to the eyewitness testimony, Supreme Court permitted the People to introduce into evidence the recordings of two 911 calls contemporaneously placed at the time of the incident.

Defendant interposed a defense, claiming that complainant had falsely implicated him and that it was the third party who

possessed the firearm. Defendant sought to establish that complainant had a motive to frame defendant because complainant and the third party were close friends. Specifically, defendant wished to testify that, based on firsthand knowledge, complainant permitted the third party to deal drugs in front of his home and that complainant and the third party drag raced cars together. Supreme Court precluded this evidence on the ground that the proposed testimony was “collateral.”

The jury convicted defendant of second-degree criminal possession of a weapon and Supreme Court imposed a 15-year determinate sentence of imprisonment followed by five years of postrelease supervision. On appeal, the Appellate Division agreed with defendant that the proof he wished to elicit “should not have been excluded on the basis that it was collateral, as such exclusion goes directly to the defendant’s constitutional right to present a defense” (*People v Spencer*, 87 AD3d 751, 752 [2d Dept 2011]). However, the Court affirmed the judgment of conviction and sentence, concluding that any error was “harmless beyond a reasonable doubt” (*id.*). The Court further rejected defendant’s claim that “the trial court [evinced] impermissible prejudice or bias,” noting that many of defendant’s contentions were “partly based on matters outside the record” (*id.* at 753).

A defendant always has the constitutional right “to present a complete defense” (*Crane v Kentucky*, 476 US 683, 690 [1986], quoting *California v Trombetta*, 467 US 479, 485 [1984]). Nonetheless, “[i]t is well established that the trial courts have broad discretion to keep the proceedings within manageable limits and to curtail exploration of collateral matters” (*People v Hudy*, 73 NY2d 40, 56 [1988]). However, provided that counsel has a good faith basis for eliciting the evidence (*see id.* at 57), “extrinsic proof tending to establish a reason to fabricate is never collateral and may not be excluded on that ground” (*id.* at 56).

Applying this well defined standard, Supreme Court improperly precluded evidence pertaining to complainant’s friendship with the third party on the ground that it was collateral. Defendant’s alleged personal observations of complainant and the third party described by counsel to the court supplied a good faith basis for defendant’s proposed trial testimony. Moreover, the excluded evidence, if credited by the jury, tended to establish complainant’s motive to protect the third party by inculpat-ing defendant. Nevertheless, given the overwhelming independent proof adduced at trial, including the testimony of several

other eyewitnesses who corroborated complainant's version of the events and the 911 calls admitted into evidence, we agree with the Appellate Division that the error was harmless beyond a reasonable doubt (*see People v Crimmins*, 36 NY2d 230, 240-241 [1975]). We also conclude that, to the extent reviewable, Supreme Court did not display impermissible bias toward defense counsel.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, in a memorandum.

[982 NE2d 595, 958 NYS2d 675]

MARLINO GRESS et al., on Behalf of Themselves and All Other Similarly Situated Persons, Respondents, v BYRON BROWN, as Mayor, City of Buffalo, et al., Respondents, and BUFFALO FISCAL STABILITY AUTHORITY, Appellant.

Argued October 17, 2012; decided December 13, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 25, 2011. The Appellate Division order, insofar as appealed from, affirmed a judgment and order of the Supreme Court, Erie County (Timothy J. Drury, J.), which had, among other things, granted the motion of plaintiffs for partial summary judgment and declared that defendant Buffalo Fiscal Stability Authority did not have the authority to freeze the wages of plaintiffs, denied and dismissed defendants' affirmative defenses, and denied the cross motions of defendants for summary judgment.

Gress v Brown, 82 AD3d 1654, reversed.

HEADNOTE

Limitation of Actions — Four-Month Statute of Limitations — Challenge to Administrative Action Implementing Wage Freeze for Certain Municipal Workers

A declaratory judgment action challenging defendant city's failure to pay scheduled wage increases to plaintiff at-will, seasonal employees of the city's public works department was time-barred since the challenge should have been raised by commencing a CPLR article 78 proceeding within four months after the adoption of a resolution imposing a wage freeze applicable to all municipal employee wages by defendant public benefit corporation empowered to

control and freeze specified municipal-employee wages. The statute of limitations in an action for a declaratory judgment is determined by reference to the gravamen of the claim. Plaintiffs did not quarrel with the wage freeze generally, but contested its application to them through the administrative action of the public benefit corporation. Whether or not the public benefit corporation was authorized to freeze the wages due plaintiffs, once it had adopted the resolution freezing those wages, the municipal defendants were bound by its action.

APPEARANCES OF COUNSEL

Harris Beach PLLC, Pittsford (*A. Vincent Buzard* and *John A. Mancuso* of counsel), for appellant.

Lipsitz Green Scime Cambria LLP, Buffalo (*John M. Lichtenthal* of counsel), for Marlino Gress and others, respondents.

Timothy A. Ball, Corporation Counsel, Buffalo (*David M. Lee* of counsel), for Byron Brown and another, respondents.

Michael A. Cardozo, Corporation Counsel, New York City (*Edward F.X. Hart* and *Leonard Koerner* of counsel), for City of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, the declaration that the Buffalo Fiscal Stability Authority (the BFSA) does not have the authority to freeze the wages of plaintiffs vacated, and plaintiffs' complaint as against defendant BFSA dismissed.

In 2003, the legislature enacted the Buffalo Fiscal Stability Authority Act (the Act), declaring "that the city of Buffalo is facing a severe fiscal crisis, and that the crisis cannot be resolved absent assistance from the state" (Public Authorities Law § 3850-a); and determining that the City's untenable reliance on "annual extraordinary increases in state aid to balance its budget" presented a grave issue of "overriding state concern . . . requiring the legislature to intervene" (*id.*). To that end, the legislature created the BFSA, a public benefit corporation empowered to control and freeze municipal-employee wages that were set "pursuant to collective bargaining agreements, other analogous contracts or interest arbitration awards" (*id.* § 3858 [2] [c] [i]). On April 21, 2004, the BFSA adopted Resolution No. 04-35 (available at <http://www.bfsa.state.ny.us/meetings2004/resolutions/res0435.pdf>), which directed that "effective immediately, there shall be a freeze with respect to all wages, wage rates, and salary amounts for all employees of the

City and all Non-exempt Covered Organizations, to the full extent authorized by the Act.” This wage freeze was meant “to prevent and prohibit *any* increase in wage rates, wages or salaries for *any* employee of the City or a Non-exempt Covered Organization” (emphases added).*

Plaintiffs, who are at-will, seasonal employees of the City’s Public Works Department, commenced this class action against the City and its Mayor in January 2008. Plaintiffs alleged that the City violated Buffalo’s Living Wage Ordinance (City of Buffalo Code § 96-19) by failing to pay them scheduled wage increases; they asked for injunctive relief and retroactive pay. After the City and Mayor interposed the wage freeze resolution as an affirmative defense, plaintiffs amended their complaint to include the BFSA as a defendant and to seek a declaration that the “Buffalo Fiscal Stability [Authority] Act does not authorize or empower [the BFSA] to freeze or control wages of [p]laintiffs and the class.”

Plaintiffs moved for partial summary judgment against the BFSA, and the BFSA cross-moved for summary judgment, asserting that plaintiffs’ claim against it was time-barred because the declaratory relief requested was in substance an administrative challenge subject to CPLR article 78’s four-month limitations period. Supreme Court rejected the BFSA’s statute-of-limitations defense, and issued the declaration sought by plaintiffs. The Appellate Division affirmed (82 AD3d 1654 [4th Dept 2011]), and we granted leave to appeal (17 NY3d 714 [2011]).

In *Solnick v Whalen* (49 NY2d 224 [1980]), we established that the statute of limitations in an action for a declaratory judgment is determined “by reference to the gravamen of the claim or the status of the defendant party” (*id.* at 229). If a declaratory judgment action could have been commenced by an alternative proceeding “for which a specific limitation period is statutorily provided, then that period” applies instead of CPLR 213 (1)’s six-year catchall provision (*id.* at 230). As a result, we must “examine the substance of [the] action to identify the relationship out of which the claim arises and the relief [is] sought” (*id.* at 229).

Here, plaintiffs dispute the BFSA’s decision to suspend their scheduled wage increases. They do not quarrel with the wage

* The wage freeze remained in effect until July 1, 2007, when the BFSA lifted it (see Buffalo Fiscal Stability Authority Resolution No. 07-21, available at <http://www.bfsa.state.ny.us/meetings2007/resolutions/res07021.pdf>).

freeze generally; rather, they contest its application to them through the BFSA's administrative action. Such a challenge should have been raised by commencing a CPLR article 78 proceeding within four months after the BFSA's adoption of Resolution No. 04-35 (*see Solnick*, 49 NY2d at 232 [“an *ad hoc* determination of an individual party's right of reimbursement (is) a determination more accurately classified as administrative rather than legislative”]). The dissent counters that the BFSA, in fact, “had no authority to freeze the wages due plaintiffs pursuant to the Living Wage Ordinance” (dissenting op at 962). But whether or not authorized to do so, the BFSA froze plaintiffs' wages and once this happened, the City and Mayor were bound by its action.

Chief Judge LIPPMAN (dissenting). It is evident that, as Supreme Court and the Appellate Division (82 AD3d 1654, 1655-1656 [4th Dept 2011]) held, defendant Buffalo Fiscal Stability Authority (BFSA) had no power to freeze plaintiffs' wages. The BFSA's enabling statute, Public Authorities Law, article 10-D, title 2 (§ 3850 *et seq.*), authorizes the Authority to suspend scheduled salary or wage increases of city employees where those increases would otherwise take effect “pursuant to collective bargaining agreements, other analogous contracts or interest arbitration awards, now in existence or hereafter entered into” (Public Authorities Law § 3858 [2] [c] [i]). There is no dispute that those in the plaintiff class are not compensated pursuant to a collective bargaining agreement or interest arbitration award, and the expert affidavit of Cornell Professor Risa L. Lieberwitz duly credited by Supreme Court demonstrates that the terms of plaintiffs' employment are in no way analogous to those of other municipal employees negotiated in collective bargaining; plaintiffs' compensation is governed instead exclusively by the schedule unilaterally set by the City in section 96-19 of its municipal Code, otherwise referred to as the Living Wage Ordinance.

In construing a wage freeze provision remarkably similar to the BFSA resolution relied upon by the present defendants, we held in *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York* (41 NY2d 205 [1976])¹ that judicially mandated salary

1. The provision there at issue read, “Increases in salary or wages of employees of the city . . . which have taken effect since June thirtieth, nineteen hundred seventy-five or which will take effect after that date *pursuant to collective bargaining agreements or other analogous contracts*, now in existence

(n. cont'd)

increases were exempt from the freeze there at issue. In so holding, we were guided by the familiar principle that “where . . . the statute describes the particular situations in which it is to apply, ‘an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded’ (McKinney’s Cons Laws of NY, Book 1, Statutes, § 240)” (*id.* at 208-209). Application of the same rule of construction to the provision here at issue leads inexorably to the conclusion that the legislature did not intend to authorize a freeze of the wages of municipal employees such as plaintiffs, whose rate of compensation was not the product of collective bargaining or an analogous contract, or of interest arbitration.

Nor should it be hard to understand why the legislature would have exempted from the contemplated wage freeze employees who, even with scheduled wage increases, would earn no more than what the City itself had determined to be the bare minimum living wage. Indeed, it is apparent from the face of the Living Wage Ordinance that in enacting it the City made a considered judgment that, even at a time of acknowledged financial crisis (*see* City of Buffalo Code § 96-19 [A] [8]), paying City employees an hourly wage that would minimally suffice for a family of three to live at or just above the federal poverty level, would ultimately inure to the City’s economic advantage. The Ordinance in its statement of intent observes that “[t]he use of taxpayer dollars to promote sustenance and create family-supporting jobs will increase consumer income while decreasing levels of poverty” (City of Buffalo Code § 96-19 [A] [5]), and that “living-wage legislation may benefit the larger community by reducing reliance on taxpayer-funded public assistance such as food stamps, Medicaid, emergency medical services and other social programs provided by the Erie County government” (City of Buffalo Code § 96-19 [A] [6]). Given these purposes, there is no reason to believe that the legislature’s failure to authorize a BFSa freeze of the wages of workers whose rate of compensation was governed solely by the Living Wage Ordinance was attributable to some oversight; it would not be reasonable to suppose that the legislature intended to empower the BFSa to interfere with a very modest municipal compensation scheme that, in the City’s estimation, would, by sustaining the livelihood of covered employees such as plaintiffs at or slightly above the federal poverty line, ultimately inure to the fiscal benefit of Buffalo and Erie County.

or hereinafter entered into . . . are hereby suspended” (*Patrolmen’s Benevolent Assn.*, 41 NY2d at 208 [emphasis added]).

Inasmuch as the BFSA had no authority to freeze the wages due plaintiffs pursuant to the Living Wage Ordinance, it is difficult to see how an action such as this one, seeking enforcement of the right to be compensated in accordance with the Ordinance, can be understood as a challenge to the April 2004 BFSA wage freeze resolution upon which defendants now rely. Indeed, it is only by construing the resolution as an *ultra vires* exercise—one purporting to bind plaintiffs even in the absence of authority to do so—that the resolution may be said to bear upon plaintiffs’ claims at all. But the subject BFSA resolution, assertedly, reaches only as far as the Authority’s enabling legislation permits,² which, as noted, is not so far as to affect plaintiffs’ entitlement to be paid in accordance with the Living Wage Ordinance.

Nor does there seem to be any basis for defendants’ contention that plaintiffs should have known that the BFSA resolution was binding upon them because their rate of pay was consequently frozen. There is, in fact, no discernible relation between the alleged failure by the City to pay plaintiffs at the pay rate mandated by the Living Wage Ordinance and the 2004 BFSA resolution. Plaintiffs allege that they have not been paid at the rate to which they were entitled since 2002—fully two years prior to the BFSA wage freeze resolution. Defendants, on the other hand, allege that plaintiffs were actually paid in excess of the wages required by the Ordinance.³ Under either scenario there would have been no clearly perceptible relationship between the issuance of the BFSA wage freeze and plaintiffs’ rate of pay. There is when all is said and done no indication that the Authority’s 2004 wage freeze was intended to be, or was in fact, effectual, much less final and binding as to plaintiffs, and, that being the case, it cannot have operated to set the four-month statutory period running as to their claims (*see* CPLR 217 [1]).

This was at its inception and remains in its actual aspect simply an enforcement action of the sort expressly permitted by

2. The resolution recites that it is to be effective “to the full extent authorized by the Act,” thus recognizing that the BFSA’s wage freeze authority under the Public Authorities Law is not boundless (*see* BFSA Resolution No. 04-35, available at <http://www.bfsa.state.ny.us/meetings2004/resolutions/res0435.pdf>).

3. The City contends in this connection that although plaintiffs’ stated hourly rate was not the one to which they were entitled, they were paid for hours for which they did not work and, in consequence, received in excess of the compensation to which they would have been entitled for their hours of work.

the Living Wage Ordinance (City of Buffalo Code § 19-96 [F] [1]), and, as such, subject to the special limitations period set forth in the Ordinance running for two years subsequent to the discovery of an alleged violation (*id.*). It should be elementary that defendants' interposition of a time-bar defense based on an irrelevant BFSFA resolution logically cannot transform the action's gravamen; the action does not become a challenge to an administrative determination subject to the four-month statutory period set forth in CPLR 217 unless there is a final and binding administrative determination truly implicated by plaintiffs' claims. Here, that condition is not met. And, in its absence, there is no reading of *Solnick v Whalen* (49 NY2d 224 [1980]) that permits, much less requires, the result the majority has reached. Accordingly, I dissent and would affirm the order of the Appellate Division.

Judges GRAFFEO, READ, SMITH and PIGOTT concur; Chief Judge LIPPMAN dissents and votes to affirm in an opinion in which Judge CIPARICK concurs.

Order, insofar as appealed from, reversed, with costs, the declaration that the Buffalo Fiscal Stability Authority does not have the authority to freeze the wages of plaintiffs vacated and plaintiffs' complaint as against defendant Buffalo Fiscal Stability Authority dismissed, in a memorandum.

[982 NE2d 88, 958 NYS2d 325]

In the Matter of PETER PRINCIPE, Respondent, v NEW YORK
CITY DEPARTMENT OF EDUCATION, Appellant.

Decided December 13, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 5, 2012. The Appellate Division affirmed an order of the Supreme Court, New York County (Alice Schlesinger, J.), to the extent it had (1) denied respondent New York City Department of Education's cross motion to deny the petition and dismiss the proceeding brought pursuant to, among other things, CPLR article 75, (2) granted the petition to the extent of vacating as excessive the penalty of termination of petitioner's employment as a New York City schoolteacher, and

(3) remanded the matter to the Hearing Officer for the imposition of a lesser penalty. The following question was certified by the Appellate Division: "Was the order of this Court, that affirmed the order of the Supreme Court, properly made?"

Petitioner, the dean of discipline of a middle school, was alleged to have committed misconduct by using corporal punishment against students in two separate incidents.

Matter of Principe v New York City Dept. of Educ., 94 AD3d 431, affirmed.

HEADNOTE

Schools — Teachers — Disciplinary Proceedings — Penalty

In a proceeding to review a determination that petitioner teacher committed misconduct by using corporal punishment against students on two occasions, the Appellate Division correctly determined that the penalty of termination imposed on petitioner was excessive in light of all the circumstances.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Julian L. Kalkstein* of counsel), for appellant.

Lichten & Bright, PC, New York City (*Stuart Lichten* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The Appellate Division correctly determined that the penalty of termination imposed on petitioner was excessive in light of all the circumstances (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 233 [1974]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and PIGOTT. Judge SMITH dissents and votes to reverse for the reason that it cannot be concluded, as a matter of law, that the penalty of termination shocks the judicial conscience (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 233 [1974]).

In the Matter of WALTER ADELMAN, Appellant, v MICHAEL A. GARY, Respondent.

Submitted October 22, 2012; decided December 13, 2012

Reported below, 95 AD3d 880.

Motion for reargument denied [*see* 19 NY3d 1003 (2012)].

JENNIFER CANGRO, Appellant, v GINA MARIE REITANO, Respondent.

Submitted October 29, 2012; decided December 13, 2012

Reported below, 92 AD3d 483.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

ISRAEL GROSSMAN et al., Appellants, v NEW YORK LIFE INSURANCE COMPANY, Respondent. (And a Third-Party Action.)

Submitted October 15, 2012; decided December 13, 2012

Reported below, 90 AD3d 990.

Motion for reargument of motion for leave to appeal denied [*see* 19 NY3d 991 (2012)].

In the Matter of KAYTLIN TT., a Child Alleged to be Permanently Neglected. CORTLAND COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; BETTY SS., Appellant. (Proceeding No. 1.) (And Two Other Related Proceedings.)

Submitted October 15, 2012; decided December 13, 2012

Reported below, 61 AD3d 1085.

Motion for reargument of motion for leave to appeal denied [*see* 13 NY3d 709 (2009)].

SABRINA OLIVERI, Respondent, v VASSAR BROTHERS HOSPITAL, Appellant.

Submitted October 29, 2012; decided December 13, 2012

Reported below, 95 AD3d 973.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of 1801 SIXTH AVENUE, LLC, Appellant, v EMPIRE ZONE DESIGNATION BOARD et al., Respondents. (Proceeding No. 1.)

In the Matter of HIAWATHA ASSOCIATES, LLC, Appellant, v EMPIRE ZONE DESIGNATION BOARD et al., Respondents. (Proceeding No. 2.)

In the Matter of ERIE BOULEVARD HYDROPOWER, LP, Appellant, v EMPIRE ZONE DESIGNATION BOARD et al., Respondents. (Proceeding No. 3.)

In the Matter of PIONEER FULTON SHOPPING CENTER, LLC, Appellant, v EMPIRE ZONE DESIGNATION BOARD et al., Respondents. (Proceeding No. 4.)

In the Matter of THIRD NATIONAL ASSOCIATES GROUP, Appellant, v EMPIRE ZONE DESIGNATION BOARD et al., Respondents. (Proceeding No. 5.)

In the Matter of THIRD NATIONAL ASSOCIATES, LLC, Appellant, v EMPIRE ZONE DESIGNATION BOARD et al., Respondents. (Proceeding No. 6.)

Submitted October 22, 2012; decided December 13, 2012

Reported below, 95 AD3d 1493.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of FEDIE R. REDD, Appellant, v EDWARD A. BATTISTI et al., Respondents.

Submitted October 15, 2012; decided December 13, 2012

Reported below, 94 AD3d 676.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the Supreme Court judgment, denied; motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave

to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

GEORGE BUNDY SMITH, SR., Individually and on Behalf of
TWENTY PLUS MEMBERS OF GRACE CONGREGATIONAL CHURCH
OF HARLEM, INC./UNITED CHURCH OF CHRIST, Appellant, v
UNITED CHURCH OF CHRIST et al., Respondents.

Submitted August 13, 2012; decided December 13, 2012

Reported below, 95 AD3d 581.

Motion for reargument of motion for leave to appeal denied
[see 19 NY3d 940 (2012)].

In the Matter of the Claim of DAVID WYCHE, Appellant. COMMIS-
SIONER OF LABOR, Respondent.

Submitted October 15, 2012; decided December 13, 2012

Reported below, 2012 NY Slip Op 80420(U).

Motion, insofar as it seeks leave to appeal from the Appellate
Division order denying reconsideration and further relief,
dismissed upon the ground that such order does not finally
determine the proceeding within the meaning of the Constitu-
tion; motion for leave to appeal otherwise denied.

[982 NE2d 614, 958 NYS2d 694]

MICHEL D. TYSON, Appellant, v LAWRENCE NAZARIAN, Respon-
dent.

Decided December 18, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the
Supreme Court in the Fourth Judicial Department, entered
June 8, 2012. The Appellate Division, with two Justices dissent-
ing, affirmed an order and judgment (one paper) of the Supreme
Court, Monroe County (Thomas A. Stander, J.), which had

granted the motion of defendant for summary judgment, dismissed the complaint, and denied the motion and cross motion of plaintiff for summary judgment.

Plaintiff commenced an action seeking damages for injuries she allegedly sustained when a vehicle operated by defendant collided with her vehicle. According to plaintiff, prior back and neck injuries were exacerbated by the accident.

Tyson v Nazarian, 96 AD3d 1349, modified.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury

In an action to recover damages for injuries plaintiff sustained in a motor vehicle accident, sufficient record evidence existed to raise a triable issue of fact as to whether plaintiff suffered a “serious injury” within the meaning of Insurance Law § 5102 (d). Since the Appellate Division, in affirming the order and judgment of Supreme Court granting defendant’s motion for summary judgment and denying plaintiff’s motion for summary judgment, did not address plaintiff’s contention that she was entitled to summary judgment on the issue of defendant’s negligence, the case was remitted for that purpose.

APPEARANCES OF COUNSEL

Davison Law Office, PLLC, Canandaigua (*Mark C. Davison* of counsel), for appellant.

Burgio, Kita & Curvin, Buffalo (*Hilary C. Banker* of counsel), for respondent.

OPINION OF THE COURT

The order of the Appellate Division should be modified, without costs, by denying defendant’s motion for summary judgment and remitting to the Appellate Division for further proceedings in accordance with this memorandum, and, as so modified, affirmed.

Sufficient record evidence exists to raise a triable issue of fact as to whether plaintiff suffered a “serious injury” within the meaning of Insurance Law § 5102 (d) (*see Gaddy v Eyler*, 79 NY2d 955, 957 [1992]). In view of its disposition, the Appellate Division did not address plaintiff’s contention that she is entitled to summary judgment on the issue of defendant’s negligence. We therefore remit for that purpose.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, without costs, by denying defendant’s motion for summary

judgment and remitting to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

[982 NE2d 1252, 959 NYS2d 119]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CALVIN
MAYS, Appellant.

Argued November 13, 2012; decided December 18, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 17, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (John J. Ark, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree (two counts) and robbery in the second degree (two counts).

People v Mays, 85 AD3d 1700, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Prosecutor Communicating with Jury during Replay of Surveillance Video

1. In a prosecution for two robberies, one of which was recorded on a surveillance video which the jury requested to see during deliberations, defendant's contention that the trial judge erred by neglecting to give defense counsel notice and a say before formulating a response to the jury's requests during the prosecutor's playback of the video required preservation. Although defense counsel was aware of the content of the jurors' comments concerning the lighting of the courtroom and the playback of the video, which were made out loud in open court, counsel did not object to anything the judge or prosecutor did in response. The prosecutor's communications with the jury were ministerial. Asking that the lights be dimmed because a juror was bothered by the glare, playing the video again, or attempting to stop the video at the place the jurors wished, was not the kind of substantive response that implicated *People v O'Rama* (78 NY2d 270 [1991]).

Crimes — Fair Trial — Judge's Control of Courtroom

2. In a prosecution for two robberies, one of which was recorded on a surveillance video which the jury requested to see during deliberations, the trial judge did not improperly delegate judicial responsibility when the prosecutor communicated with the jury during a replay of the surveillance video. While it was the prosecutor who conducted the replay, the record did not show that the judge's control of the courtroom was ever diminished in any way. The judge was present throughout and participated in the discussion during the replay. Moreover, defendant was acquitted of all the charges arising from the videotaped robbery.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (James G. Eckert of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (Geoffrey Kaeuper and Stephen X. O'Brien of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Calvin Mays was charged with robbery and related offenses arising from two armed robberies in Rochester. One of the robberies was recorded on a surveillance video, which was admitted into evidence at his jury trial. The trial exhibit consisted of a copy of a single DVD taken from the store's video surveillance system, and showed the robbery from two different cameras and angles. During deliberations, the jury sent the trial judge a note asking to see the video again; it was played for them by the prosecutor through a computer and projected onto a television screen. The record reflects that the video was slowed down for the jury "close to real time," and that it was difficult to make out the beginning part of the relevant images. While the prosecutor was playing the video at the judge's direction, jurors called out various requests—i.e., to reduce the glare from courtroom lights, to play the video again, to freeze a view—which the prosecutor accommodated. This resulted in some back-and-forth between jurors and the prosecutor, on the order of "Can you freeze it?" "I just did"; and "Do you want to see it again?" "Yes."

The jury acquitted defendant of all charges relating to the videotaped robbery, but convicted him of first- and second-degree robbery for the other crime charged. He was sentenced as a persistent violent felony offender to concurrent indeterminate terms of imprisonment of 25 years to life. Upon his appeal, defendant argued that the trial judge's decision to permit the prosecutor to interact directly with the jury while replaying the surveillance video violated *People v O'Rama* (78 NY2d 270 [1991]), requiring reversal of the judgment of conviction and sentence. The Appellate Division, with two Justices dissenting, rejected defendant's *O'Rama* claim, concluding that the complained-of communications were "merely ministerial" in nature, "concerning the scope of a request for a readback" and "wholly unrelated to the substantive legal or factual issues of

the trial” (85 AD3d 1700, 1701 [4th Dept 2011] [internal quotation marks omitted]). A dissenting Justice granted defendant leave to appeal, and we now affirm.

[1] Defendant contends that the trial judge committed an *O’Rama* error by neglecting to give counsel notice and a say before formulating a response to the jury’s requests during the playback (*see O’Rama*, 78 NY2d at 277-278). Here, though, defense counsel was aware of the content of the jurors’ comments, which were made out loud in open court, and did not object to anything the judge or prosecutor did in response. And as the Appellate Division pointed out, the prosecutor’s communications with the jury were ministerial. Asking that the lights be dimmed because a juror was bothered by the glare, playing the video again once they were, or attempting to stop the video at the place the jurors wished is not the kind of substantive response that implicates *O’Rama*. As a result, preservation was required.

[2] Additionally, we reject defendant’s argument that the trial judge improperly delegated judicial responsibility in contravention of *People v Ahmed* (66 NY2d 307 [1985], *rearg denied* 67 NY2d 647 [1986]). The record does not show that the judge’s control of the courtroom was ever diminished in any way. He was present throughout and participated in the discussion during the replay of the video. And finally, it bears repeating that defendant was acquitted of all the charges arising from the videotaped robbery.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, in a memorandum.

[983 NE2d 751, 959 NYS2d 674]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HECTOR MARTINEZ, Appellant.

Argued October 9, 2012; decided December 18, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 17, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York

County (William A. Wetzel, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, assault in the second degree, and criminal possession of a weapon in the second degree.

People v Martinez, 84 AD3d 550, modified.

HEADNOTE

Crimes — Murder — Depraved Indifference Murder

In the prosecution of defendant for depraved indifference murder and other crimes, the evidence was legally insufficient to establish defendant's guilt of depraved indifference murder. Viewed in the light most favorable to the People, defendant, after an altercation with the victim, obtained a gun, chased him down, and fired four or five shots at him at near point-blank range—acts inconsistent with a conviction for depraved indifference murder.

APPEARANCES OF COUNSEL

Stanley E. Neustadter, New York City, for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Martin J. Foncello* and *Vincent Rivelles* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, by vacating defendant's conviction of depraved indifference murder, dismissing that count of the indictment and remitting to Supreme Court for resentencing and, as so modified, affirmed, with leave to the People, if so advised, to present a charge of manslaughter in the first degree to a new grand jury.

On this direct appeal, defendant argues that the evidence was legally insufficient to establish his guilt of depraved indifference murder. Viewed in the light most favorable to the People, defendant, after an altercation with Lee, obtained a gun, chased him down, and fired four or five shots at him at near point-blank range—acts inconsistent with a conviction for depraved indifference murder.

We have considered defendant's remaining arguments and find them to be without merit.

SMITH, J. (concurring). I join the majority memorandum, and will explain in this opinion my reasons for doing so.

I

Defendant, a drug dealer, became involved in an argument with Lavert Lee, a would-be purchaser of drugs. The argument

escalated into a physical fight, in which defendant and Lee slapped each other, and a friend of defendant hit Lee with a bottle. While the friend and Lee continued to fight, defendant ran into a nearby building and came back with a gun. Lee fled into another building, and defendant followed him. Defendant fired four or five shots, killing Lee with a bullet to the chest and wounding a bystander whom Lee tried to use as a shield.

These events happened in 1991. Defendant was a fugitive until 1995, when he was arrested and brought to trial on an indictment charging him with intentional murder (Penal Law § 125.25 [1]), depraved indifference murder (Penal Law § 125.25 [2]), assault and weapons offenses.

After the close of the evidence, defendant moved to dismiss the depraved indifference murder count, arguing that the evidence showed, if anything, an intentional homicide: “Either the jury will believe that this defendant . . . intentionally went and got a gun, [and] shot and killed Lavert Lee . . . Or if he didn’t, then they’re going to say that none of this is true.” Defense counsel added: “I don’t think there’s any set of facts the People have pointed to that would indicate that the defendant committed the crime with reckless disregard. It’s been the People’s contention throughout that he intended to do this crime.” The trial court denied the motion, concluding that “the facts in evidence are certainly consistent with a charge of reckless disregard.”

The jury acquitted defendant of intentional murder, but convicted him of depraved indifference murder, assault and criminal possession of a weapon. Defendant filed a timely notice of appeal but, for reasons the record does not illuminate, did not file a brief in the Appellate Division for 14 years—until 2009. The Appellate Division, with one Justice dissenting, affirmed, rejecting defendant’s argument that the evidence, while it would support a finding that he killed Lee intentionally, was insufficient to establish depraved indifference murder (*People v Martinez*, 84 AD3d 550 [1st Dept 2011]).

The Appellate Division noted that defendant did not object to the Court’s instructions to the jury on the elements of depraved indifference murder, and concluded that his argument “must be evaluated according to the court’s charge as given without objection” (*id.* at 553). Because the jury, the Appellate Division said, “was instructed in light of then-applicable law,” specifically *People v Register* (60 NY2d 270 [1983]), his argument must be

evaluated under “the *Register* standard” (*id.*). Apparently applying *Register*, the Appellate Division concluded that “nothing on the record warrants setting aside the jury’s conclusion that defendant acted with depraved indifference rather than intentionally” (*id.* at 555).

A dissenting Appellate Division Justice concluded “that defendant fully preserved the issue of whether the evidence is sufficient to support conviction of depraved indifference murder” (*id.* at 562). Analyzing the record in light of more recent cases, the dissenter found “no reasonable view of the evidence that will support conviction for depraved indifference murder” (*id.* at 564). The dissenting Justice granted defendant leave to appeal to this Court.

II

Murder in the second degree is defined in Penal Law § 125.25. Subdivision (1) defines the most common form of the crime, intentional murder, which occurs when a person “[w]ith intent to cause the death of another person, . . . causes the death of such person or a third person” (Penal Law § 125.25 [1]). Subdivision (2) defines depraved indifference murder, committed when a person “[u]nder circumstances evincing a depraved indifference to human life . . . recklessly engages in conduct which creates a grave risk of death to another person, and thereby causes the death of another person” (Penal Law § 125.25 [2]). The meaning of the second subdivision has presented a vexing problem for the New York courts.

The history of our depraved indifference murder jurisprudence, beginning with our 1983 decision in *Register*, is described in *Policano v Herbert* (7 NY3d 588 [2006]). As *Policano* explains, *Register* held that the statutory language “under circumstances evincing a depraved indifference to human life” did not identify a culpable mental state, or mens rea. Rather, under *Register* the “depraved indifference” language stated “a definition of the factual setting in which the risk creating conduct must occur” (*Register*, 60 NY2d at 276, quoted in *Policano*, 7 NY3d at 597). Thus we held in *Register* that “recklessness, pure and simple, is the mens rea for depraved indifference murder” (*Policano*, 7 NY3d at 597)—a crime, we said, “distinguishable from manslaughter, not by the mental element involved but by the objective circumstances in which the act occurs” (*Register*, 60 NY2d at 278, quoted in *Policano* at 597).

The jurisprudence developed under *Register*, “epitomized” by our decision in *People v Sanchez* (98 NY2d 373 [2002]), had two

features of special importance in cases involving “fatal one-on-one shootings or knifings” (*Policano*, 7 NY3d at 599). First, “the question of the defendant’s state of mind” was thought “to be a classic matter for the jury,” so that a defendant could be found to have acted recklessly even where there was “compelling circumstantial evidence of intent to cause death” (*id.*). Secondly, when “a defendant’s actions created an almost certain risk of death,” that was viewed as sufficient in itself to support a finding of “circumstances evincing a depraved indifference to human life” (*id.* at 600). As we put it in *Sanchez*: “defendant’s shooting into the victim’s torso at point-blank range presented such a transcendent risk of causing his death that it readily meets the level of manifested depravity needed to establish murder under Penal Law § 125.25 (2)” (98 NY2d at 378, quoted in *Policano*, 7 NY3d at 598, 600). *Sanchez*, though not decided until 2002, was consistent with many earlier Appellate Division decisions (*e.g.* *People v Keefer*, 197 AD2d 915, 916 [4th Dept 1993]; *People v Tankleff*, 199 AD2d 550, 554 [2d Dept 1993], *affd* 84 NY2d 992 [1994]; *People v Robinson*, 205 AD2d 836, 836 [3d Dept 1994]; *People v Cole*, 233 AD2d 247, 247-248 [1st Dept 1996]; *People v Crawford*, 295 AD2d 361 [2d Dept 2002]).

Thus, under the *Register* regime, a conviction of depraved indifference murder could be upheld where a defendant had attacked and killed a single victim with a gun or knife, even where the evidence strongly pointed to intentional murder. As a result, it became commonplace in such cases for prosecutors to charge both intentional and depraved indifference murder in one indictment, leaving it to the jury to choose between them. Judge Rosenblatt, dissenting in *Sanchez*, observed that “depraved indifference murder counts have become routine escorts to intentional murder counts” (98 NY2d at 401 [Rosenblatt, J., dissenting]). He appended to his opinion a chart showing that, in 2001 and for several years previously, indictments joining intentional and depraved indifference murder had accounted for roughly half of all murder indictments in New York (*id.* at 416 [Appendix to op of Rosenblatt, J.]).

Our law changed in the four years following the decision in *Sanchez* (*see People v Hafeez*, 100 NY2d 253 [2003]; *People v Gonzalez*, 1 NY3d 464 [2004]; *People v Payne*, 3 NY3d 266 [2004]; *People v Suarez*, 6 NY3d 202 [2005]; *People v Feingold*, 7 NY3d 288 [2006]). We summarized this series of cases in *Policano*:

“Our interpretation of . . . ‘under circumstances

evincing a depraved indifference to human life’ . . . gradually and perceptibly changed from an objectively determined degree-of-risk standard (the *Register* formulation) to a mens rea, beginning with our decision in *Hafeez* in 2003, continuing in our decisions in *Gonzalez*, *Payne* and *Suarez* in 2004 and 2005, and ending with our decision in *Feingold* in 2006. . . . As the many concurring decisions and dissents in these cases and the dissent in this case illustrate, individual judges hold differing views as to where along this trajectory a majority of the Court may have effectively passed the point of no return—the limit beyond which, hard as we may have tried, it was simply not possible to reconcile our developing case law with *Register* and *Sanchez*. There is no doubt, however, that a majority of the Court explicitly overruled *Register* and *Sanchez* in *Feingold*, holding that ‘ “depraved indifference to human life” is a culpable mental state’ (7 NY3d at 296)” (7 NY3d at 602-603).

Under our more recent cases, depraved indifference murder convictions may no longer be upheld where the evidence of intent to kill is compelling. We have emphasized that intent to kill and “depraved indifference to human life” are incompatible states of mind, and that the latter is rarely found in homicide cases. We said in *Payne* “that depraved indifference murder may not be properly charged in the overwhelming majority of homicides that are prosecuted in New York” (3 NY3d at 270). We added that, “[w]hile we have identified instances in which a killing could qualify as depraved indifference murder, a point-blank shooting is ordinarily not one of them” (*id.*).

Our abandonment of the *Register-Sanchez* approach to depraved indifference murder raised the important question of how to deal with defendants who, like defendant in this case, were convicted of that crime while *Register* remained the law. We answered this question in *Policano* in 2006, and in *People v Jean-Baptiste* (11 NY3d 539 [2008]). In *Policano*, considering the case of a defendant seeking to attack collaterally a depraved indifference murder conviction that had become final in 2001, we concluded that our “post-*Sanchez* case law” did not apply “retroactively” to such cases (7 NY3d at 603). But in *Jean-Baptiste*, we held that our new “standard as articulated in *Feingold* should apply to cases brought on direct appeal in which the defendant has adequately challenged the sufficiency of the

proof as to his depraved indifference murder conviction” (11 NY3d at 542).

Jean-Baptiste’s qualifying language, “in which the defendant has adequately challenged the sufficiency of the proof,” is a critical part of our post-*Sanchez* jurisprudence. The general rule that we will review claims only where they have been properly preserved for review attains special importance in this context. The preservation rule, like our retroactivity holding in *Policano*, serves to prevent the unnecessary overturning of convictions of “[d]efendants who committed vicious crimes but who may have been charged and convicted under the wrong section of the statute” (*Suarez*, 6 NY3d at 217 [concurring op of G.B. Smith, Rosenblatt and R.S. Smith, JJ.], quoted in *Policano*, 7 NY3d at 604).

Since the present case is, fortuitously, still on direct appeal 17 years after it was tried, whether defendant is entitled to the benefit of the post-*Sanchez* changes in the law depends on whether he adequately preserved at trial the argument he now urges upon us. I conclude that he did.

III

In moving to dismiss the depraved indifference murder count at trial, defense counsel told the trial judge: “Either the jury will believe that this defendant . . . intentionally . . . shot and killed Lavert Lee . . . Or if he didn’t, then they’re going to say that none of this is true.” He specifically said that no evidence “would indicate that the defendant committed the crime with reckless disregard” and that the People’s contention was that defendant “intended to do this crime.” This is essentially the argument defendant now makes—an argument that usually failed in the *Register* era: that a blatantly intentional killing cannot constitute depraved indifference murder. Defendant thus adequately anticipated the post-*Sanchez* developments in the law, which drew a bright line between intent and depraved indifference.

The People argue that defendant’s preservation was flawed because he did not articulate at trial the exact holding of *Feingold*, the case that finally overruled *Register*: *Feingold* held that “depraved indifference to human life is a culpable mental state” (7 NY3d at 294). But we have never required that defense counsel anticipate future decisions with such precision. Defense lawyers cannot be expected to be clairvoyant. We have reversed depraved indifference murder convictions in many post-*Sanchez*

cases, where the trials took place before *Feingold* was decided.* In none of these cases did defense counsel explicitly argue at trial that depraved indifference is a “culpable mental state.” Had we insisted on the kind of preservation that the People now suggest is necessary, those cases could not have been decided as they were.

Relying on *People v Sala* (95 NY2d 254, 260 [2000]) and *People v Dekle* (56 NY2d 835, 836-837 [1982]), the People also argue, and the Appellate Division held, that defendant is bound by the law as stated in *Register* because he failed to object to the trial court’s charge to the jury on the elements of depraved indifference murder. In the view of the Appellate Division majority, defendant’s “claim as to the insufficiency of evidence supporting a finding of depraved indifference murder must be evaluated according to the court’s charge as given without objection” (84 AD3d at 552-553). I disagree for two reasons.

First, we made clear in *Jean-Baptiste* that a defendant who has “made a specific motion to dismiss . . . anticipating the change in the law brought by *Feingold*” is not also required “to take an exception to the court’s depraved indifference murder charge” (11 NY3d at 544). We distinguished *Sala* and *Dekle* on the ground that, in those cases, defendants were advancing on appeal theories different from any they had advanced at trial (*id.*). And secondly, while it is true that *Register* was the law at the time the trial court in this case charged the jury, the court’s charge did not incorporate, to any significant degree, the features of *Register* that we later overruled. Specifically, there is no mention in the charge of the *Register* rule that depraved indifference refers to objective circumstances, rather than to defendant’s state of mind. Thus it is not apparent what aspect of the charge the Appellate Division thought defendant should have objected to.

IV

Applying our post-*Sanchez* cases, I have no difficulty in concluding that the evidence is insufficient to support defendant’s conviction of depraved indifference murder. We said in *Payne* that a typical “one-on-one shooting . . . can almost never qualify as depraved indifference murder” (3 NY3d at 272); we

* In addition to *Hafeez*, *Gonzalez*, *Payne*, *Suarez*, *Feingold* and *Jean-Baptiste*, see *People v Atkinson* (7 NY3d 765 [2006]); *People v Mancini* (7 NY3d 767 [2006]); *People v Swinton* (7 NY3d 776 [2006]); *People v Taylor* (15 NY3d 518 [2010]); and *People v Prindle* (16 NY3d 768 [2011]).

there made an exception for “the type of circumstances in . . . *Sanchez*” (*id.*), but *Sanchez* has since been overruled. This case is not one of those rare ones, as *People v Roe* (74 NY2d 20 [1989]) perhaps was, in which one person aims and fires a gun at another while remaining indifferent to the result (*see Payne* at 272 n 2).

On the contrary, this case bears a strong resemblance to *Sanchez*, *Gonzalez*, *Payne* and *Suarez* in that it might seem to many that the evidence showed defendant to be guilty of intentional murder. But it did not seem so to the jury here or in any of those other cases: in each of them, the defendant was acquitted of intentional murder. The law is now clear that depraved indifference murder cannot serve as a substitute for a rejected intentional murder charge, where there is no evidence to support a finding of depraved indifference. I therefore concur in holding that defendant’s conviction of depraved indifference murder cannot stand.

PIGOTT, J. (dissenting). On May 3, 1991, defendant, while standing outside, fired four or five shots into a vestibule occupied by three people. One of those occupants, Lee, had been involved in an altercation with defendant minutes earlier. I suspect that one of the victims of the shooting, Anthony Ovando, would dispute the majority’s characterization that the shooting occurred at “near point-blank range” (majority mem at 972), since the testimony adduced by the People at trial established that Lee used Ovando as a human shield, resulting in Ovando taking fire to his waist.

In my view, the proof adduced by the People at trial, viewed in the light most favorable to the People, was sufficient to uphold defendant’s conviction for depraved indifference murder (*see People v Suarez*, 6 NY3d 202, 214 [2005] [shooting into a crowd a “(q)uintessential example” of depraved indifference murder]; *People v Jernatowski*, 238 NY 188, 192 [1924] [“when the defendant fired two or more shots into the house where he knew there were human beings he committed an act which the jury certainly could say was imminently dangerous and which evinced a wicked and depraved mind regardless of human life and which amply supplied the evidence of malice and felonious intent”])).

One need only consider the number of shots fired, the number of occupants in the small vestibule and the fact that these occupants were trying to gain access to the apartment building when defendant fired the shots to discern that such facts “were

sufficient to present a question for the jury concerning whether defendant evinced ‘a depraved indifference to human life’ ” (*People v Fenner*, 61 NY2d 971, 973 [1984], citing Penal Law § 125.25 [2]; see *People v Campbell*, 33 AD3d 716, 719 [2d Dept 2006], *lv denied* 8 NY3d 879 [2007] [holding that the defendant who fired five shots at three fleeing men was guilty of depraved indifference murder since “(a) rational jury could reasonably conclude that the defendant did not care whether harm would result when he commenced his shooting spree in the direction of the three fleeing men”]). Given the facts with which the jury was presented, its guilty verdict was hardly irrational and should not be disturbed.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and SMITH concur; Judge SMITH concurs in a separate opinion; Judge PIGOTT dissents in an opinion.

Order modified by vacating defendant’s conviction of depraved indifference murder, dismissing the count of the indictment charging depraved indifference murder, and remitting to Supreme Court, New York County, for resentencing and, as so modified, affirmed, with leave to the People, if so advised, to present a charge of manslaughter in the first degree to a new grand jury, in a memorandum.

[982 NE2d 614, 958 NYS2d 694]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v LOUIS RILEY, Respondent-Appellant.

Submitted July 16, 2012; decided December 18, 2012

SUMMARY

MOTION to reargue a decision of the Court of Appeals, entered June 28, 2012. The Court of Appeals dismissed an appeal from the Appellate Division of the Supreme Court in the First Judicial Department, entered June 7, 2011, which had modified, on the facts, a judgment of the Supreme Court, New York County (Laura A. Ward, J.), convicting defendant, upon a jury verdict, of grand larceny in the second degree, criminal possession of stolen property in the second degree, burglary in the third degree, and possession of burglar’s tools (six counts), and sentenced him, as a second felony offender, to an aggregate term of 4½ to 9 years. The modification consisted of reducing

the convictions of grand larceny in the second degree and criminal possession of stolen property in the second degree to petit larceny and criminal possession of stolen property in the fifth degree, respectively, and imposing a sentence of time served on each of the reduced convictions. The Appellate Division affirmed the judgment as modified.

On earlier cross appeals, the Court of Appeals found that the Appellate Division's modification was based on an error that was unpreserved in the trial court, and thus was an exercise of the Appellate Division's interest of justice power. Consequently, the People's appeal was dismissed upon the ground that the modification by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification" (CPL 450.90 [2] [a]).

People v Riley, 19 NY3d 944, reargument granted.

HEADNOTE

Crimes — Appeal — Matters Appealable

A decision of the Court of Appeals dismissing the People's appeal on the ground that the modification by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification" (CPL 450.90 [2] [a]) was adhered to on reargument. CPL 470.15 (4) (a) and (b) do not eliminate the necessity of preservation in the trial court to challenge legal sufficiency of the evidence on appeal. Moreover, CPL 470.15 (4) (b) does not alter, for issues of legal sufficiency of the evidence, the well-settled rule that an order reversing or modifying on an unpreserved issue is an exercise of discretion in the interest of justice and not appealable to the Court of Appeals.

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (Andrew E. Seewald of counsel), for appellant-respondent.

Robert S. Dean, Center for Appellate Litigation, New York City (Bruce D. Austern of counsel), for respondent-appellant.

OPINION OF THE COURT

Motion for reargument granted and, upon reargument, the decision of June 28, 2012 adhered to (*see* 19 NY3d 944 [2012]). CPL 470.15 (4) (a) and (b) do not eliminate the necessity of preservation in the trial court to challenge legal sufficiency of the evidence on appeal (*People v Gray*, 86 NY2d 10, 20 [1995]). Moreover, contrary to the contention the People press upon reargument, CPL 470.15 (4) (b) does not alter, for issues of legal sufficiency of the evidence, the well-settled rule that an order reversing or modifying on an unpreserved issue is an exercise of

discretion in the interest of justice and not appealable to this Court (CPL 450.90 [2] [a]; see *People v Bonilla-Lugo*, 85 NY2d 965 [1995], and *People v Christian*, 85 NY2d 965 [1995] [decided the same day as *People v Gray*]). The People's appeal in this case was properly dismissed.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO and READ.

SMITH, J. and PIGOTT, J. (dissenting). Judges Smith and Pigott dissent in part and, upon reargument, vote to retain the People's appeal for the reasons stated in Judge Pigott's dissenting in part opinion of June 28, 2012 (19 NY3d 944, 947 [2012]) and upon the further reason that the modification by the Appellate Division, on an unpreserved issue of legal sufficiency of the evidence, should be deemed to be upon the law (CPL 470.15 [4] [b]) and appealable by the People (CPL 450.90 [2] [a]).

In the Matter of JERRICK ALLISON, Appellant, v ALBERT PRACK,
as Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted November 5, 2012; decided December 18, 2012

Reported below, 95 AD3d 1569.

Motion, insofar as it seeks leave to appeal from the Appellate Division order of affirmance, dismissed as untimely (see CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ALSON ALSTON, Appellant, v NEW YORK CITY COMMISSION ON
HUMAN RIGHTS et al., Respondents.

Submitted November 13, 2012; decided December 18, 2012

Reported below, 2012 NY Slip Op 64854(U).

Motion for reargument of motion for leave to appeal denied [see 19 NY3d 1021 (2012)].

In the Matter of EUGENE CHMURA, an Attorney, Appellant.
GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH AND
THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Submitted November 26, 2012; decided December 18, 2012

Reported below, 99 AD3d 239.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

In the Matter of THE NEW YORK COUNTY LAWYERS' ASSOCIATION
et al., Appellants, and THE NEW YORK CRIMINAL BAR AS-
SOCIATION, INC., et al., Intervenor-Petitioners-Appellants, v
MICHAEL R. BLOOMBERG, in His Official Capacity as Mayor
of the City of New York, et al., Respondents, and THE LEGAL
AID SOCIETY OF NEW YORK, Intervenor-Respondent-
Respondent.

Submitted November 19, 2012; decided December 18, 2012

Reported below, 95 AD3d 92.

Motion by The New York County Lawyers' Association et al.
for reargument denied [*see* 19 NY3d 712 (2012)].

In the Matter of THE NEW YORK COUNTY LAWYERS' ASSOCIATION
et al., Appellants, and THE NEW YORK CRIMINAL BAR AS-
SOCIATION, INC., et al., Intervenor-Petitioners-Appellants, v
MICHAEL R. BLOOMBERG, in His Official Capacity as Mayor
of the City of New York, et al., Respondents, and THE LEGAL
AID SOCIETY OF NEW YORK, Intervenor-Respondent-
Respondent.

Submitted December 10, 2012; decided December 18, 2012

Reported below, 95 AD3d 92.

Motion by The New York Criminal Bar Association, Inc. et al.
for reargument denied [*see* 19 NY3d 712 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL AZIZ
ZARIF SHABAZZ, Also Known as MICHAEL HURLEY, Appel-
lant, v JEROME J. RICHARDS, Acting Judge of Franklin
County Court, et al., Respondents.

Submitted November 5, 2012; decided December 18, 2012

Reported below, 2012 NY Slip Op 66089(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DEEPAK TRIVEDI, Appellant, v ROBERT GOLUB, Defendant, and
FLUSHING HOSPITAL MEDICAL CENTER, Respondent.

Submitted October 29, 2012; decided December 18, 2012

Reported below, 90 AD3d 1031.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; CPLR 2103 [b] [2]). Motion for poor person relief dismissed as academic.

247 EAST 32ND LLC et al., Respondents, v KATHERINE
GASPARICH, Appellant.

Submitted November 2, 2012; decided December 18, 2012

Reported below, 95 AD3d 790.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(December 1, 2012 through December 31, 2012)

Chapman, Matter of, v Fischer	4th Dept: 98 AD3d 1267	12/19/12
Philadelphia Ins. Co., Matter of (Utica Natl. Ins. Group)	4th Dept: 97 AD3d 1153	12/19/12

APPEALS WITHDRAWN AND DISCONTINUED

(December 1, 2012 through December 31, 2012)

Villarin v Rabbi Haskel Lookstein Sch.	1st Dept: 96 AD3d 1	12/14/12
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(December 1, 2012 through December 31, 2012)

People v Abdulla	4th Dept: 98 AD3d 1253 (Erie)	denied 12/4/12 (Pigott, J.)
People v Allen	4th Dept: 98 AD3d 1323 (Onondaga)	denied 12/28/12 (Grafteo, J.)
People v Alvarez (Abner)	2d Dept: 98 AD3d 985 (Orange)	denied 12/7/12 (Smith, J.)
People v Alvarez (Rosaura)	County Ct, 10/22/12 (Monroe)	denied 12/18/12 (Smith, J.)
People v Anderson	2d Dept: 99 AD3d 808 (Suffolk)	denied 12/27/12 (Smith, J.)
People v Anonymous	1st Dept: 98 AD3d 913 (NY)	denied 12/28/12 (Grafteo, J.)
People v Arcuri	2d Dept: 97 AD3d 836 (Kings)	denied 12/4/12 (Read, J.)
People v Ballinger	2d Dept: 99 AD3d 931 (Kings)	denied 12/18/12 (Smith, J.)
People v Best	1st Dept: 99 AD3d 493 (NY)	denied 12/4/12 (Read, J.)
People v Blond	3d Dept: 96 AD3d 1149 (Schenectady)	denied reconsideration 12/19/12 (Pigott, J.)
People v Bonneau	3d Dept: 94 AD3d 1158 (Greene)	denied 12/5/12 (Smith, J.)
People v B.P.	2d Dept: 98 AD3d 1136 (Suffolk)	denied 12/13/12 (Smith, J.)
People v Burgess	2d Dept: 97 AD3d 837 (Kings)	denied 12/4/12 (Pigott, J.)
People v Burkett	2d Dept: 98 AD3d 746 (Westchester)	denied 12/19/12 (Pigott, J.)
People v Cadenas	2d Dept: 98 AD3d 1061 (Kings)	denied 12/5/12 (Read, J.)
People v Calder	App Div, 2d Dept: 2012 NY Slip Op 83250(U) (Queens)	dismissed 12/5/12 (Read, J.)
People v Caldwell	4th Dept: 98 AD3d 1272 (Herkimer)	denied 12/19/12 (Pigott, J.)
People v Campbell	App Div, 3d Dept: 2012 NY Slip Op 84354(U) (Madison)	dismissed 12/7/12 (Smith, J.)
People v Casado	4th Dept: 99 AD3d 1208 (Monroe)	denied 12/12/12 (Pigott, J.)
People v Ceparano	2d Dept: 96 AD3d 774 (Suffolk)	denied reconsideration 12/11/12 (Grafteo, J.)
People v Chettana	App Div, 3d Dept: 2012 NY Slip Op 83008(U) (Schenectady)	denied 12/28/12 (Grafteo, J.)
People v Cintron	1st Dept: 99 AD3d 439 (Bronx)	granted 12/21/12 (Grafteo, J.)

People v Compton	County Ct, 6/15/12 (Genesee)	denied 12/14/12 (Smith, J.)
People v Constant	2d Dept: 96 AD3d 1074 (Kings)	denied 12/21/12 (Lippman, Ch. J.)
People v Cosme	2d Dept: 99 AD3d 940 (Kings)	denied 12/11/12 (Grafteo, J.)
People v Crane	App Term, 2d Dept, 9th & 10th Jud Dists: 35 Misc 3d 132(A) (Orange)	denied reconsideration 12/28/12 (Grafteo, J.)
People v Daniels	2d Dept: 97 AD3d 690 (Richmond)	denied 12/28/12 (Grafteo, J.)
People v Diggs	4th Dept: 98 AD3d 1255 (Monroe)	denied 12/11/12 (Grafteo, J.)
People v Dockery	4th Dept: 98 AD3d 1308 (Erie)	denied 12/28/12 (Grafteo, J.)
People v Douyon	4th Dept: 98 AD3d 1323 (Monroe)	denied 12/28/12 (Grafteo, J.)
People v Espinal	1st Dept: 99 AD3d 435 (NY)	denied 12/28/12 (Grafteo, J.)
People v Espinoza	1st Dept: 99 AD3d 453 (Bronx)	denied 12/4/12 (Pigott, J.)
People v Fevoy	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 35 Misc 3d 143(A) (Kings)	denied 12/27/12 (Lippman, Ch. J.)
People v Finch	County Ct, 8/23/12 (Onondaga)	granted 12/13/12 (Pigott, J.)
People v Flinn	4th Dept: 98 AD3d 1262 (Jefferson)	granted 12/20/12 (Grafteo, J.)
People v Foster	2d Dept: 99 AD3d 812 (Nassau)	denied 12/28/12 (Grafteo, J.)
People v Fully	2d Dept: 100 AD3d 653 (Richmond)	denied 12/28/12 (Grafteo, J.)
People v Garcia	2d Dept: 98 AD3d 688 (Kings)	denied 12/28/12 (Grafteo, J.)
People v Greely	1st Dept: 99 AD3d 562 (NY)	denied 12/11/12 (Smith, J.)
People v Green	App Div, 3d Dept, 5/18/12 (Albany)	denied 12/27/12 (Smith, J.)
People v Harden	3d Dept: 99 AD3d 1031 (Albany)	denied 12/12/12 (Pigott, J.)
People v Hawkins	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 54 (Kings)	granted 12/17/12 (Smith, J.)
People v Henderson	1st Dept: 98 AD3d 895 (NY)	denied 12/7/12 (Smith, J.)
People v Herrera	2d Dept: 99 AD3d 813 (Rockland)	denied 12/27/12 (Smith, J.)
People v Herrera-Castellanos	2d Dept: 99 AD3d 813 (Rockland)	denied 12/27/12 (Smith, J.)
People v Hewitt	2d Dept: 99 AD3d 723 (Westchester)	denied 12/19/12 (Pigott, J.)

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People v Ivy	4th Dept: 98 AD3d 1323 (Erie)	denied 12/13/12 (Smith, J.)
People v Jackson	4th Dept: 99 AD3d 1240 (Erie)	denied 12/28/12 (Grafteo, J.)
People v Jameson	2d Dept: 95 AD3d 1236 (Kings)	denied 12/27/12 (Lippman, Ch. J.)
People v Jams	App Div, 3d Dept: 2012 NY Slip Op 84355(U) (Albany)	denied 12/7/12 (Smith, J.)
People v Jerome	3d Dept: 98 AD3d 1188 (St. Lawrence)	denied 12/11/12 (Smith, J.)
People v Jimenez	1st Dept: 98 AD3d 886 (Bronx)	granted 12/28/12 (Lippman, Ch. J.)
People v Johnson (Jamar)	App Div, 3d Dept: 2012 NY Slip Op 84355(U) (Albany)	denied 12/7/12 (Smith, J.)
People v Johnson (Johnathan)	2d Dept: 99 AD3d 723 (Queens)	denied 12/4/12 (Pigott, J.)
People v Kimp	App Div, 1st Dept: 2012 NY Slip Op 76436(U) (NY)	denied 12/28/12 (Grafteo, J.)
People v Latorre	4th Dept: 94 AD3d 1429 (Erie)	denied reconsideration 12/28/12 (Grafteo, J.)
People v Linder	1st Dept: 98 AD3d 921 (NY)	denied 12/5/12 (Read, J.)
People v Man	4th Dept: 96 AD3d 1418 (Monroe)	denied 12/4/12 (Read, J.)
People v Mangal	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 37 Misc 3d 131(A) (Kings)	denied 12/28/12 (Grafteo, J.)
People v Marte	1st Dept: 99 AD3d 432 (NY)	denied 12/11/12 (Smith, J.)
People v Martinez (Christobal)	1st Dept: 99 AD3d 493 (NY)	denied 12/4/12 (Pigott, J.)
People v Martinez (Christopher)	1st Dept: 95 AD3d 677 (Bronx)	granted 12/11/12 (Smith, J.)
People v McDevitt (P.)	3d Dept: 97 AD3d 1039 (Warren)	denied 12/4/12 (Read, J.)
People v McDevitt (Peter)	3d Dept: 97 AD3d 1039 (Warren)	denied 12/4/12 (Read, J.)
People v McKenzie	2d Dept: 98 AD3d 749 (Suffolk)	denied 12/4/12 (Read, J.)
People v Montgomery	App Div, 4th Dept, 10/19/12 (Erie)	dismissed 12/5/12 (Lippman, Ch. J.)
People v Moreno	1st Dept: 100 AD3d 435 (NY)	denied 12/14/12 (Grafteo, J.)
People v Morgan	4th Dept: 96 AD3d 1418 (Monroe)	denied 12/4/12 (Read, J.)
People v Moronta	1st Dept: 96 AD3d 418 (NY)	denied 12/26/12 (Grafteo, J.)
People v Norris	2d Dept: 98 AD3d 586 (Richmond)	denied 12/4/12 (Read, J.)

People v Ofori-Awuku	App Term, 1st Dept: 37 Misc 3d 132(A) (NY)	denied 12/11/12 (Grafteo, J.)
People v Paulin	1st Dept: 99 AD3d 578 (Bronx)	denied 12/19/12 (Pigott, J.)
People v Pernell	2d Dept: 95 AD3d 1142 (Suffolk)	denied 12/5/12 (Lippman, Ch. J.)
People v Peterson	2d Dept: 98 AD3d 1137 (Queens)	denied 12/13/12 (Smith, J.)
People v Pinckney	2d Dept: 99 AD3d 946 (Suffolk)	denied 12/13/12 (Smith, J.)
People v Ponder	4th Dept: 98 AD3d 1324 (Monroe)	denied 12/12/12 (Lippman, Ch. J.)
People v Poole	App Div, 4th Dept, 9/13/12 (Monroe)	dismissed 12/3/12 (Pigott, J.)
People v Pytlak	4th Dept: 99 AD3d 1242 (Erie)	denied 12/4/12 (Read, J.)
People v Racquet	County Ct, 9/7/12 (Oneida)	denied 12/12/12 (Pigott, J.)
People v Rafikian	2d Dept: 98 AD3d 1139 (Queens)	denied 12/11/12 (Smith, J.)
People v Ramirez	4th Dept: 99 AD3d 1241 (Ontario)	denied 12/28/12 (Grafteo, J.)
People v Reyes	2d Dept: 98 AD3d 1140 (Suffolk)	denied 12/4/12 (Read, J.)
People v Roberites	App Div, 4th Dept: 2012 NY Slip Op 88789(U) (Livingston)	dismissed 12/26/12 (Lippman, Ch. J.)
People v Robinson	2d Dept: 99 AD3d 816 (Queens)	denied 12/27/12 (Smith, J.)
People v Sandy (Kester)	App Div, 2d Dept: 2012 NY Slip Op 77809(U) (Queens)	dismissed 12/18/12 (Smith, J.)
People v Sandy (Kester)	App Div, 2d Dept: 2012 NY Slip Op 87577(U) (Queens)	dismissed 12/18/12 (Smith, J.)
People v Santos (Kelly)	App Div, 2d Dept: 2012 NY Slip Op 86922(U) (Orange)	dismissed 12/20/12 (Smith, J.)
People v Santos (Miguel)	1st Dept: 96 AD3d 624 (NY)	denied 12/7/12 (Smith, J.)
People v Shamsiddeen (Kasib)	2d Dept: 98 AD3d 694 (Dutchess)	denied 12/4/12 (Read, J.)
People v Shamsiddeen (Kasid)	2d Dept: 98 AD3d 694 (Dutchess)	denied 12/4/12 (Read, J.)
People v Shamsiddeen (Titus)	2d Dept: 98 AD3d 694 (Dutchess)	denied 12/4/12 (Read, J.)
People v Shuler	3d Dept: 100 AD3d 1041 (Broome)	denied 12/28/12 (Grafteo, J.)
People v Sidberry	2d Dept: 99 AD3d 818 (Kings)	denied 12/5/12 (Lippman, Ch. J.)
People v Silva	1st Dept: 99 AD3d 530 (NY)	denied 12/13/12 (Smith, J.)

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People v Silva-Almodovar	App Term, 1st Dept: 37 Misc 3d 62 (NY)	denied 12/4/12 (Read, J.)
People v Smith (Anthony)	1st Dept: 98 AD3d 903 (NY)	denied 12/12/12 (Pigott, J.)
People v Smith (Patrick)	2d Dept: 98 AD3d 533 (Westchester)	denied 12/4/12 (Pigott, J.)
People v Smith (Torrel)	2d Dept: 95 AD3d 1145 (Westchester)	granted 12/28/12 (Lippman, Ch. J.)
People v Spencer	4th Dept: 96 AD3d 1552 (Erie)	denied reconsideration 12/3/12 (Ciparick, J.)
People v Spralling	1st Dept: 91 AD3d 510 (Bronx)	denied 12/27/12 (Lippman, Ch. J.)
People v Stanislaus-Blache	2d Dept: 93 AD3d 740 (Westchester)	denied 12/28/12 (Grafteo, J.)
People v Stickler	3d Dept: 97 AD3d 854 (Chemung)	denied 12/7/12 (Smith, J.)
People v Sullivan	4th Dept: 96 AD3d 1702 (Erie)	denied reconsideration 12/20/12 (Smith, J.)
People v Swinton	1st Dept: 96 AD3d 681 (NY)	denied* 12/7/12 (Smith, J.)
People v Thomas	1st Dept: 99 AD3d 569 (NY)	denied 12/28/12 (Grafteo, J.)
People v Thompson	2d Dept: 99 AD3d 819 (Queens)	denied 12/13/12 (Smith, J.)
People v Truman	2d Dept: 99 AD3d 821 (Kings)	denied 12/28/12 (Grafteo, J.)
People v Urbina	1st Dept: 99 AD3d 552 (NY)	denied 12/18/12 (Grafteo, J.)
People v Valdez-Cruz	2d Dept: 99 AD3d 738 (Nassau)	denied 12/19/12 (Pigott, J.)
People v Walker (Benny)	4th Dept: 96 AD3d 1481 (Monroe)	denied 12/4/12 (Read, J.)
People v Walker (Frederick)	App Div, 4th Dept, 10/22/12 (Monroe)	dismissed 12/3/12 (Pigott, J.)
People v Wannamaker	1st Dept: 93 AD3d 426 (NY)	denied 12/27/12 (Lippman, Ch. J.)
People v Wesley	App Div, 1st Dept: 2012 NY Slip Op 76436(U) (NY)	denied 12/28/12 (Grafteo, J.)
People v Wheeler	4th Dept: 99 AD3d 1168 (Monroe)	denied 12/20/12 (Smith, J.)
People v Williams (DeAndre)	App Div, 2d Dept: 2012 NY Slip Op 85165(U) (Westchester)	dismissed 12/5/12 (Lippman, Ch. J.)

* Denied without prejudice, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Blankymsee* (92 AD3d 890 [2012], *lv granted* 18 NY3d 992 [2012]) or *People v Brinson* (90 AD3d 670 [2011], *lv granted* 18 NY3d 992 [2012]), whichever is later.

People v Williams (DeAndre)	App Div, 2d Dept: 2012 NY Slip Op 89547(U) (Westchester)	dismissed 12/26/12 (Lippman, Ch. J.)
People v Williams (Erica)	County Ct, 6/21/12 (Erie)	denied 12/28/12 (Grafteo, J.)
People v Williams (Reginald)	2d Dept: 98 AD3d 752 (Westchester)	denied 12/4/12 (Pigott, J.)
People v Woods	1st Dept: 97 AD3d 488 (Bronx)	denied 12/28/12 (Grafteo, J.)

[983 NE2d 1239, 960 NYS2d 55]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCHE
JOHNSON, Appellant.

Decided January 8, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered April 27, 2012. The Appellate Division affirmed the resentence of the Cayuga County Court (Mark H. Fandrich, J.), which had resentenced defendant upon his conviction of robbery in the second degree, as a second violent felony offender to a determinate term of imprisonment of 10 years, to be followed by five years of postrelease supervision.

Defendant was convicted upon his plea of guilty of robbery in the second degree, and originally sentenced as a second violent felony offender to a determinate term of imprisonment of 10 years; however, the court failed to impose a period of postrelease supervision, as required by Penal Law § 70.45 (1). The court resentenced defendant to the same term of imprisonment to be followed by five years of postrelease supervision. The Appellate Division concluded that County Court erred by permitting defendant to represent himself at his ultimate sentencing proceeding since it failed to conduct a searching inquiry to ensure that defendant's waiver of the right to counsel was unequivocal, voluntary and intelligent. The Appellate Division found that the error, however, did not warrant reversal of defendant's resentence because the tainted proceeding had no adverse impact and a remand for resentencing would serve no useful purpose given that defense counsel, speaking on behalf of defendant, admitted that defendant was advised during the plea proceedings that a period of postrelease supervision would be imposed.

People v Johnson, 94 AD3d 1496, affirmed.

HEADNOTE

Crimes — Right to Representation Pro Se — Resentencing Proceeding

County Court's error in allowing defendant to proceed pro se during his resentencing proceeding was harmless where the proceeding involved a single question of law and standby counsel argued that issue on defendant's behalf. Moreover, the People were entitled to withdraw their consent to a sentence without a period of postrelease supervision (PRS) (*see* Penal Law § 70.85) where defendant requested an adjournment after the consent was given, and the court informed him that it was holding its resentencing decision "in abeyance." The People were under no continuing obligation to consent to a sentence that did not include PRS. When the People withdrew their consent, the resentencing court was compelled to impose PRS in accordance with Penal Law § 70.45.

APPEARANCES OF COUNSEL

Adam H. Van Buskirk, Aurora, for appellant.

Jon E. Budelmann, District Attorney, Auburn (*Christopher T. Valdina* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The Appellate Division correctly held that the resentencing court's error in allowing defendant to proceed pro se was harmless in these narrow circumstances, where the proceeding involved a single question of law and standby counsel argued that issue on defendant's behalf (*see People v Wardlaw*, 6 NY3d 556, 559 [2006]; *People v Adams*, 52 AD3d 243, 243-244 [1st Dept 2008]).

Defendant's argument that the People were not entitled to withdraw their consent to a sentence without a period of post-release supervision (PRS) should be rejected (*see* Penal Law § 70.85). After the consent was given, defendant requested an adjournment and the court informed him that it was holding its resentencing decision "in abeyance." The People were under no continuing obligation to consent to a sentence that did not include PRS. When the People withdrew their consent, the resentencing court was compelled to impose PRS in accordance with Penal Law § 70.45 (*see People v Sparber*, 10 NY3d 457, 471-472 [2008]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

PATRICIA J. CURTO, Appellant, v NEW YORK STATE THRUWAY AUTHORITY et al., Respondents. (Claim No. 116804-A.)

Submitted November 5, 2012; decided January 8, 2013

Reported below, 93 AD3d 1188 (Appeal No. 2).

Motion for reargument of motion for leave to appeal denied [see 19 NY3d 811 (2012)].

WINIFRED K. DAY, Appellant, v ONE BEACON INSURANCE, Respondent.

Submitted November 19, 2012; decided January 8, 2013

Reported below, 96 AD3d 1678.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SANTO GONZALEZ, Appellant, v DOMINICK VENETTOZZI, as Acting Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted November 13, 2012; decided January 8, 2013

Reported below, 94 AD3d 1313.

Motion for reargument of motion for leave to appeal denied [see 19 NY3d 812 (2012)].

In the Matter of SHAWN G. GRANGER, Respondent, v DANIELLE D. MISERCOLA, Appellant.

Submitted December 10, 2012; decided January 8, 2013

Reported below, 96 AD3d 1694.

Motion by respondent for poor person relief granted.

LILLIAN N. NALL et al., Appellants, v ESTATE OF DAWN POWELL,
Deceased, et al., Respondents, et al., Defendants.

Submitted November 13, 2012; decided January 8, 2013

Reported below, 99 AD3d 411.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of the motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOEL
HERNANDEZ, Also Known as HAZE, Appellant.

Submitted December 17, 2012; decided January 8, 2013

Reported below, 89 AD3d 1123.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY S. PIGNATARO, Appellant.

Submitted December 10, 2012; decided January 8, 2013

Reported below, 93 AD3d 1250.

Motion for assignment of counsel granted and Charles J. Greenberg, Esq., 3840 East Robinson Road, Amherst, New York 14228-2001 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADRIAN
P. THOMAS, Appellant.

Submitted December 24, 2012; decided January 8, 2013

Reported below, 93 AD3d 1019.

Motion for assignment of counsel granted and Jerome K. Frost, Esq., 287 North Greenbush Road, Troy, New York 12180 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. HOWARD GLENN
BLAKE, Alleged to be LARRY W. BARNETT, Appellant, v
GEORGE E. PATAKI, as Governor of the State of New York,
Respondent.

Submitted November 19, 2012; decided January 8, 2013

Reported below, 99 AD3d 956.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

PRINCETEL, LLC, Appellant, v CHRISTOPHER M. BUCKLEY et al.,
Respondents.

Submitted November 26, 2012; decided January 8, 2013

Reported below, 95 AD3d 855.

Motion for leave to appeal dismissed upon the ground that
the orders sought to be appealed from do not finally determine
the action within the meaning of the Constitution.

In the Matter of SONYA SHAPIRO et al., Appellants, v TOWN OF
RAMAPO et al., Respondents.

Submitted November 19, 2012; decided January 8, 2013

Reported below, 98 AD3d 675.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of ELBERT WELCH, Appellant, v CHARLES J. HAN-
NIGAN, Former Niagara County Court Judge, et al., Respon-
dents.

Submitted October 29, 2012; decided January 8, 2013

Reported below, 2012 NY Slip Op 80533(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied. Motion for
poor person relief dismissed as academic.

In the Matter of ELBERT WELCH, Appellant, v JAMES P. PUNCH
et al., Respondents.

Submitted October 29, 2012; decided January 8, 2013

Reported below, 2012 NY Slip Op 69419(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of JOHN L. WESLOWSKI, Respondent, v C. SCOTT
VANDERHOEF et al., Appellants.

Submitted November 19, 2012; decided January 8, 2013

Reported below, 98 AD3d 1123.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of CLIFTON K. WILLIAMSON, Appellant, v BRIAN
FISCHER, as Commissioner of Corrections and Community
Supervision, et al., Respondents.

Submitted November 13, 2012; decided January 8, 2013

Reported below, 96 AD3d 1304.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[985 NE2d 127, 961 NYS2d 363]

In the Matter of COMMISSIONER OF SOCIAL SERVICES, on Behalf
of ELIZABETH S., Appellant, v JULIO J., Respondent.

Decided January 10, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, entered April

24, 2012. The Appellate Division (1) reversed, on the law, an order of the Family Court, New York County (Mary E. Bednar, J.), which had declared respondent to be the father of the subject child, and (2) remanded the matter for further proceedings to include the performance of a biological paternity test. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Family Court, properly made?”

In a paternity proceeding under article 5 of the Family Court Act, the Appellate Division concluded that petitioner agency had failed to establish by evidence that was clear, convincing and entirely satisfactory, that respondent had acted as the child’s father to such an extent as to give rise to equitable estoppel barring him from denying paternity and rendering a biological paternity test inappropriate.

Matter of Commissioner of Social Servs. v Julio J., 94 AD3d 606, reversed.

HEADNOTE

Children Born out of Wedlock — Paternity Proceeding — Equitable Estoppel — Parent-Child Relationship

In a paternity proceeding, the Court of Appeals reversed an Appellate Division order which had reversed a Family Court order declaring respondent to be the father of the subject child based upon findings that the child, who was eight years old at the time of the hearing, knew respondent, with his encouragement, as her father; that a relationship had existed insofar as the child was concerned; and that the child had relied on respondent to be her father sufficiently such that it would be to her detriment for the court to direct DNA testing. Before a party can be estopped from denying paternity or from obtaining a DNA test that may establish that he is not the child’s biological parent, the court must be convinced that applying equitable estoppel is in the child’s best interest, and the party seeking to prove paternity, whether by estoppel or otherwise, must do so by clear and convincing evidence. Here, the Appellate Division, considering the same evidence as Family Court, made different factual findings to support its conclusion that the Commissioner of Social Services had not proven by clear and convincing evidence that respondent should be estopped from denying paternity. The Court of Appeals, reviewing the record to determine which set of findings more nearly comported with the weight of the evidence, concluded that the evidence more nearly comported with Family Court’s findings. Upon those findings, Family Court properly decided that respondent should be equitably estopped from asserting nonpaternity.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Deborah A. Brenner* of counsel), for appellant.

George E. Reed, Jr., White Plains, for respondent.

Lawyers For Children, Inc., New York City (*Brenda S. Soloff* of counsel), for Elizabeth S.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, the order of Family Court reinstated, and the certified question answered in the negative.

Before a party can be estopped from denying paternity or from obtaining a DNA test that may establish that he is not the child's biological parent, the court must be convinced that applying equitable estoppel is in the child's best interest (*Matter of Shondel J. v Mark D.*, 7 NY3d 320 [2006]). The party seeking to prove paternity, whether by estoppel or otherwise, must do so by clear and convincing evidence. Here, although the Appellate Division stated that its reversal was on the law, that Court, considering the same evidence as Family Court, made different factual findings to support its conclusion that the Commissioner of Social Services had not proven by clear and convincing evidence that respondent Julio J. should be estopped from denying paternity. Accordingly, we review the record to determine which set of findings more nearly comports with the weight of the evidence (*see Matter of Jamie M.*, 63 NY2d 388, 393 [1984]).

We conclude that the evidence more nearly comports with Family Court's findings that the child, who was eight years old at the time of the hearing, knows respondent, with his encouragement, as her father; that a relationship existed insofar as the child was concerned; and that the child relied on respondent to be her father sufficiently such that it would be to her detriment for the court to direct DNA testing. Upon those findings, Family Court properly decided that respondent should be equitably estopped from asserting nonpaternity.

Chief Judge LIPPMAN and Judges GRAFFEO, READ and PIGOTT concur; Judge SMITH dissents and votes to affirm, concluding that the findings of the Appellate Division more nearly comport with the weight of the evidence.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, without costs, order of Family Court, New York County, reinstated, and certified question answered in the negative, in a memorandum.

In the Matter of BRANDON R., an Infant. CHRYSTAL R., Appellant; CHILDREN'S AID SOCIETY, Respondent.

Submitted October 15, 2012; decided January 10, 2013

Reported below, 95 AD3d 653.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of the Claim of KEVIN BRENNAN, Appellant, v VILLAGE OF JOHNSON CITY et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted November 19, 2012; decided January 10, 2013

Reported below, 98 AD3d 1199.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MAXIM CHIFRINE, Appellant, v VILENA BEKKER et al., Respondents. (Proceeding No. 1.)

In the Matter of IRINA CHIFRINE, Appellant, v VILENA BEKKER et al., Respondents. (Proceeding No. 2.)

Submitted December 3, 2012; decided January 10, 2013

Reported below, 97 AD3d 574.

Motion for reargument of motion for leave to appeal denied [*see* 19 NY3d 814 (2012)].

In the Matter of the Arbitration between CITY OF OSWEGO, Appellant, and OSWEGO CITY FIREFIGHTERS ASSOCIATION, LOCAL 2707, Respondent.

Submitted January 7, 2013; decided January 10, 2013

Reported below, 93 AD3d 1243.

Motion by New York State Professional Firefighters Association, I.A.F.F., AFL-CIO for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of ARISLEDA DUARTE, Respondent, v CITY OF NEW YORK, Appellant.

Submitted January 7, 2013; decided January 10, 2013

Reported below, 91 AD3d 778.

Motion by Columbia Law School Prisoners and Families Clinic of Morningside Heights Legal Services for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of ARISLEDA DUARTE, Respondent, v CITY OF NEW YORK, Appellant.

Submitted January 7, 2013; decided January 10, 2013

Reported below, 91 AD3d 778.

Motion by Prisoners' Rights Project of the New York City Legal Aid Society for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of GABRIEL J. and Another, Children Alleged to be Neglected. O'NEILL H. et al., Respondents; DAINEE A., Appellant. (And Another Proceeding.)

Submitted November 13, 2012; decided January 10, 2013

Reported below, 99 AD3d 543.

Motion for leave to appeal from the October 2012 Appellate Division order dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of GABRIEL J. and Another, Children Alleged to be Neglected. O'NEILL H. et al., Respondents; DAINEE A., Appellant. (And Another Proceeding.)

Submitted December 24, 2012; decided January 10, 2013

Reported below, 100 AD3d 572.

Motion for leave to appeal from the November 2012 Appellate Division order denied.

MARIA HARAKIDAS et al., Respondents, v CITY OF NEW YORK et al., Defendants, and BRAZAL SOUTH HOLDINGS, LLC, Appellant.

Submitted December 10, 2012; decided January 10, 2013

Reported below, 86 AD3d 624.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and CHRISTOPHER BRAMWELL et al., Respondents.

Submitted November 26, 2012; decided January 10, 2013

Reported below, 2012 NY Slip Op 89180(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARY OLSEN et al., Appellants, v STELLAR WEST 110, LLC, Respondent.

Submitted November 5, 2012; decided January 10, 2013

Reported below, 96 AD3d 440.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JASON EVERETT PANZER, Appellant, v MELISSA
JEAN WOOD, Respondent.

Submitted November 26, 2012; decided January 10, 2013

Reported below, 100 AD3d 1119.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EARL
BELL, JR., Appellant.

Submitted January 7, 2013; decided January 10, 2013

Reported below, 82 AD3d 997.

Motion for assignment of counsel granted and Alex Smith, Esq., 6 North Street, Middletown, New York 10940 assigned as counsel to the appellant on the appeal herein.

AKWESASNE CONVENIENCE STORE ASSOCIATION et al., Appellants,
v STATE OF NEW YORK et al., Respondents.

Decided January 15, 2013

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of RITA CUSIMANO, Appellant, v STRIANESE FAMILY
LIMITED PARTNERSHIP et al., Respondents, and BERNARD
STRIANESE et al., Intervenors-Respondents, et al., Respon-
dents.

Submitted November 13, 2012; decided January 15, 2013

Reported below, 97 AD3d 744.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellant's motion to renew, dismissed upon the ground that such part of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of an Investigation of the DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT into the Professional Conduct of an Attorney and Counselor-at-Law, Respondent; SUSAN ANONYMOUS, Appellant.

Decided January 15, 2013

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of DIAMOND LEE P., a Child Alleged to be Permanently Neglected. PAULA C., Also Known as PAULA T., Appellant; CARDINAL McCLOSKEY SERVICES, Respondent.

Submitted November 26, 2012; decided January 15, 2013

Reported below, 99 AD3d 451.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of G & C TRANSPORTATION, INC., et al., Appellants, v JEAN-ANN McGRANE et al., Respondents.

Decided January 15, 2013

Reported below, 97 AD3d 817.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

GEORGITSI REALTY, LLC, Appellant, v PENN-STAR INSURANCE COMPANY, Respondent.

Decided January 15, 2013

See 702 F3d 152.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT.

In the Matter of ISABELITA GONZALEZ, Appellant, et al.,
Petitioner, v DIVISION OF HOUSING AND COMMUNITY RENEWAL
OF THE STATE OF NEW YORK et al., Respondents.

Submitted November 19, 2012; decided January 15, 2013

Reported below, 95 AD3d 681.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of ISABELITA GONZALEZ, Petitioner, and EMADIELIN OMAR, Appellant, v DIVISION OF HOUSING AND COMMUNITY RENEWAL OF THE STATE OF NEW YORK et al., Respondents.

Submitted December 24, 2012; decided January 15, 2013

Reported below, 95 AD3d 681.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

JANE HAUCK et al., Appellants, v LILLIAN LOMBARDO, Respondent, et al., Defendant.

Submitted December 3, 2012; decided January 15, 2013

Reported below, 99 AD3d 861.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of KATIE KICKERTZ, Respondent, v NEW YORK UNIVERSITY, Appellant.

Submitted December 3, 2012; decided January 15, 2013

Reported below, 99 AD3d 502.

Motion for a stay dismissed as academic.

In the Matter of KATIE KICKERTZ, Respondent, v NEW YORK UNIVERSITY, Appellant.

Submitted December 17, 2012; decided January 15, 2013

Reported below, 99 AD3d 502.

Motion to dismiss appeal granted and appeal dismissed upon the ground that the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

ERIC LANDON, Respondent, v KROLL LABORATORY SPECIALISTS, INC., Appellant.

Submitted December 10, 2012; decided January 15, 2013

Reported below, 91 AD3d 79.

Motion by Robert N. Isseks and Bloom & Bloom, P.C. to withdraw as counsel for respondent on the appeal herein granted.

In the Matter of MARVIN P., Appellant, v KATHLEEN M. RICE, Nassau County District Attorney, et al., Respondents.

Submitted December 17, 2012; decided January 15, 2013

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

NINETEEN EIGHTY-NINE, LLC, Plaintiff, v ICAHN ENTERPRISES L.P. et al., Defendants.

CARL C. ICAHN et al., Appellants, v GEOFFREY RAYNOR et al., Respondents.

Decided January 15, 2013

Reported below, 99 AD3d 546.

Appeal, insofar as taken from that portion of the Appellate Division order which affirmed Supreme Court's denial of appellants' motion to amend the complaint, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SAID GSSIME, Appellant, v DANIEL F. MARTUSCELLO JR., as Superintendent of Coxsackie Correctional Facility, Respondent.

Decided January 15, 2013

Reported below, 2012 NY Slip Op 89407(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SHADE B., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; DENZIL B., Appellant, et al., Respondent.

Submitted November 19, 2012; decided January 15, 2013

Reported below, 99 AD3d 1001.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

WEI XU, Appellant, v FANGRUO CHEN, Respondent.

Submitted December 10, 2012; decided January 15, 2013

Reported below, 2012 NY Slip Op 87276(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of YARY, an Infant. CAROL W., Petitioner; LEAKE & WATTS SERVICES, INC., et al., Respondents.

In the Matter of YARY, an Infant. LEAKE & WATTS SERVICES, INC., Respondent; CARMEN A., Appellant, et al., Respondent.

Submitted January 7, 2013; decided January 15, 2013

Reported below, 100 AD3d 200.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

[983 NE2d 768, 959 NYS2d 689]

In the Matter of GEORGE A. AMEDORE, JR., Appellant-Respondent, v GREGORY PETERSON, Respondent, and CECILIA F. TKACZYK, Respondent-Appellant, et al., Respondents. (And Another Proceeding.)

Decided January 16, 2013

SUMMARY

MOTIONS for leave to appeal from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 9, 2013. The Appellate Division modified, on the law and the facts, an order of the Supreme Court, Montgomery County (Guy P. Tomlinson, J.), which, in two proceedings pursuant to Election Law article 16, had, among other things, partially granted petitioners' applications to, among other things, direct that certain ballots be cast and canvassed in the November 6, 2012 general election for the office of State Senator for the 46th Senate District. The modification consisted of directing the respective county boards of elec-

tions to cast and canvass certain ballots. The Appellate Division affirmed the order as modified.

In an Election Law proceeding, the parties disputed whether certain affidavit and absentee ballots should be cast and canvassed by the Boards of Election in five upstate counties.

Matter of Amedore v Peterson, 102 AD3d 995, leave denied.

HEADNOTE

Elections — Absentee Ballots — Affidavit Ballots

In an Election Law proceeding, motions for leave to appeal from an order of the Appellate Division ordering that certain absentee and affidavit ballots be cast and canvassed were denied.

APPEARANCES OF COUNSEL

Lewis & Fiore, New York City (*David L. Lewis* of counsel), for appellant-respondent.

Law Office of James E. Long Esq., Albany (*James E. Long* of counsel), for Cecilia F. Tkaczyk, respondent-appellant.

Lanny E. Walter, Saugerties, for Barbara Bravo and another, respondents.

OPINION OF THE COURT

Appellant-respondent having moved for leave to appeal to the Court of Appeals and for a stay in the above causes; and respondent-appellant having moved for leave to appeal to the Court of Appeals in the above causes; upon the papers filed and due deliberation, it is ordered, that the motions for leave to appeal are denied; and it is further ordered, that the motion for a stay is dismissed as academic.

Concur: Chief Judge LIPPMAN and Judges READ, SMITH and FIGOTT. Judge GRAFFEO dissents in an opinion.

GRAFFEO, J. (dissenting). This case presents a significant issue of statutory interpretation that should be resolved by our Court. Under the current Election Law, we do not have early voting in New York. Every voter must appear at a designated polling place to cast a vote on election day unless the voter falls into one of the few narrow categories for whom alternative voting methods are permitted by statute. We have traditionally required strict compliance with these procedures, even when an inadvertent error by a board of elections has proved detrimental to the voter (*see Matter of Gross v Albany County Bd. of Elections*, 3 NY3d 251 [2004]).

This case involves a particular alternative voting method—the use of special ballots by poll workers. Their use is governed by Election Law § 11-302, which provides:

“The board of elections shall provide such voter a special ballot not earlier than two weeks before the election and not later than the close of the polls on election day. Such cast ballots may be delivered to an office of such board of elections or to any board of inspectors not later than the close of the polls on election day.”

Since the statute precludes a board of elections from supplying a special ballot to a poll worker more than two weeks before election day and then directs that the ballot be cast no later than the close of the polls, a strong argument can be made that the statute requires special ballots to be cast no earlier than the two weeks preceding the election. Yet, here, where special ballots were both given to poll workers and cast more than two weeks prior to the election, the Appellate Division concluded that there was no violation of the Election Law, thereby allowing the votes to be canvassed.

I appreciate that a violation of the Election Law is not dispositive of whether a vote will be counted and, if an error occurred in this case, it is attributable to the board of elections that distributed the special ballots. But we have said in the context of absentee balloting that an exception to statutory compliance that would permit the canvassing of ballots in contravention of the Election Law whenever a voter reasonably relies on the actions of a board of elections, “would swallow the rule, effectively relieving election officials of their obligation to adhere to the law” (*Gross*, 3 NY3d at 260). Here, because the lower courts reached contrary conclusions regarding the proper interpretation of Election Law § 11-302, I believe further appellate review is warranted.

APPEALS WITHDRAWN AND DISCONTINUED

(January 1, 2013 through January 31, 2013)

Mayrich Constr. Co., Matter of,
v Oliver LLC

1st Dept: 90 AD3d 509

1/23/13

MEMORANDA

1009

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(January 1, 2013 through January 31, 2013)

People v Alsaifullah	App Div, 3d Dept, 8/23/12 (Albany)	dismissed 1/11/13 (Lippman, Ch. J.)
People v Anderson (David)	1st Dept: 99 AD3d 477 (NY)	denied 1/15/13 (Grafteo, J.)
People v Anderson (Jacqueline)	County Ct, 10/4/12 (Monroe)	denied 1/16/13 (Pigott, J.)
People v Anderson (William)	3d Dept: 99 AD3d 1034 (Cortland)	denied 1/16/13 (Smith, J.)
People v Bajana	2d Dept: 99 AD3d 719 (Queens)	denied 1/31/13 (Grafteo, J.)
People v Barnes	2d Dept: 99 AD3d 719 (Suffolk)	denied 1/23/13 (Grafteo, J.)
People v Bickley	3d Dept: 99 AD3d 1113 (Albany)	denied 1/22/13 (Lippman, Ch. J.)
People v Blackshear	App Div, 4th Dept, 6/5/12 (Onondaga)	dismissed 1/16/13 (Pigott, J.)
People v Bohan	2d Dept: 100 AD3d 767 (Queens)	denied 1/30/13 (Grafteo, J.)
People v Boyd	3d Dept: 97 AD3d 898 (St. Lawrence)	denied 1/14/13 (Smith, J.)
People v Bracero	1st Dept: 99 AD3d 635 (NY)	denied 1/14/13 (Smith, J.)
People v Braham	2d Dept: 97 AD3d 689 (Kings)	denied 1/10/13 (Read, J.)
People v Brown (Dana)	4th Dept: 100 AD3d 1452 (Livingston)	denied 1/29/13 (Grafteo, J.)
People v Brown (Michael)	2d Dept: 96 AD3d 869 (Westchester)	denied 1/19/13 (Pigott, J.)
People v Brown (Thomas)	3d Dept: 100 AD3d 1035 (Broome)	denied 1/29/13 (Smith, J.)
People v Brown-Dietrich	1st Dept: 100 AD3d 445 (NY)	denied 1/16/13 (Smith, J.)
People v Brumant	2d Dept: 99 AD3d 1016 (Kings)	denied 1/17/13 (Pigott, J.)
People v Bryant	1st Dept: 91 AD3d 558 (Bronx)	denied 1/25/13 (Lippman, Ch. J.)
People v Buckery	3d Dept: 98 AD3d 1191 (Warren)	denied 1/31/13 (Grafteo, J.)
People v Buckhalter	1st Dept: 99 AD3d 604 (NY)	denied 1/16/13 (Smith, J.)
People v Bush	2d Dept: 97 AD3d 690 (Kings)	denied 1/19/13 (Pigott, J.)
People v Byrd	2d Dept: 99 AD3d 811 (Westchester)	denied 1/16/13 (Smith, J.)
People v Campbell	4th Dept: 98 AD3d 1310 (Monroe)	denied 1/24/13 (Pigott, J.)
People v Cardova	2d Dept: 98 AD3d 1133 (Queens)	denied 1/17/13 (Pigott, J.)

People v Cardwell	2d Dept: 98 AD3d 986 (Queens)	denied 1/16/13 (Pigott, J.)
People v Carr	4th Dept: 99 AD3d 1173 (Erie)	denied 1/17/13 (Pigott, J.)
People v Case	County Ct, 7/30/12 (Onondaga)	denied 1/14/13 (Smith, J.)
People v Cassidy	County Ct, 9/18/12 (Monroe)	denied 1/25/13 (Lippman, Ch. J.)
People v Castor (Stacey)	4th Dept: 99 AD3d 1177 (Onondaga)	denied 1/30/13 (Pigott, J.)
People v Castor (Stacey)	4th Dept: 99 AD3d 1184 (Onondaga)	denied* 1/30/13 (Pigott, J.)
People v Cintron	1st Dept: 100 AD3d 507 (NY)	denied 1/29/13 (Grafteo, J.)
People v Clark	3d Dept: 100 AD3d 1157 (Schoharie)	denied 1/15/13 (Grafteo, J.)
People v Clinton	1st Dept: 99 AD3d 477 (NY)	denied 1/10/13 (Read, J.)
People v Coleman (Christopher)	County Ct, 3/9/12 (Erie)	dismissed 1/23/13 (Grafteo, J.)
People v Coleman (Lee)	1st Dept: 98 AD3d 891 (NY)	denied 1/17/13 (Pigott, J.)
People v Cruz	2d Dept: 96 AD3d 872 (Kings)	denied 1/16/13 (Smith, J.)
People v Curet	1st Dept: 99 AD3d 611 (Bronx)	denied 1/10/13 (Read, J.)
People v David	2d Dept: 95 AD3d 1031 (Kings)	denied 1/16/13 (Smith, J.)
People v Davis	4th Dept: 99 AD3d 1228 (Onondaga)	denied 1/15/13 (Smith, J.)
People v Delius	2d Dept: 98 AD3d 986 (Nassau)	denied 1/22/13 (Read, J.)
People v DePalma	3d Dept: 99 AD3d 1116 (Greene)	denied 1/19/13 (Pigott, J.)
People v Dewiel	4th Dept: 100 AD3d 1524 (Erie)	denied 1/19/13 (Pigott, J.)
People v Diatara	App Term, 1st Dept: 36 Misc 3d 158(A) (NY)	denied 1/10/13 (Read, J.)
People v Dove (Donald)	App Div, 3d Dept: 2012 NY Slip Op 81790(U) (Broome)	denied 1/19/13 (Pigott, J.)
People v Dove (Donald)	App Div, 3d Dept: 2010 NY Slip Op 72259(U) (Broome)	dismissed 1/28/13 (Pigott, J.)
People v Drake	4th Dept: 94 AD3d 1506 (Niagara)	denied 1/21/13 (Lippman, Ch. J.)
People v Draper	4th Dept: 100 AD3d 1425 (Genesee)	denied 1/29/13 (Smith, J.)
People v Edouard	2d Dept: 99 AD3d 1018 (Kings)	denied 1/15/13 (Smith, J.)

* Denied with leave to renew within 30 days of the date County Court, Onondaga County, renders a decision on defendant's CPL 440.10 motion.

MEMORANDA

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People v Elmer	3d Dept: 98 AD3d 810 (St. Lawrence)	granted 1/29/13 (Grafteo, J.)
People v Esquivel	2d Dept: 100 AD3d 652 (Nassau)	denied 1/28/13 (Pigott, J.)
People v Everette	1st Dept: 99 AD3d 578 (NY)	denied 1/19/13 (Pigott, J.)
People v Falcon	2d Dept: 98 AD3d 1134 (Queens)	denied 1/8/13 (Lippman, Ch. J.)
People v Fitzgerald	3d Dept: 100 AD3d 1268 (Saratoga)	denied 1/30/13 (Grafteo, J.)
People v Flores	1st Dept: 99 AD3d 432 (Bronx)	denied 1/19/13 (Pigott, J.)
People v Fludd	App Div, 1st Dept: 2012 NY Slip Op 89939(U) (NY)	dismissed 1/17/13 (Pigott, J.)
People v Gardner	2d Dept: 96 AD3d 972 (Queens)	denied 1/31/13 (Grafteo, J.)
People v Garrand	3d Dept: 100 AD3d 1156 (Franklin)	denied 1/30/13 (Grafteo, J.)
People v Glover	4th Dept: 82 AD3d 1718 (Monroe)	denied 1/2/13 (Read, J.)
People v Gonzalez (Kahlil)	App Div, 2d Dept: 2012 NY Slip Op 87571(U) (Westchester)	dismissed 1/15/13 (Grafteo, J.)
People v Gonzalez (Victor)	2d Dept: 99 AD3d 719 (Queens)	denied 1/31/13 (Grafteo, J.)
People v Gordo	4th Dept: 100 AD3d 1424 (Erie) (Appeal No. 1)	denied 1/22/13 (Smith, J.)
People v Gordo	4th Dept: 100 AD3d 1425 (Erie) (Appeal No. 2)	denied 1/22/13 (Smith, J.)
People v Gordo	4th Dept: 100 AD3d 1425 (Erie) (Appeal No. 3)	denied 1/22/13 (Smith, J.)
People v Green	2d Dept: 100 AD3d 654 (Queens)	denied 1/28/13 (Pigott, J.)
People v Griffin (Louis)	3d Dept: 100 AD3d 1153 (Schenectady)	denied 1/14/13 (Lippman, Ch. J.)
People v Griffin (Robert)	4th Dept: 98 AD3d 1324 (Monroe)	denied 1/16/13 (Smith, J.)
People v Gross	4th Dept: 98 AD3d 1325 (Onondaga)	denied 1/30/13 (Grafteo, J.)
People v Gutierrez	1st Dept: 99 AD3d 528 (NY)	denied 1/15/13 (Smith, J.)
People v Harnage	2d Dept: 93 AD3d 679 (Suffolk)	denied 1/22/13 (Lippman, Ch. J.)
People v Harpe	2d Dept: 100 AD3d 657 (Kings)	denied 1/16/13 (Smith, J.)
People v Harris	2d Dept: 101 AD3d 900 (Queens)	denied 1/30/13 (Smith, J.)
People v Henson	2d Dept: 96 AD3d 1076 (Dutchess)	denied 1/10/13 (Read, J.)
People v Hollman	2d Dept: 100 AD3d 776 (Kings)	denied 1/29/13 (Smith, J.)

People v Hubert	4th Dept: 100 AD3d 1443 (Niagara)	denied 1/29/13 (Pigott, J.)
People v Hunter	3d Dept: 98 AD3d 1189 (Sullivan)	denied 1/16/13 (Pigott, J.)
People v Hyra	App Term, 2d Dept, 9th & 10th Jud Dists: 2012 NY Slip Op 92673(U) (Westchester)	dismissed 1/11/13 (Lippman, Ch. J.)
People v Ivey	4th Dept: 98 AD3d 1230 (Monroe)	denied 1/10/13 (Read, J.)
People v Jabbar	1st Dept: 99 AD3d 448 (NY)	denied 1/16/13 (Smith, J.)
People v Jarvis	4th Dept: 98 AD3d 1323 (Monroe)	denied 1/30/13 (Grafteo, J.)
People v Jeker	3d Dept: 99 AD3d 1035 (Broome)	denied 1/10/13 (Read, J.)
People v Jimenez	2d Dept: 99 AD3d 719 (Queens)	denied 1/31/13 (Grafteo, J.)
People v Johnson (Bernard)	2d Dept: 98 AD3d 987 (Queens)	denied 1/16/13 (Smith, J.)
People v Johnson (Lionel)	1st Dept: 100 AD3d 492 (NY)	denied 1/29/13 (Grafteo, J.)
People v Jones (Justin)	4th Dept: 99 AD3d 1254 (Monroe)	denied 1/17/13 (Pigott, J.)
People v Jones (Maleek)	1st Dept: 100 AD3d 429 (NY)	denied 1/31/13 (Grafteo, J.)
People v Jordan (Derrick)	1st Dept: 100 AD3d 560 (NY)	denied 1/29/13 (Grafteo, J.)
People v Jordan (William)	3d Dept: 99 AD3d 1109 (Chemung)	denied 1/30/13 (Smith, J.)
People v Justice	4th Dept: 99 AD3d 1213 (Erie)	denied 1/31/13 (Grafteo, J.)
People v Keitz	4th Dept: 99 AD3d 1254 (Ontario)	denied 1/16/13 (Pigott, J.)
People v Kirk	4th Dept: 96 AD3d 1354 (Oswego)	denied 1/30/13 (Grafteo, J.)
People v Leath	2d Dept: 98 AD3d 690 (Kings)	denied 1/30/13 (Grafteo, J.)
People v Liggan	App Div, 1st Dept: 2012 NY Slip Op 87303(U) (NY)	denied 1/29/13 (Grafteo, J.)
People v Lleshi	2d Dept: 100 AD3d 780 (Rockland)	denied 1/29/13 (Grafteo, J.)
People v Loret	App Div, 4th Dept: 2012 NY Slip Op 87759(U) (Monroe)	denied 1/31/13 (Grafteo, J.)
People v Mack	1st Dept: 100 AD3d 460 (NY)	denied 1/30/13 (Grafteo, J.)
People v Marshall	2d Dept: 97 AD3d 840 (Kings)	denied 1/25/13 (Lippman, Ch. J.)
People v Martin	App Div, 3d Dept: 2012 NY Slip Op 87050(U) (Sullivan)	denied 1/17/13 (Pigott, J.)
People v Martinez (Jose)	4th Dept: 100 AD3d 1424 (Erie) (Appeal No. 1)	denied 1/22/13 (Smith, J.)

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People v Martinez (Jose)	4th Dept: 100 AD3d 1425 (Erie) (Appeal No. 2)	denied 1/22/13 (Smith, J.)
People v Martinez (Jose)	4th Dept: 100 AD3d 1425 (Erie) (Appeal No. 3)	denied 1/22/13 (Smith, J.)
People v Mason	4th Dept: 101 AD3d 1659 (Seneca)	granted 1/4/13 (Read, J.)
People v Maxineau	2d Dept: 99 AD3d 814 (Queens)	denied 1/10/13 (Read, J.)
People v McDaniel (Corey)	2d Dept: 99 AD3d 814 (Dutchess)	denied 1/29/13 (Grafteo, J.)
People v McDaniel (Peter)	2d Dept: 99 AD3d 814 (Dutchess)	denied 1/29/13 (Grafteo, J.)
People v McFarlane	2d Dept: 96 AD3d 879 (Nassau)	denied 1/22/13 (Lippman, Ch. J.)
People v McGhee	2d Dept: 93 AD3d 736 (Queens)	denied 1/21/13 (Lippman, Ch. J.)
People v McLean	3d Dept: 99 AD3d 1111 (St. Lawrence)	denied 1/31/13 (Grafteo, J.)
People v McQuality	3d Dept: 95 AD3d 1369 (Franklin)	denied 1/31/13 (Grafteo, J.)
People v Members	4th Dept: 100 AD3d 1543 (Monroe)	denied 1/17/13 (Smith, J.)
People v Mercado	2d Dept: 101 AD3d 755 (Suffolk)	denied 1/30/13 (Smith, J.)
People v Miaran	2d Dept: 97 AD3d 606 (Queens)	denied 1/15/13 (Smith, J.)
People v Monroe	4th Dept: 98 AD3d 1293 (Monroe)	denied 1/10/13 (Read, J.)
People v Montalvo	2d Dept: 100 AD3d 658 (Suffolk)	denied 1/22/13 (Smith, J.)
People v Morales	1st Dept: 99 AD3d 598 (Bronx)	denied 1/30/13 (Smith, J.)
People v Neely	1st Dept: 99 AD3d 578 (NY)	denied 1/19/13 (Pigott, J.)
People v Neloms	1st Dept: 100 AD3d 483 (NY)	denied 1/30/13 (Smith, J.)
People v Neuer	4th Dept: 100 AD3d 1426 (Genesee)	denied 1/29/13 (Grafteo, J.)
People v Newkirk	4th Dept: 100 AD3d 1504 (Erie)	denied 1/22/13 (Smith, J.)
People v Newsome	1st Dept: 101 AD3d 477 (NY)	denied 1/30/13 (Smith, J.)
People v Nickel	3d Dept: 97 AD3d 983 (Ulster)	denied 1/19/13 (Pigott, J.)
People v Oakes	3d Dept: 99 AD3d 1115 (Franklin)	denied 1/17/13 (Smith, J.)
People v Odenthal	App Div, 2d Dept: 2012 NY Slip Op 87184(U) (Kings)	dismissed 1/14/13 (Read, J.)

People v Ojo (Edundabira)	4th Dept: 96 AD3d 1703 (Jefferson)	denied 1/22/13 (Smith, J.)
People v Ojo (Edundabira)	4th Dept: 98 AD3d 1324 (Jefferson)	denied 1/22/13 (Smith, J.)
People v Ortiz	1st Dept: 100 AD3d 419 (NY)	denied 1/17/13 (Smith, J.)
People v O'Toole	1st Dept: 99 AD3d 585 (Bronx)	denied 1/29/13 (Pigott, J.)
People v Parks	2d Dept: 99 AD3d 945 (Kings)	denied 1/29/13 (Grafteo, J.)
People v Payne	App Div, 3d Dept: 2012 NY Slip Op 88047(U) (Schenectady)	dismissed 1/17/13 (Pigott, J.)
People v Perez (Leonel)	App Term, 1st Dept: 37 Misc 3d 127(A) (NY)	denied 1/30/13 (Grafteo, J.)
People v Perez (Raymond)	2d Dept: 97 AD3d 766 (Kings)	denied 1/17/13 (Smith, J.)
People v Persaud	2d Dept: 98 AD3d 527 (Queens)	denied 1/16/13 (Pigott, J.)
People v Phelan	App Div, 4th Dept (Cayuga)	dismissed 1/17/13 (Smith, J.)
People v Phillibert	1st Dept: 99 AD3d 531 (Bronx)	denied 1/31/13 (Grafteo, J.)
People v Pina	2d Dept: 98 AD3d 1133 (Queens)	denied 1/17/13 (Pigott, J.)
People v Poole	4th Dept: 100 AD3d 1472 (Monroe)	denied 1/30/13 (Grafteo, J.)
People v Popal	App Div, 2d Dept: 2012 NY Slip Op 86921(U) (Queens)	dismissed 1/15/13 (Grafteo, J.)
People v Ravarini	4th Dept: 96 AD3d 1700 (Niagara)	denied 1/17/13 (Pigott, J.)
People v Reyes	2d Dept: 98 AD3d 1141 (Kings)	denied 1/15/13 (Smith, J.)
People v Richards (James)	4th Dept: 93 AD3d 1240 (Niagara)	denied 1/22/13 (Smith, J.)
People v Richards (Joclyn)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 35 Misc 3d 132(A) (Kings)	denied 1/24/13 (Pigott, J.)
People v Ross	1st Dept: 99 AD3d 483 (Bronx)	denied 1/29/13 (Pigott, J.)
People v Rossetti	2d Dept: 95 AD3d 1362 (Putnam)	denied reconsideration 1/10/13 (Read, J.)
People v Sarr	App Term, 1st Dept: 36 Misc 3d 133(A) (NY)	denied 1/19/13 (Pigott, J.)
People v Serrano	3d Dept: 99 AD3d 1105 (Schenectady)	denied 1/28/13 (Pigott, J.)
People v Shelton	2d Dept: 100 AD3d 662 (Queens)	denied 1/29/13 (Grafteo, J.)
People v Simmons	2d Dept: 100 AD3d 809 (Queens)	denied 1/30/13 (Smith, J.)
People v Sisler	4th Dept: 100 AD3d 1553 (Niagara)	withdrawn 1/22/13 (Smith, J.)

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People v Slishevsky	4th Dept: 97 AD3d 1148 (Onondaga)	denied 1/15/13 (Smith, J.)
People v Stimus	4th Dept: 100 AD3d 1542 (Monroe)	denied 1/31/13 (Grafteo, J.)
People v Stuart	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 32 Misc 3d 135(A) (Kings)	denied 1/14/13 (Lippman, Ch. J.)
People v Sweet (Jack)	4th Dept: 79 AD3d 1772 (Niagara)	denied 1/31/13 (Grafteo, J.)
People v Sweet (Jack)	4th Dept: 98 AD3d 1252 (Niagara)	denied 1/31/13 (Grafteo, J.)
People v Thomas	2d Dept: 98 AD3d 594 (Queens)	denied 1/24/13 (Pigott, J.)
People v Thomas S.	1st Dept: 99 AD3d 549 (NY)	denied 1/24/13 (Pigott, J.)
People v Tiro	2d Dept: 100 AD3d 663 (Kings)	denied 1/29/13 (Pigott, J.)
People v Townsend	2d Dept: 100 AD3d 1029 (Orange)	denied 1/22/13 (Smith, J.)
People v Velazquez	4th Dept: 100 AD3d 1504 (Monroe)	denied 1/29/13 (Grafteo, J.)
People v Villaneuva	4th Dept: 100 AD3d 1449 (Ontario)	denied 1/31/13 (Grafteo, J.)
People v Weiss	3d Dept: 99 AD3d 1035 (Broome)	denied 1/10/13 (Read, J.)
People v Williams (Larry)	4th Dept: 100 AD3d 1444 (Monroe)	denied 1/28/13 (Pigott, J.)
People v Williams (Robert)	App Div, 3d Dept: 2012 NY Slip Op 90454(U) (Broome)	dismissed 1/23/13 (Grafteo, J.)
People v Williams (Willie)	App Div, 2d Dept: 2012 NY Slip Op 90452(U) (Dutchess)	dismissed 1/8/13 (Lippman, Ch. J.)
People v Woodard	4th Dept: 100 AD3d 1472 (Monroe)	denied 1/22/13 (Smith, J.)
People v Young	2d Dept: 99 AD3d 739 (Kings)	denied 1/16/13 (Pigott, J.)
People v Zacher	4th Dept: 97 AD3d 1101 (Monroe)	denied 1/17/13 (Lippman, Ch. J.)
People v Zimmerman	4th Dept: 100 AD3d 1360 (Niagara)	denied 1/19/13 (Pigott, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices*

(January 1, 2013 through January 31, 2013)

People v Payton	2d Dept: 100 AD3d 786 (Suffolk)	granted 1/10/13 (Miller, J.)
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* Includes only applications that were granted.

JOSE MONTAS, Appellant, v JJC CONSTRUCTION CORPORATION et al., Respondents.

Argued January 2, 2013; decided February 7, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 23, 2012. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Bronx County (Geoffrey D. Wright, J.), which had granted defendants' motion to dismiss the complaint at the close of the evidence.

Montas v JJC Constr. Corp., 92 AD3d 559, affirmed.

HEADNOTE

Negligence — Proximate Cause — Slip and Fall Injury — Source of Sandy Debris in Street — Dismissal of Complaint at Close of Evidence

In an action to recover for personal injuries allegedly sustained when plaintiff slipped and fell on "sand and construction debris" while walking near both a roadway construction site and a brick pointing site, the trial court properly dismissed the complaint against defendant roadway contractor at the close of evidence. There was no proper basis on which a jury might have found in plaintiff's favor on his negligence claim. Plaintiff slipped on sand in a public roadway; he did not submit a sample or photograph of the material allegedly causing him to fall, and his proof essentially consisted only of his (and his cousin's) insistence that one of two nearby contemporaneous construction projects must have been the source of the sand. However, it was just as likely that the accident was caused by debris from the pointing project as by debris from the roadway project, and any determination by the jury as to the cause of the accident would have been based upon sheer speculation.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Michael H. Zhu* and *Brian J. Isaac* of counsel), for appellant.

Mitchell Silberberg & Knupp LLP, New York City (*Lauren J. Wachtler* of counsel), for JJC Construction Corporation, respondent.

Michael A. Cardozo, Corporation Counsel, New York City (*Omar Nasar, Francis F. Caputo* and *Margaret G. King* of counsel), for City of New York and another, respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

On September 11, 1999, while walking in the Bronx after dark with his cousin near a concrete barrier and fence cordoning off roadway construction, plaintiff Jose Montas stepped over a two-by-four piece of lumber and into what he characterized as “sand and construction debris,” which allegedly caused him to lose his footing and fall, thereby injuring his right knee. Defendants City of New York and the New York City Department of Transportation (collectively, the City) had contracted with defendant JJC Construction Corporation (JJC) to perform the roadway work (reconstruction of an overpass) near the accident site.

At trial, plaintiff identified photographs of the area where he fell, which showed whitish sand or a chalky substance on the ground just outside the confines of JJC’s work site. He testified that this material was similar to the sand and debris that caused him to slip; plaintiff also testified that while he “felt the sand underneath [his] foot when [he] fell down,” he did not actually see what caused him to fall. In trying to identify the material on which he slipped to the “best of [his] ability,” plaintiff asserted that what he called sand must have come from the cutting of concrete at JJC’s work site. The City’s project engineer, subpoenaed as a witness by plaintiff, testified that the scaffolding shown in the photograph that plaintiff said depicted the area where he fell ran along an adjacent building, which was faced with brick, where another contractor was performing construction work; further, he never observed or received any complaints about sand or debris in the area where plaintiff fell. The defense called JJC’s president, who identified the material shown in the pictures as debris from the nearby building that was undergoing brick pointing work (removing and replacing old mortar). Plaintiff testified that he believed the building in question had a wood facade, and that he had not seen any construction work there. Photographs produced at trial showed that the building’s facade was, in fact, brick.

Defendants moved for a directed verdict at the end of plaintiff’s case, and again at the close of evidence. Supreme Court granted the second motion and dismissed the complaint. The judge concluded that plaintiff’s (and his cousin’s) testimony that the sand originated from JJC’s cutting and chopping of concrete for the roadway project was “more suggestion than proof,” and was insufficient, especially in light of the testimony about the nearby pointing project, for the case to go to the jury.

The Appellate Division affirmed, with two Justices dissenting (92 AD3d 559 [1st Dept 2012]). The majority agreed with the trial court, noting that

“[w]here the facts proven show that there are several possible causes of an injury, for one or more of which the defendant was not responsible, and it is just as reasonable and probable that the injury was the result of one cause as the other, plaintiff cannot have a recovery, since he has failed to prove that the negligence of the defendant caused the injury” (*id.* at 560 [internal quotation marks omitted]).

The dissenting Justices saw two possible sources for the debris—JJC’s concrete work and the nearby brick pointing work—and argued that the jury should have resolved the issue. Plaintiff appeals as of right by virtue of the two-Justice dissent, and we now affirm.

The issue presented on this appeal is whether there was any proper basis on which a jury might have found in plaintiff’s favor on his negligence claim. Here, there was not. Plaintiff slipped on sand in a public roadway; he did not submit a sample or photograph of the material allegedly causing him to fall, and his proof essentially consisted only of his (and his cousin’s) insistence that one of two nearby contemporaneous construction projects must have been the source of the sand. As the Appellate Division observed, “it is just as likely that the accident was caused by debris from the pointing project as by debris from the roadway project, and any determination by the [jury] as to the cause of the accident would be based upon sheer speculation” (*id.* at 561).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT concur.

Order affirmed, with costs, in a memorandum.

[985 NE2d 1227, 963 NYS2d 166]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARL WATSON, Appellant.

Argued January 3, 2013; decided February 7, 2013

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the Second Judicial Department, entered May 17, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Alan D. Marrus, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree and criminal possession of a weapon in the second degree.

People v Watson, 84 AD3d 1126, affirmed.

HEADNOTE

Crimes — Justification — Victim's Prior Violent Acts

In a homicide prosecution in which defendant, who was accused of shooting an unarmed victim, asserted the defense of justification, the trial court properly ruled that evidence of prior violent acts of the victim of which defendant was unaware would be inadmissible. Defendant's shooting could have been justified only if he reasonably believed that the victim was "using or about to use deadly physical force" (Penal Law § 35.15 [2] [a]), and even then the justification defense would not be available if defendant was "the initial aggressor" (Penal Law § 35.15 [1] [b]). Although defendant sought a ruling that a defendant claiming justification might offer evidence of an alleged victim's violent acts, even those not known to the defendant, to establish that the alleged victim had a propensity for violence, this case did not present that issue. There was no way the jury at defendant's trial could have concluded that the victim was the initial aggressor, no matter how great his propensity for violence, for the simple reason that he did not have a gun. Defendant's evidence could show, at most, that defendant reasonably believed the victim to be the initial aggressor. Assuming, without deciding, that such a reasonable belief could sustain a justification defense, evidence of acts that defendant did not know about would be irrelevant, because such acts could not have influenced what defendant reasonably believed.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (A. Alexander Donn and Katherine A. Levine of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (Camille O'Hara Gillespie and Leonard Joblove of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant fatally shot Livingston Powell, and was prosecuted for murder. His defense was justification. Defendant testified at trial that he panicked and shot Powell when he saw Powell reach for his waist. There was no evidence that Powell had a weapon at the time.

Under Penal Law § 35.15, defendant's shooting of Powell could have been justified only if defendant reasonably believed

that Powell was “using or about to use deadly physical force” (Penal Law § 35.15 [2] [a]); however, even if defendant did have such a reasonable belief, the justification defense would not be available if defendant was “the initial aggressor” (Penal Law § 35.15 [1] [b]).

Seeking to prove that the initial aggressor was Powell, not defendant, defendant requested issuance of a subpoena to the district attorney’s office. Defendant sought disclosure of Powell’s “criminal record, and specific acts of violence”; he asked for not only acts known to defendant “but also those unknown.” The trial court ruled that evidence of acts not known to defendant would be inadmissible—a ruling clearly correct under our decisions in *Matter of Robert S.* (52 NY2d 1046 [1981]) and *People v Miller* (39 NY2d 543 [1976]). Defendant asks us to reconsider *Robert S.* and *Miller*, and to hold that a defendant claiming justification may offer evidence of an alleged victim’s violent acts, even those not known to the defendant, to establish that the alleged victim had a propensity for violence.

This case, we conclude, does not present the issue defendant asks us to consider. There is no way a jury could conclude, on this record, that Powell was the “initial aggressor,” no matter how great his propensity for violence, for the simple reason that Powell did not have a gun. Defendant’s evidence could show, at most, that defendant reasonably believed Powell to be the initial aggressor. We assume, without deciding, that such a reasonable belief could sustain a justification defense; even on that assumption, evidence of acts that defendant did not know about was irrelevant, because such acts could not have influenced what defendant reasonably believed.

We express no opinion as to whether *Robert S.* and *Miller* should be reconsidered in a case that properly presents that issue.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur.

Order affirmed, in a memorandum.

TIFFANY APPLEWHITE et al., Respondents, v ACCUHEALTH, INC.,
et al., Defendants, and CITY OF NEW YORK, Appellant.

Decided February 7, 2013

Reported below, 90 AD3d 501.

Reargument ordered and case set down for argument during
a future session of the Court of Appeals.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ,
SMITH and PIGOTT.

GEOFFREY BOND et al., Respondents, v THOMAS A. TURNER et
al., Appellants, and VILLAGE OF LAKEWOOD, Respondent.

Submitted December 24, 2012; decided February 7, 2013

Reported below, 78 AD3d 1490.

Motion for reargument of motion for leave to appeal denied
[see 20 NY3d 904 (2012)].

VIOLA CAROL, Appellant, v MADISON PLAZA ASSOCIATES, LLC,
Respondent, et al., Defendant.

Submitted December 24, 2012; decided February 7, 2013

Reported below, 95 AD3d 735.

Motion, insofar as it seeks leave to appeal from so much of
the Appellate Division order as denied the motion for leave to
amend the complaint, dismissed upon the ground that such por-
tion of the Appellate Division order does not finally determine
the action within the meaning of the Constitution; motion for
leave to appeal otherwise denied.

In the Matter of FRANCIS MOULTON, Appellant, v BRIAN FISCH-
ER, as Commissioner of Corrections and Community
Supervision, Respondent.

Submitted December 24, 2012; decided February 7, 2013

Motion for leave to appeal dismissed upon the ground that
the issues presented have become moot.

In the Matter of NIAJA A.W. ADMINISTRATION FOR CHILDREN'S SERVICES et al., Respondents; PAULETTE G., Appellant, et al., Respondent.

Submitted December 24, 2012; decided February 7, 2013

Reported below, 100 AD3d 1009.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

PARVIZ NOGHREY, Respondent-Appellant, v TOWN OF BROOKHAVEN et al., Appellants-Respondents.

Submitted November 26, 2012; decided February 7, 2013

Reported below, 92 AD3d 851.

Motion for reargument denied [*see* 19 NY3d 1023 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NATURE G. FINCH, Appellant.

Submitted January 22, 2013; decided February 7, 2013

Motion for assignment of counsel granted and Philip Rothschild, Esq., Frank H. Hiscock Legal Aid Society, 351 South Warren Street, Syracuse, New York 13202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GUNTHER J. FLINN, Appellant.

Submitted January 14, 2013; decided February 7, 2013

Reported below, 98 AD3d 1262.

Motion for assignment of counsel granted and Martin P. McCarthy II, Esq., care of Muldoon & Getz, Esqs., 144 Exchange Boulevard, Suite 402, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEFINA JIMENEZ, Appellant.

Submitted January 28, 2013; decided February 7, 2013

Reported below, 98 AD3d 886.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALBERT OLIN, Appellant.

Submitted May 21, 2012; decided February 7, 2013

Reported below, 101 AD3d 977.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v VINOD PATEL, Respondent.

Submitted January 14, 2013; decided February 7, 2013

Reported below, 97 AD3d 701.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHERYL SANTIAGO, Appellant.

Submitted January 22, 2013; decided February 7, 2013

Reported below, 97 AD3d 704.

Motion for assignment of counsel granted and Malvina Nathanson, Esq., 40 Exchange Place, Suite 2010, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PATRICK WILLIAMS, Appellant.

Submitted February 4, 2013; decided February 7, 2013

Reported below, 38 Misc 3d 4.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of 677 NEW LOUDON CORPORATION, Doing Business as NITE MOVES, Appellant, v STATE OF NEW YORK TAX APPEALS TRIBUNAL et al., Respondents.

Submitted December 3, 2012; decided February 7, 2013

Reported below, 85 AD3d 1341.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 19 NY3d 1058 (2012)].

[984 NE2d 922, 960 NYS2d 724]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JARVIS LASSALLE, Appellant.

Argued January 10, 2013; decided February 12, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 10, 2011. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate an order of that Court entered October 3, 2008 (55 AD3d 1286 [2008]), which had affirmed a judgment of the Erie County Court (Shirley Troutman, J.), convicting defendant, upon his plea of guilty, of robbery in the first degree.

People v Lassalle, 85 AD3d 1655, affirmed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Writ of Error Coram Nobis

The Appellate Division properly denied defendant's application for a writ of error coram nobis seeking review of his claim of ineffective assistance of appellate counsel for failing to brief, on direct appeal from defendant's guilty plea, the issue of trial court's failure to advise defendant that his sentence included a period of postrelease supervision. On the present record, defendant did not show that there was no strategic or other legitimate basis for appellate

counsel's failure to raise what would have been a dispositive argument against the plea bargain. For all that appeared in the record, counsel did not make the argument because defendant did not want to withdraw his plea if the other ground for his appeal proved unsuccessful.

APPEARANCES OF COUNSEL

Kevin J. Bauer, Albany, for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Donna A. Milling* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant, facing multiple felony charges, pleaded guilty to one count of robbery in the first degree. He was adjudicated a second felony offender and was sentenced to 15 years' imprisonment, to be served concurrently with another sentence. At his 2006 plea, he was not advised that his sentence included five years of postrelease supervision. Defendant now maintains that he received ineffective assistance of appellate counsel when his attorney did not brief that issue in his 2008 direct appeal (*see People v Louree*, 8 NY3d 541 [2007]; *People v Catu*, 4 NY3d 242 [2005]).

On the present record, defendant has not shown that there was no strategic or other legitimate basis for appellate counsel's failure to raise what would have been a dispositive argument against the plea bargain (*see People v Rivera*, 14 NY3d 753, 754 [2010]; *People v Turner*, 5 NY3d 476, 480 [2005]). For all that appears in this record, counsel did not make the argument because defendant did not want to withdraw his plea if the other ground for his appeal proved unsuccessful. We note however that where a defendant in a coram nobis points to a clear error on the face of the County Court record, there are avenues to more fully explore potentially meritorious claims (*see e.g. People v D'Alessandro*, 13 NY3d 216, 220-221 [2009]; *People v Bachert*, 69 NY2d 593, 600 [1987]). If a new coram nobis petition is filed, the Appellate Division should consider whether those avenues should be followed.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge RIVERA taking no part.

Order affirmed, in a memorandum.

[984 NE2d 923, 960 NYS2d 725]

In the Matter of the Arbitration between SHENENDEHOWA CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION, Appellant, and CIVIL SERVICE EMPLOYEES ASSOCIATION, INC., LOCAL 1000, AFSCME, AFL-CIO, LOCAL 864, et al., Respondents.

Argued January 3, 2013; decided February 12, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 1, 2011. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order and judgment of the Supreme Court, Saratoga County (Thomas D. Nolan, Jr., J.; op 29 Misc 3d 1231[A], 2010 NY Slip Op 52107[U] [2010]), which had (a) granted an application by petitioner to vacate an arbitration award determining that petitioner had violated the parties' collective bargaining agreement by terminating the grievant's employment following her testing positive for marijuana after a random drug test, and directing petitioner to reinstate grievant without back pay, (b) vacated that portion of the award that directed grievant's reinstatement, and (c) modified the award to confirm grievant's termination, (2) denied the petition, (3) granted respondents' counterclaim to confirm the award, and (4) confirmed the arbitration award.

Matter of Shenendehowa Cent. School Dist. Bd. of Educ. (Civil Serv. Empls. Assn., Inc., Local 1000, AFSCME, AFL-CIO, Local 864), 90 AD3d 1114, affirmed.

HEADNOTE

Arbitration — Confirming or Vacating Award — Civil Service Disciplinary Punishment — Failed Drug Test

An arbitration award was not subject to vacatur where the arbitrator concluded that petitioner school district violated the parties' collective bargaining agreement when it terminated a school bus driver after she had tested positive for marijuana following a random drug test, that the penalty of discharge was too severe, and that the bus driver should be reinstated without back pay. The arbitrator's decision did not exceed a specific limitation on his power, nor was it irrational. The arbitrator determined that, contrary to petitioner's argument, the parties' agreement did not require the penalty of termination under the circumstances, and that petitioner did not in fact have a zero tolerance policy. The consequent determination that reinstatement with conditions was the appropriate penalty did not violate public policy. That reasonable minds might disagree over what the proper penalty should have been does not provide a basis for vacating the arbitral award or refashioning the penalty.

APPEARANCES OF COUNSEL

Whiteman Osterman & Hanna LLP, Albany (*Beth A. Bourassa* of counsel), for appellant.

Daren J. Rylewicz, Albany, for respondents.

Jay Worona, Latham, *Kimberly A. Fanniff* and *Jacinda H. Conboy* for New York State School Boards Association, and another, amici curiae.

Michael E. Bergeron, Latham, and *Richard E. Casagrande* for New York State United Teachers, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Grievant school bus driver, in her tenth year of employment, tested positive for marijuana after a random drug test. As a result, the School District terminated her employment and respondent union filed a grievance on her behalf. The parties agreed to arbitrate whether grievant's termination was a violation of the parties' collective bargaining agreement and, if so, the appropriate remedy. The arbitrator concluded that the School District had violated the agreement and that the penalty of discharge was too severe. He then directed the School District to reinstate grievant without back pay,* subject to certain conditions, including evaluation by a substance abuse professional and a negative drug test. The School District commenced this proceeding pursuant to CPLR 7511, seeking to vacate the portion of the arbitration award directing reinstatement and to modify the award by imposing the penalty of termination.

We have recognized “three narrow grounds that may form the basis for vacating an arbitrator's award—that it violates public policy, is irrational, or clearly exceeds a specifically enumerated limitation on the arbitrator's power” (*Matter of New York City Tr. Auth. v Transport Workers Union of Am., Local 100*, 14 NY3d 119, 123 [2010] [citations and internal quotation marks omitted]). None of these grounds has been established here.

The arbitrator's decision did not exceed a specific limitation on his power; nor was it irrational. Rather, he determined that, contrary to the School District's argument, the parties' agreement

* This effectively imposed, at that time, a six-month unpaid suspension.

did not require the penalty of termination in these circumstances and that the District did not in fact have a zero tolerance policy. The consequent determination that reinstatement with conditions was the appropriate penalty did not violate public policy (*see Eastern Associated Coal Corp. v Mine Workers*, 531 US 57 [2000]). “That reasonable minds might disagree over what the proper penalty should have been does not provide a basis for vacating the arbitral award or refashioning the penalty” (*City School Dist. of the City of N.Y. v McGraham*, 17 NY3d 917, 920 [2011]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge RIVERA taking no part.

Order affirmed, with costs, in a memorandum.

[984 NE2d 317, 960 NYS2d 343]

In the Matter of PERRY BELLAMY, Appellant, v NEW YORK CITY
POLICE DEPARTMENT, Respondent.

Decided February 12, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 8, 2011. The Appellate Division (1) reversed, on the law and the facts, (a) a judgment of the Supreme Court, New York County (Alice Schlesinger, J.), to the extent it had granted a petition brought pursuant to the Freedom of Information Law to compel respondents to disclose police reports containing the names and statements of witnesses who did not testify at petitioner’s trial, and (b) an order of that Supreme Court (2009 NY Slip Op 32705[U] [2009]), which, among other things, had denied respondent’s motion to renew, and (2) denied the petition. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the judgment and order (separate papers) of the Supreme Court, properly made?”

In 1986, petitioner was convicted of the murder of a New York City parole officer. Petitioner made inculpatory statements to the police, in which he admitted to being present during the planning of the murder and to luring the victim to the scene. During a federal narcotics prosecution of other participants in the murder scheme, those individuals asserted that petitioner had not been involved in the murder. In an effort to obtain a new trial, petitioner made a Freedom of Information Law

(FOIL) request for unredacted versions of documents he had received previously. The Appellate Division denied the FOIL request concluding that the documents reflected the identities of certain persons who spoke with police during the course of an investigation into a gang-related homicide ordered from prison, and that it was possible that the lives of persons who spoke with police could be endangered from the release of identifying information.

Matter of Bellamy v New York City Police Dept., 87 AD3d 874, affirmed.

HEADNOTE

Records — Freedom of Information Law — Police Reports

The Appellate Division did not abuse its discretion in denying a Freedom of Information Law request for certain unredacted police reports containing the names and statements of witnesses who did not testify at petitioner's murder trial.

APPEARANCES OF COUNSEL

Perry Bellamy, appellant pro se.

Michael A. Cardozo, Corporation Counsel, New York City (*Sharyn Rootenberg* and *Larry A. Sonnenshein* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, and certified question not answered on the ground that it is unnecessary. In denying the subject Freedom of Information Law request, the Appellate Division did not abuse its discretion.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT. Taking no part: Judge RIVERA.

VITTORIO ANTONINI et al., Respondents, v ORAZIO PETITO et al., Appellants.

Submitted January 22, 2013; decided February 12, 2013

Reported below, 96 AD3d 446.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

PHILIP CAPRIO et al., Appellants, v NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE et al., Respondents, et al., Defendant.

Decided February 12, 2013

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

Judge RIVERA taking no part.

COUNTY OF SUFFOLK, Appellant, v LONG ISLAND POWER AUTHORITY et al., Respondents.

Submitted January 14, 2013; decided February 12, 2013

Reported below, 100 AD3d 944.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

In the Matter of JOHN DOE, Appellant, v NEW YORK STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted December 17, 2012; decided February 12, 2013

Reported below, 100 AD3d 1346.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge RIVERA taking no part.

In the Matter of the Claim of TUHIN S. DUTTA, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted January 22, 2013; decided February 12, 2013

Reported below, 2012 NY Slip Op 79335(U).

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 915 (2012)].

Judge RIVERA taking no part.

KATERI RESIDENCE, a Not-For-Profit Corporation, et al.,
Respondents, v ANTONIA C. NOVELLO, M.D., as Commis-
sioner of Department of Health of State of New York, et al.,
Appellants.

Submitted January 7, 2013; decided February 12, 2013

Reported below, 95 AD3d 619.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action/proceeding within the meaning of the Constitution.

Judge RIVERA taking no part.

In the Matter of DANIEL Z. RAPOPORT et al., Executors of the
Estate of BORIS LURIE, Deceased. AMERICAN FRIENDS OF NEW
COMMUNITIES IN ISRAEL INC. et al., Proposed Intervenors-
Appellants; RICHARD NADELMAN et al., Respondents, and
BORIS LURIE ART FOUNDATION, Respondent, et al., Respon-
dent.

Submitted December 10, 2012; decided February 12, 2013

Reported below, 91 AD3d 509.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order affirming the order that denied the motion to intervene, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the remainder of the Appellate Division order, dismissed upon the ground that absent an order of intervention, movants are not parties to the proceeding and thus lack capacity to challenge that part of the order.

Judge RIVERA taking no part.

JUDITH MAY, Appellant, v LORENZO SCOTTO-D'ABUSCO, Respon-
dent.

Submitted December 17, 2012; decided February 12, 2013

Reported below, 2012 NY Slip Op 78870(U); 2012 NY Slip Op 69659(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602).

Judge RIVERA taking no part.

In the Matter of THEOPHILUS Y. OJUOLA, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Respondent.

Submitted January 14, 2013; decided February 12, 2013

Reported below, 95 AD3d 701.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DOMINIC M. FRANZA, Appellant, v MICHAEL SHEAHAN, as Acting Superintendent of Southport Correctional Facility, Respondent.

Submitted January 7, 2013; decided February 12, 2013

Reported below, 100 AD3d 1315.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

Judge RIVERA taking no part.

In the Matter of MOHAMED SAAD-EL-DIN et al., Individually and as Parents and Guardians of Student with a Disability R., an Infant, et al., Appellants, v DAVID M. STEINER, as Commissioner of Education, et al., Respondents.

Decided February 12, 2013

Reported below, 101 AD3d 73.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge RIVERA taking no part.

STEPHEN SICILIA, Plaintiff, v CITY OF NEW YORK et al., Respondents, and JB ELECTRIC LLC, Appellant. (And Third-Party Actions.)

Submitted January 7, 2013; decided February 12, 2013

Reported below, 2012 NY Slip Op 79647(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

In the Matter of CHRISTOPHER STEIN, Appellant, v ITHACA POLICE DEPARTMENT et al., Respondents.

Submitted January 7, 2013; decided February 12, 2013

Reported below, 2012 NY Slip Op 73033(U).

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 852 (2012)].

Judge RIVERA taking no part.

In the Matter of BEN GARY TREISTMAN, Appellant, v SUZANNE MARY CAYLEY, Respondent.

Decided February 12, 2013

Reported below, 2012 NY Slip Op 89061(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

Judge RIVERA taking no part.

DEEPAK TRIVEDI, Appellant, v ROBERT GOLUB, Defendant, and FLUSHING HOSPITAL MEDICAL CENTER, Respondent.

Submitted January 14, 2013; decided February 12, 2013

Reported below, 90 AD3d 1031.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 984 (2012)].

Judge RIVERA taking no part.

In the Matter of JACK VIGLIOTTI, Appellant, v STATE OF NEW YORK EXECUTIVE DIVISION OF PAROLE, Respondent.

Submitted December 24, 2012; decided February 12, 2013

Reported below, 98 AD3d 789.

Motion for leave to appeal dismissed upon the ground that the issue presented has become moot. Motion for poor person relief dismissed as academic.

Judge RIVERA taking no part.

In the Matter of VILLAGE OF CHESTNUT RIDGE et al., Appellants, et al., Petitioners, v TOWN OF RAMAPO et al., Respondents.

Submitted December 3, 2012; decided February 12, 2013

Reported below, 99 AD3d 918.

Motion, insofar as it seeks leave to appeal against Mosdos Chofetz Chaim, Inc., dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action/proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge RIVERA taking no part.

WOMEN'S INTERART CENTER, INC., Plaintiff, v NEW YORK CITY ECONOMIC DEVELOPMENT CORPORATION et al., Defendants.

WOMEN'S INTERART CENTER, INC., Appellant, v CLINTON HOUSING DEVELOPMENT FUND CORP., Respondent, and CITY OF NEW YORK, Intervenor-Respondent.

Submitted December 3, 2012; decided February 12, 2013

Reported below, 97 AD3d 17.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

[985 NE2d 889, 962 NYS2d 579]

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Argued January 8, 2013; decided February 14, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 5, 2011. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Carol R. Edmead, J.), as had granted defendants' motion to preclude plaintiffs from litigating the issue of plaintiff Jose Verdugo's accident-related disability beyond January 24, 2006, and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of the Supreme Court, properly made?"

Auqui v Seven Thirty One Ltd. Partnership, 83 AD3d 407, reversed.

HEADNOTE

Administrative Law — Collateral Estoppel — Preclusive Effect of Workers' Compensation Board Finding as to Duration of Disability — Subsequent Guardianship Proceeding

The determination of the Workers' Compensation Board (WCB) that plaintiff, who sustained a work-related injury, was no longer disabled as of a certain date, was given preclusive effect in his subsequent personal injury action as to the duration of his disability, relevant to lost earnings and compensation for medical expenses. Collateral estoppel applies if an issue of fact sought to be precluded was necessarily decided in an earlier determination of a quasi-judicial administrative agency, at which the party opposing preclusion had a full and fair opportunity to contest the issue. The issue of continuing benefits before the WCB necessarily turned upon whether plaintiff had an ongoing disability after a certain date, which was a question of fact, as distinguished from a legal conclusion and a conclusion of mixed law and fact. Moreover, plaintiff had a full and fair opportunity to litigate the issue of ongoing disability in the workers' compensation proceedings. Plaintiff was represented by counsel, submitted medical reports, presented expert testimony, and cross-examined the defendants' experts regarding the issue of whether or not there was an ongoing disability. That a guardian was appointed for plaintiff pursuant to the Mental Hygiene Law after the workers' compensation proceedings had concluded did not raise an issue of fact as to the duration of his disability, since the issue of plaintiff's incapacity was not opposed at the guardianship proceeding, to which defendants were not parties, and was based on evidence presented only by plaintiff.

APPEARANCES OF COUNSEL

Mauro Lilling Naparty LLP, Woodbury (*Richard J. Montes* and *Matthew W. Naparty* of counsel), for appellants.

Law Offices of Annette G. Hasapidis, South Salem (*Annette G. Hasapidis* of counsel), and *Schwartz, Goldstone & Campisi, LLP*, New York City (*Herbert Rodriguez, Jr.*, of counsel), for respondents.

Michael Jaffee, New York City, and *Brian J. Isaac* for New York State Trial Lawyers Association, amicus curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, defendants' motion to preclude plaintiffs* from litigating the issue of plaintiff Jose Verdugo's accident-related disability beyond January 24, 2006 granted, and the certified question answered in the negative.

Plaintiff, a food service deliveryman, was injured on December 24, 2003 when a sheet of plywood fell from a building under construction owned by defendant Seven Thirty One Limited Partnership. Plaintiff was compensated for treatment of his head, neck, and back injuries, as well as post-traumatic stress disorder and depression. While receiving workers' compensation (WC) benefits, plaintiff commenced this personal injury action in Supreme Court in 2004. The following year, in December 2005, while this action was pending, the insurance carrier for plaintiff's employer moved the Workers' Compensation Board (WCB) to discontinue plaintiff's benefits on the grounds that he was no longer disabled as a result of the accident. In January 2006, in a WC proceeding, an Administrative Law Judge (ALJ) reviewed the evidence and expert testimony submitted by the plaintiff and the insurance carrier. The ALJ found that Jose Verdugo no longer suffered any disability as of January 24, 2006 and terminated his benefits. Plaintiff appealed, but on February 1, 2007, a full panel of the WCB affirmed the finding that plaintiff's disability ended on January 24, 2006, and that plaintiff required no further medical treatment thereafter, other than for post-traumatic stress disorder.

In April 2009, the defendants in the instant personal injury

* Plaintiffs are Maria Verdugo and Maria Auqui, who is the guardian of Jose Verdugo.

action moved to preclude plaintiffs from relitigating the duration of his work-related injury on the grounds that the issue was already fully litigated and decided in the WC administrative proceeding. While the motion was pending in Supreme Court, the plaintiffs' attorney commenced a separate Mental Hygiene Law article 81 proceeding to appoint a guardian for Jose Verdugo. This proceeding was uncontested and a guardian was appointed.

The doctrine of collateral estoppel is applicable to determinations of quasi-judicial administrative agencies such as the WCB (*Brugman v City of New York*, 102 AD2d 413, 415 [1st Dept 1984], *affd* 64 NY2d 1011 [1985]). Collateral estoppel applies if the identical issue sought to be precluded was necessarily decided in an earlier action, at which the party opposing preclusion had a full and fair opportunity to contest the issue (*id.* at 415-416). Although legal conclusions and conclusions of mixed law and fact are not entitled to preclusive effect, findings of fact that are necessary for an administrative agency to reach are entitled to such effect (*see Hinchey v Sellers*, 7 NY2d 287, 293 [1959]; *Matter of Engel v Calgon Corp.*, 114 AD2d 108, 110 [3d Dept 1986], *affd* 69 NY2d 753 [1987]). The issue disputed on this appeal is whether the WCB decided a necessary issue of fact about the duration of Jose Verdugo's disability and, if so, whether the plaintiffs had a full and fair opportunity to contest the determination (*see D'Arata v New York Cent. Mut. Fire Ins. Co.*, 76 NY2d 659, 664 [1990]).

The determination of the WCB should be given preclusive effect as to the duration of plaintiff's disability, relevant to lost earnings and compensation for medical expenses. The issue of continuing benefits before the administrative agency necessarily turned upon whether Jose Verdugo had an ongoing disability after a certain date, which is a question of fact, as distinguished from a legal conclusion and a conclusion of mixed law and fact.

We also find that plaintiffs had a full and fair opportunity to litigate the issue of ongoing disability in the 2006 WC proceedings. Plaintiff was represented by counsel, submitted medical reports, presented expert testimony, and cross-examined the defendants' experts regarding the issue of whether or not there was an ongoing disability.

Plaintiffs attempt to use the guardianship order in this appeal to buttress the contention that Jose Verdugo is still disabled and argue that such an order raises an issue of fact as to the duration of his disability. We disagree. The issue of plaintiff's

incapacity was not opposed at the guardianship proceeding (in which defendants were not a party) and was based on evidence presented only by plaintiffs.

PIGOTT, J. (dissenting). Following workers' compensation hearings, held in March through May 2006, a Workers' Compensation Law Judge (WCLJ) ruled that plaintiff Jose Verdugo had no "causally related disability since January 24, 2006," the date on which benefits had been stopped pending the proceeding. The WCLJ refused to credit the testimony of a neurologist and a psychiatrist that Verdugo suffered from disorders that include post-concussion syndrome, depression, and post-traumatic stress disorder, and is "totally disabled." Both experts had testified that Verdugo had extreme anxiety about walking, with one specifying that his agitation was especially strong near construction sites.

On appeal, the Workers' Compensation Board (WCB) rescinded the denial of Verdugo's claim of post-traumatic stress disorder, but denied his claims of depression and for injuries to the head, neck, and back, accepting the WCLJ's credibility determinations. The Board concluded that Verdugo "had no further disability after January 24, 2006 and no further need for treatment."

Based on the Board's ruling, defendants seek to estop Verdugo from litigating the issue of whether he "was no longer disabled after January 24, 2006," in a personal injury action. The majority holds that Verdugo is precluded from litigating the duration of his work-related disability, "relevant to lost earnings and compensation for medical expenses" (majority mem at 1037).^{*} The majority implicitly allows that Verdugo may still litigate lost earnings and medical expenses from the accident date to January 24, 2006, as well as all *other* consequences of defendants' alleged negligence after January 24, 2006, whether it be ongoing pain and suffering, loss of enjoyment of life and his wife's claim for loss of society and companionship. I would hold that litigation may proceed on the issue of Verdugo's ability to work, as well as the other consequences of the alleged negligence.

It is well-settled that, while factual issues that are "necessarily decided in an administrative proceeding are given collateral estoppel effect[,] . . . an administrative agency's final conclusion, characterized as an ultimate fact or a mixed question of

^{*} Given the WCB's determination that medical benefits are required for post-traumatic stress disorder, its ruling does not preclude litigation of that claim, as the majority appears to concede (*see* majority mem at 1036).

fact and law, is not entitled to preclusive effect” (*Akgul v Prime Time Transp.*, 293 AD2d 631, 633 [2d Dept 2002]; *see also e.g. O’Gorman v Journal News Westchester*, 2 AD3d 815, 816-817 [2d Dept 2003]). The same is true, of course, of an administrative agency’s purely legal conclusions. Such ultimate conclusions “are imbued with policy considerations as well as the expertise of the agency” (*Matter of Engel v Calgon Corp.*, 114 AD2d 108, 110 [3d Dept 1986]). The majority accepts the doctrine, observing that “legal conclusions and conclusions of mixed law and fact are not entitled to preclusive effect” (majority mem at 1037); but the majority fails to apply this principle to the case before us.

Here, the WCB reached a conclusion about whether Verdugo had an ongoing physical or psychological disability, preventing him from returning to his job—and nothing more. Disability for the purposes of workers’ compensation is an ultimate conclusion. The question that the Board was asked to decide, on which Verdugo’s receipt of benefits depended, was whether he could return to work—a very narrow issue dependent on type of work and a claimant’s present condition vis-à-vis that occupation. If that is not an ultimate conclusion, it’s difficult to think what would be.

Moreover, a workers’ compensation disability determination requires “great discretion in [the Board] to rule . . . based on what considerations the [Board] believes are most appropriate” (*Engel*, 114 AD2d at 110). A determination concerning work-related disability is imbued with the policy considerations of the WCB, and for that reason cannot be the basis of collateral estoppel. The decision of the WCB relieves the compensation carrier of any further payments under its policy for the time being and therefore truncates any lien recovery that might flow from the personal injury action. The suggestion that this administrative decision means anything more is misguided.

Furthermore, in my view, the disability issue itself is a mixed question of law and fact. Our analysis of mixed questions has its origins in the criminal law, where we have defined a mixed question as one in which both a question of fact and a question of law are found, “the truth and existence of the facts and circumstances bearing on the issue being a question of fact, and the determination of whether the facts and circumstances found to exist and to be true constitute [a particular legal concept] being a question of law” (*People v Oden*, 36 NY2d 382, 384 [1975] [analyzing probable cause]). The same analysis applies here.

The WCB had to reach a conclusion based on both questions of fact, such as whether Verdugo had a particular injury to the brain or body, and a question of law, namely whether the facts amounted to a disability preventing Verdugo from returning to his work. The conclusion that Verdugo was not disabled, i.e., was able to work again, is a mixed question requiring a legal determination based on the facts.

Finally, the majority's decision fails to consider the practical short-cuts in reasoning that are employed by Workers' Compensation Law judges—including here, where the WCLJ precluded one psychiatrist's testimony on technical grounds, and gave short shrift to another's because the WCLJ thought he had found an inconsistency concerning the degree to which Verdugo feared construction sites. Verdugo had visited the psychiatrist's office despite construction in progress in the vicinity. Since the expert did not claim that Verdugo becomes paralyzed when walking near construction sites, but only that he grows very anxious and frightened, there simply is no inconsistency.

As the amicus expresses it, a “simple trip . . . to a Workers' Compensation Hearing will demonstrate the wisdom of the Appellate Division majority's decision.”

For all these reasons, the case law requires us to rule that the WCB's finding that Verdugo could return to work does not preclude litigation of the issue, and therefore I would affirm the Appellate Division's order. Accordingly, I respectfully dissent.

Chief Judge LIPPMAN and Judges GRAFFEO, READ and SMITH concur; Judge PIGOTT dissents and votes to affirm in an opinion; Judge RIVERA taking no part.

Order reversed, with costs, defendants' motion to preclude plaintiffs from litigating the issue of plaintiff Jose Verdugo's accident-related disability beyond January 24, 2006 granted, and certified question answered in the negative, in a memorandum.

[985 NE2d 136, 961 NYS2d 372]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS ABREU, Appellant.

Decided February 14, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the First Judicial Department, entered November 1, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Carol Berkman, J.), which had convicted defendant, upon a jury verdict, of murder in the first degree, robbery in the first degree (two counts), burglary in the first degree (two counts), and criminal possession of a weapon in the second and third degrees.

In a home invasion robbery, defendant and a nontestifying conspirator-declarant entered the victim's apartment while a testifying conspirator and another conspirator waited outside the building. Immediately after the crime, defendant and the conspirator-declarant met with the testifying conspirator. The Appellate Division determined that at the time the declarant announced to his coconspirators that defendant had killed the victim, the conspiracy was still in progress, especially since the stolen property had not yet been divided up, and that the trial court properly permitted the conspirator to testify, pursuant to the coconspirator declaration exception to the hearsay rule, that the nontestifying conspirator told him that defendant had shot the victim. The Appellate Division also found that the trial court properly permitted the People to rebut a claim of recent fabrication by introducing a prior consistent statement made by the cooperating conspirator, since this statement predated a particular motive to falsify that had been emphasized by the defense. The Appellate Division further held that consecutive sentences were lawfully imposed for the murder and weapon possession convictions because defendant committed those offenses through separate and distinct acts.

People v Abreu, 89 AD3d 412, affirmed.

HEADNOTE

Crimes — Sentence — Concurrent and Consecutive Terms — Harmless Evidentiary Rulings

In a prosecution for murder, robbery, burglary and criminal possession of a weapon arising out of a home invasion, defendant had completed the offense of second-degree weapon possession, with the requisite intent, before committing the act constituting first-degree felony murder and the sentences for those crimes could be run consecutively. Additionally, alleged evidentiary errors could not have affected the verdict in light of the overwhelming evidence of defendant's guilt and, thus, any such error would be harmless.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*David J. Klem* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Timothy C. Stone* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Carlos Abreu completed the offense of second-degree weapon possession, with the requisite intent, before committing the act constituting first-degree felony murder. Accordingly, the sentences for those crimes could be run consecutively (see *People v Salcedo*, 92 NY2d 1019, 1020-1021 [1998]). Additionally, the alleged evidentiary errors could not have affected the verdict in light of the overwhelming evidence of defendant's guilt and, thus, any such error would be harmless.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur; Judge RIVERA taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[985 NE2d 898, 962 NYS2d 587]

In the Matter of BRIAN WARD, Respondent, v CITY OF LONG BEACH, Appellant.

Argued January 2, 2013; decided February 14, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 4, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Nassau County (Daniel Palmieri, J.; op 25 Misc 3d 1225[A], 2009 NY Slip Op 52297[U] [2009]), entered in a proceeding pursuant to CPLR article 78, which had (1) granted that branch of the petition which was to annul respondent municipality's determination denying petitioner's application for supplemental disability benefits, and (2) directed respondent to pay petitioner the subject benefits.

Matter of Ward v City of Long Beach, 88 AD3d 734, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Supplemental Disability Pension Benefits — Arbitrary and Capricious Denial of Firefighter's Request for Benefits

Respondent municipality's denial of petitioner firefighter's request for supplemental disability pension benefits pursuant to General Municipal Law

§ 207-a lacked a rational basis and was, therefore, arbitrary and capricious. Respondent's denial was based on statements made by petitioner's estranged wife in the midst of a divorce and Corporation Counsel's personal observations of petitioner. Petitioner was given no notice of the allegations nor an opportunity to respond to them, despite the substantial contrary record evidence, including medical findings, that led to the approval of petitioner's application for disability benefits from the State.

APPEARANCES OF COUNSEL

Corey E. Klein, Corporation Counsel, Long Beach (Robert M. Agostisi of counsel), for appellant.

Law Offices of Louis D. Stober, Jr., L.L.C., Garden City (Louis D. Stober, Jr., of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Petitioner, a lieutenant in the City of Long Beach Fire Department, claimed to have suffered a work-related injury in October 2003. He filed for disability retirement with the State pursuant to Retirement and Social Security Law § 363-c. The State Comptroller granted that application and shortly thereafter petitioner retired from active duty. In May 2008, petitioner sought supplemental disability pension benefits from the City pursuant to General Municipal Law § 207-a. The Fire Commissioner denied the request, without explanation, and that determination was later upheld on appeal by the City's Corporation Counsel. Petitioner brought a CPLR article 78 proceeding, and Supreme Court annulled respondent's determination and directed respondent to pay petitioner the subject benefits. The Appellate Division affirmed.

In reviewing the City's determination—one that was made without a hearing—the issue is whether the action taken had a “rational basis” and was not “arbitrary and capricious” (see e.g. *Matter of Wooley v New York State Dept. of Correctional Servs.*, 15 NY3d 275, 280 [2010]). “An action is arbitrary and capricious when it is taken without sound basis in reason or regard to the facts” (*Matter of Peckham v Calogero*, 12 NY3d 424, 431 [2009]). If the determination has a rational basis, it will be sustained, even if a different result would not be unreasonable (*id.*).

The City's denial was based on statements made by petitioner's estranged wife in the midst of a divorce and Corporation

Counsel's personal observations of petitioner. Petitioner was given no notice of the allegations nor an opportunity to respond to them, despite the substantial contrary record evidence, including medical findings, that led to the approval of petitioner's application for disability benefits from the State. Under these circumstances, we agree with the Appellate Division that the City's justification for its denial lacks the requisite rational basis and is, therefore, arbitrary and capricious.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur; Judge RIVERA taking no part.

Order affirmed, with costs, in a memorandum.

AMERICAN BUILDING SUPPLY CORP., Appellant, v PETROCELLI GROUP, INC., Respondent, et al., Defendant.

Submitted January 7, 2013; decided February 14, 2013

Reported below, 81 AD3d 531.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 19 NY3d 730 (2012)].

Judge RIVERA taking no part.

In the Matter of JESSIE JAMES BARNES, Appellant, v JULIE FINOCCHIO, Assistant District Attorney, et al., Respondents.

Decided February 14, 2013

Reported below, 98 AD3d 1289.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge RIVERA taking no part.

WANDA DEREGOWSKA-MICHALAK, Appellant, v PIOT ZDZISLAW MICHALAK, Respondent.

Submitted December 31, 2012; decided February 14, 2013

Reported below, 2012 NY Slip Op 84712(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

Judge RIVERA taking no part.

KRISTIN KAHKONEN DUPREE, Respondent-Appellant, v JAMES E. GIUGLIANO, Appellant-Respondent.

Submitted January 7, 2013; decided February 14, 2013

Reported below, 87 AD3d 975.

Motion for reargument denied [*see* 20 NY3d 921 (2012)].

Judge RIVERA taking no part.

In the Matter of TYRONE L. JACKSON, Appellant, v APPELLATE DIVISION, FIRST DEPARTMENT, et al., Respondents.

Submitted November 13, 2012; decided February 14, 2013

Reported below, 41 AD3d 303.

Motion for reargument of motion for leave to appeal denied [*see* 9 NY3d 810 (2007)].

Judge RIVERA taking no part.

In the Matter of ERIC J. KOCH, D.O., Respondent, v JAMES G. SHEEHAN, New York State Medicaid Inspector General, Appellant.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 82.

Motion by Medical Society of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

ERVIDO B. MEJIA, Appellant, v ROOSEVELT ISLAND MEDICAL ASSOCIATES, Doing Business as COLER-GOLDWATER HOSPITAL & NURSING FACILITY, et al., Respondents.

Submitted January 7, 2013; decided February 14, 2013

Reported below, 95 AD3d 570.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN L. ALMESTICA, Appellant.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 97 AD3d 834.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DERRICK DEACON, Respondent.

Submitted November 19, 2012; decided February 14, 2013

Reported below, 96 AD3d 965.

Motion to dismiss appeal granted and the appeal dismissed upon the ground that the modification by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification” (CPL 450.90 [2] [a]).

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANGEL DEJESUS, Appellant.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 99 AD3d 580.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELVIN MUNOZ, Appellant.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 99 AD3d 546.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by Professor James J. Park for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by Professor Kate Stith for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by AARP for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by North American Securities Administrators Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by Chamber of Commerce of the United States et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by Honorable Paul S. Atkins et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, by ANDREW M. CUOMO,
Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 95 AD3d 474.

Motion by States of Connecticut and Vermont Offices of the Attorneys General for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

TIMOTHY A. ROULAN, Appellant, v COUNTY OF ONONDAGA et al.,
Respondents.

Submitted February 11, 2013; decided February 14, 2013

Reported below, 90 AD3d 1617.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

[985 NE2d 917, 962 NYS2d 606]

In the Matter of NEW YORK STATE OFFICE OF VICTIM SERVICES,
on Behalf of LAURA BALOGH and Others, Respondent, v STE-
VEN C. RAUCCI, Appellant. SHELLEY RAUCCI, Nonparty Ap-
pellant.

Argued January 3, 2013; decided February 19, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 7, 2012. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Albany County (Roger D. McDonough, J.), entered in a proceeding pursuant to Executive Law § 632-a, which had denied a motion by petitioner for a preliminary injunction deeming respondent to have directed the New York State and Local Employees' Retirement System to forward his pension funds to his inmate account, and prohibiting the withdrawal or transfer of those

funds, (2) granted the motion, and (3) remitted the matter to Supreme Court for further proceedings.

Matter of New York State Off. of Victim Servs. v Raucci, 97 AD3d 235, reversed.

HEADNOTE

Appeal — Preservation of Issue for Review — Availability of Incarcerated Public Employee's Pension to Satisfy Potential Civil Judgments of Crime Victims

In a proceeding seeking an order diverting the pension payments of a former public employee convicted of various crimes into the employee's inmate account to satisfy any potential judgments obtained by the victims of the employee's crimes, the argument that an amendment to the Son of Sam Law (Executive Law § 632-a) trumped Retirement and Social Security Law § 110 (2), which says that a pension shall not be subject to "execution, garnishment, attachment, or any other process whatsoever," was not preserved for appellate review. Petitioner argued that the Son of Sam Law trumped another statute, but not section 110. Moreover, the petition itself explicitly contradicted the theory that section 110 was inapplicable to the former employee's pension.

APPEARANCES OF COUNSEL

Hancock Estabrook, LLP, Syracuse (*Alan J. Pierce* of counsel), for Steven Raucci and another, appellants.

Eric T. Schneiderman, Attorney General, Albany (*Owen Demuth*, *Barbara D. Underwood* and *Andrew D. Bing* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to the Appellate Division for consideration of the facts and issues raised but not determined on the appeal to that Court.

Steven Raucci was convicted of several crimes, including arson, based on two incidents in which he tried (successfully, in one case) to detonate explosives at his victims' homes. Raucci was a public employee, and is entitled to a New York State and Local Retirement System pension, which has been collected by his wife, acting under a power of attorney. Petitioner, the New York State Office of Victim Services, brought this proceeding pursuant to Executive Law § 632-a (the Son of Sam Law) to obtain an order diverting the pension payments to Raucci's inmate account, where they can be frozen and kept available to satisfy any judgments the victims of Raucci's crimes might obtain. Raucci and his wife opposed the relief petitioner sought

on the ground that it was barred by Retirement and Social Security Law § 110 (2), which says that a “pension . . . or retirement allowance . . . [s]hall not be subject to execution, garnishment, attachment, or any other process whatsoever.”

Supreme Court agreed with the Rauccis. The court, after rejecting certain of petitioner’s arguments, observed that “petitioner has not argued that the Son of Sam Law trumps and/or supersedes” section 110.

The Appellate Division, however, accepted the argument that Supreme Court said was not made, and reversed. The Appellate Division held that a 2001 amendment to the Son of Sam Law defining “funds of a convicted person” to include “all funds and property received from any source” (Executive Law § 632-a [1] [c], as amended by L 2001, ch 62, § 1) eliminated the section 110 exemption in Son of Sam Law cases. The Appellate Division found that this argument was preserved by being raised in the submissions before Supreme Court (*Matter of New York State Off. of Victim Servs. v Raucci*, 97 AD3d 235, 238 [3d Dept 2012]).

The question of whether the Son of Sam Law creates an exception to the exemption granted by section 110 is an important one, but the Appellate Division erred in concluding it was preserved in this case. As Supreme Court correctly said, petitioner did not make the argument; it argued that the Son of Sam Law trumped another statute, CPLR 5205 (c), but not section 110. Indeed, the petition itself contradicts the theory that section 110 is inapplicable to Raucci’s pension; it says that “pursuant to Retirement and Social Security Law § 110, it would appear that the retirement funds at issue are not subject to execution, garnishment, attachment, or any other legal process while in the possession and control of the Retirement System.”

Our resolution of the question decided by the Appellate Division must await a case in which the issue is preserved. Meanwhile, of course, nothing prevents the legislature from amending one or both of the statutes to make its intention clear.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur; Judge RIVERA taking no part.

Order reversed, with costs, and matter remitted to the Appellate Division, Third Department, for consideration of the facts and issues raised but not determined on the appeal to that Court, in a memorandum.

[985 NE2d 423, 961 NYS2d 828]

In the Matter of WILLARD SAPERSTON, Appellant, v HEATHER
HOLDAWAY, Respondent.

Decided February 19, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 23, 2012. The Appellate Division, with two Justices dissenting, modified, on the law and the facts, an order of the Family Court, Erie County (Sharon M. LoVallo, J.), which, among other things, had granted the parties joint custody of their child and designated petitioner the primary residential parent. The modification consisted of awarding primary physical custody of the child to respondent, and remitting the matter to Family Court to fashion an appropriate visitation schedule. The Appellate Division affirmed the order as modified.

In a child custody dispute, the Appellate Division concluded that the Family Court's determination with respect to primary physical custody lacked a sound and substantial basis in the record. The dissent concluded that the court's decision to award primary physical custody to respondent father had a sound and substantial basis in the record and should not be disturbed.

Matter of Saperston v Holdaway, 93 AD3d 1271, appeal dismissed.

HEADNOTE

Appeal — Dismissal — Two-Justice Dissent

In a child custody matter, an appeal from an order of the Appellate Division, which modified a Family Court order awarding primary physical custody to the petitioner by awarding custody to the respondent, was dismissed since the two-Justice dissent at the Appellate Division was not on a question of law within the meaning of CPLR 5601 (a).

APPEARANCES OF COUNSEL

Phillips Lytle LLP, Buffalo (*Michael B. Powers* of counsel), for appellant.

Peter C. Lomtevas, Esq., P.C., Brooklyn (*Peter C. Lomtevas* of counsel), for respondent.

Bouvier Partnership, LLP, Buffalo (*Emilio L. Colaiacovo* of counsel), Attorney for the Child.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal

dismissed, without costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law within the meaning of CPLR 5601 (a).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT. Judge RIVERA taking no part.

In the Matter of RELLY ADLER, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted December 17, 2012; decided February 19, 2013

Reported below, 95 AD3d 694.

Motion for leave to appeal dismissed upon the ground that the proceeding and the motion have abated because of the death of the appellant.

WILLIAM ANDERSON, Appellant, v NEW YORK CITY DEPARTMENT OF EDUCATION, Respondent.

Submitted January 7, 2013; decided February 19, 2013

Reported below, 93 AD3d 538.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 852 (2012)].

In the Matter of ANDIE M. and Another, Infants. ONONDAGA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; KIMBERLY M. et al., Appellants.

Submitted January 28, 2013; decided February 19, 2013

Reported below, 101 AD3d 1638.

Motions for leave to appeal denied. Motion by Kimberly M. for poor person relief dismissed as academic.

KATHLEEN BAILEY, Appellant, v VILLAGE OF SARANAC LAKE, INC., Respondent.

Submitted January 22, 2013; decided February 19, 2013

Reported below, 100 AD3d 1089.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BAY CREST ASSOCIATION, INC., Respondent, v LOUIS PAAR et al.,
Appellants.

Decided February 19, 2013

Reported below, 99 AD3d 744.

Appeal by Louis Paar, insofar as taken from so much of the Appellate Division order as dismissed his appeal from so much of Supreme Court's order as granted that branch of respondent's motion which was pursuant to CPLR 2606 for the payment from funds belonging to Suzanne De Lisi and held in two accounts by the Suffolk County Treasurer in satisfaction of the judgment insofar as it was entered against Suzanne De Lisi, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that Louis Paar is not a party aggrieved by that portion of the order (*see* CPLR 5511); appeal by Suzanne De Lisi, insofar as taken from that part of the Appellate Division order that affirmed the grant of respondent's CPLR 2606 motion as against Suzanne De Lisi, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such part of the order does not finally determine the action within the meaning of the Constitution; appeal by both appellants, insofar as taken from that part of the Appellate Division order that affirmed so much of Supreme Court's order as denied appellants' motion to vacate a prior judgment, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such part of the order does not finally determine the action within the meaning of the Constitution; appeal by both appellants, insofar as taken from that part of the Appellate Division order that affirmed so much of Supreme Court's order as denied appellants' motion to hold respondent's attorney in criminal and civil contempt, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge RIVERA taking no part.

In the Matter of the Claim of SHARON K. BLAND, Appellant, v GELLMAN, BRYDGES & SCHROFF et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (And Another Proceeding.)

Submitted January 28, 2013; decided February 19, 2013

Reported below, 100 AD3d 1289.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of the Arbitration between ADAM BOBAK, Appellant, and AIG CLAIMS SERVICES, INC., et al., Respondents.

Submitted November 5, 2012; decided February 19, 2013

Reported below, 97 AD3d 1103.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the nonfinal order sought to be reviewed on appeal does not necessarily affect the final Appellate Division order, as required by CPLR 5601 (d), and thus cannot provide a constitutional predicate for the appeal. Motion for leave to appeal denied.

Chief Judge LIPPMAN taking no part.

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted January 14, 2013; decided February 19, 2013

Reported below, 101 AD3d 1002.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

Judge RIVERA taking no part.

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted February 4, 2013; decided February 19, 2013

Reported below, 101 AD3d 1002.

Motion by The Bronx County Bar Association, insofar as it seeks leave to file a brief amicus curiae on the motion for leave to appeal herein, granted and the brief is accepted as filed; motion, insofar as it seeks leave to file a brief amicus curiae on the appeal herein, dismissed as academic.

Judge RIVERA taking no part.

GOLDEN CITY COMMERCIAL BANK, Plaintiff, v 207 SECOND AVENUE REALTY CORP. et al., Defendants. MICHAEL G. ZAPSON, as Temporary Receiver of the Rents and Profits of 207 Second Avenue, New York, New York, Nonparty Respondent; JANET CHANG, as Successor in Interest, Nonparty Appellant.

Submitted December 31, 2012; decided February 19, 2013

Reported below, 100 AD3d 403.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of the Judicial Settlement of the Intermediate Account of HSBC BANK USA, N.A., as Trustee of the Trust under Agreement Dated January 21, 1957, SEYMOUR H. KNOX, II, Grantor, for the Benefit of the Issue of SEYMOUR H. KNOX, III, for the Period January 21, 1957 to November 3, 2005. HSBC BANK USA, N.A., Respondent; W.A. READ KNOX et al., Appellants, et al., Respondents.

Submitted November 26, 2012; decided February 19, 2013

Reported below, 98 AD3d 300.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge PIGOTT taking no part.

In the Matter of JAMES WW, a Child Alleged to be Permanently Neglected. RENSSELAER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TARA XX., Appellant. (And Another Related Proceeding.)

Submitted January 28, 2013; decided February 19, 2013

Reported below, 100 AD3d 1276.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

TULSA KNOX, Appellant, v NEW YORK CITY DEPARTMENT OF EDUCATION, Respondent.

Submitted January 7, 2013; decided February 19, 2013

Reported below, 100 AD3d 486.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

L&L ASSOCIATES HOLDING CORP., Respondent, v JOSEPH A.F. SADOWSKI, Appellant, et al., Defendants.

Submitted January 14, 2013; decided February 19, 2013

Reported below, 2012 NY Slip Op 91501(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

LINGFEI SUN, Appellant, v CITY OF NEW YORK et al., Defendants, and NEW YORK CITY HEALTH AND HOSPITALS CORPORATION et al., Respondents.

Submitted January 18, 2013; decided February 19, 2013

Reported below, 99 AD3d 673.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 854 (2012)].

Judge RIVERA taking no part.

ALFRED G. OSTERWEIL, Appellant, v GEORGE R. BARTLETT, III, in
His Official Capacity as Licensing Officer in the County of
Schoharie, Respondent.

Decided February 19, 2013

See 703 F3d 139.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HECTOR MARTINEZ, Appellant.

Submitted January 22, 2013; decided February 19, 2013

Reported below, 84 AD3d 550.

Motion to amend the remittitur denied [*see* 20 NY3d 971 (2012)].

Judge RIVERA taking no part.

In the Matter of ALVIN ROSENTHAL et al., as Trustees on Behalf of the HELMSLEY CHARITABLE TRUST. THE AMERICAN SOCIETY FOR THE PREVENTION OF CRUELTY TO ANIMALS et al., Proposed Intervenors-Appellants; DAVID PANZIRER et al., Respondents.

Submitted December 3, 2012; decided February 19, 2013

Reported below, 99 AD3d 573.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of intervention, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge SMITH taking no part.

In the Matter of ALVIN ROSENTHAL et al., as Trustees on Behalf of the HELMSLEY CHARITABLE TRUST. THE AMERICAN SOCIETY FOR THE PREVENTION OF CRUELTY TO ANIMALS et al., Proposed Intervenors-Appellants; DAVID PANZIRER et al., Respondents.

Submitted December 10, 2012; decided February 19, 2013

Reported below, 99 AD3d 573.

Motion by William Josephson and Marilyn Ordovery, insofar as it seeks leave to file a brief amici curiae on the motion for leave to appeal herein, granted and the brief is accepted as filed; motion, insofar as it seeks leave to file a brief amici curiae on the appeal herein dismissed as academic.

Judge SMITH taking no part.

APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2013 through February 28, 2013)

People v Carter	4th Dept: 96 AD3d 1520	2/20/13
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2013 through February 28, 2013)

People v Anderson	4th Dept: 99 AD3d 1239 (Genesee)	denied 2/19/13 (Lippman, Ch. J.)
People v Arroyo	1st Dept: 99 AD3d 515 (Bronx)	denied 2/12/13 (Read, J.)
People v Aveni	2d Dept: 100 AD3d 228 (Westchester)	granted 2/20/13 (Pigott, J.)
People v Balkman	4th Dept: 94 AD3d 1480 (Monroe)	denied 2/20/13 (Lippman, Ch. J.)
People v Banks	3d Dept: 100 AD3d 1190 (Sullivan)	denied 2/21/13 (Smith, J.)
People v Bonilla	1st Dept: 101 AD3d 508 (NY)	denied 2/22/13 (Grafteo, J.)
People v Bonner (Harrell)	4th Dept: 94 AD3d 1500 (Erie)	denied reconsideration 2/22/13 (Lippman, Ch. J.)
People v Bonner (Harrell)	4th Dept: 94 AD3d 1502 (Erie)	denied reconsideration 2/22/13 (Lippman, Ch. J.)

People v Boucher	2d Dept: 97 AD3d 597 (Kings)	denied 2/25/13 (Lippman, Ch. J.)
People v Bracy	4th Dept: 91 AD3d 1296 (Erie)	denied 2/26/13 (Lippman, Ch. J.)
People v Brown	2d Dept: 90 AD3d 944 (Queens)	denied reconsideration 2/4/13 (Lippman, Ch. J.)
People v Burt	4th Dept: 101 AD3d 1729 (Erie)	denied 2/22/13 (Grafteo, J.)
People v Cabeza	2d Dept: 99 AD3d 720 (Kings)	denied 2/25/13 (Read, J.)
People v Campanella	4th Dept: 100 AD3d 1420 (Erie)	denied 2/25/13 (Read, J.)
People v Carno	4th Dept: 101 AD3d 1663 (Onondaga)	denied 2/21/13 (Grafteo, J.)
People v Carter	4th Dept: 100 AD3d 1472 (Niagara)	granted 2/22/13 (Grafteo, J.)
People v Castillo	2d Dept: 99 AD3d 720 (Kings)	denied 2/20/13 (Pigott, J.)
People v Chacko	1st Dept: 99 AD3d 527 (NY)	denied 2/7/13 (Read, J.)
People v Chavez	App Div, 2d Dept, 12/5/12 (Queens)	dismissed 2/4/13 (Lippman, Ch. J.)
People v Clancy	2d Dept: 101 AD3d 1041 (Suffolk)	denied 2/12/13 (Read, J.)
People v Cohen	2d Dept: 100 AD3d 919 (Suffolk)	denied 2/20/13 (Lippman, Ch. J.)
People v Collins	2d Dept: 97 AD3d 697 (Kings)	denied 2/25/13 (Read, J.)
People v Condes	4th Dept: 100 AD3d 1552 (Cayuga)	denied 2/20/13 (Lippman, Ch. J.)
People v Council	1st Dept: 98 AD3d 917 (NY)	denied 2/25/13 (Read, J.)
People v Credel	1st Dept: 99 AD3d 541 (NY)	denied 2/26/13 (Lippman, Ch. J.)
People v Cromwell	2d Dept: 99 AD3d 1017 (Queens)	denied 2/25/13 (Read, J.)
People v Crooks	2d Dept: 98 AD3d 630 (Nassau)	denied 2/22/13 (Grafteo, J.)
People v Curl	App Div, 3d Dept: 2012 NY Slip Op 92992(U) (Warren)	denied 2/22/13 (Grafteo, J.)
People v Curry	2d Dept: 101 AD3d 743 (Queens)	withdrawn 2/25/13 (Grafteo, J.)
People v Davis	4th Dept: 101 AD3d 1778 (Erie)	denied 2/21/13 (Grafteo, J.)
People v DeFilippo	2d Dept: 100 AD3d 767 (Richmond)	denied 2/22/13 (Grafteo, J.)
People v Dubon	App Div, 2d Dept: 2012 NY Slip Op 79761(U) (Queens)	denied reconsideration 2/12/13 (Read, J.)

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People v Espino	1st Dept: 101 AD3d 518 (NY)	denied 2/22/13 (Grafteo, J.)
People v Fagan	4th Dept: 98 AD3d 1270 (Monroe)	denied 2/25/13 (Read, J.)
People v Ferguson	2d Dept: 91 AD3d 885 (Kings)	denied 2/19/13 (Lippman, Ch. J.)
People v Figueroa	2d Dept: 100 AD3d 1016 (Dutchess)	denied 2/22/13 (Grafteo, J.)
People v Flores	2d Dept: 98 AD3d 1066 (Richmond)	denied 2/12/13 (Read, J.)
People v Flow	1st Dept: 99 AD3d 549 (NY)	denied 2/25/13 (Read, J.)
People v Fowler	2d Dept: 101 AD3d 898 (Kings)	denied 2/22/13 (Grafteo, J.)
People v Fulks	County Ct, 10/18/12 (Erie)	denied 2/19/13 (Lippman, Ch. J.)
People v Fuller	App Div, 4th Dept: 2012 NY Slip Op 81676(U) (Erie)	denied 2/4/13 (Lippman, Ch. J.)
People v Funches	App Div, 1st Dept: 2012 NY Slip Op 90099(U) (NY)	denied 2/22/13 (Grafteo, J.)
People v Gardner	3d Dept: 101 AD3d 1269 (Franklin)	denied 2/22/13 (Grafteo, J.)
People v Gaston	4th Dept: 100 AD3d 1463 (Erie)	denied 2/20/13 (Pigott, J.)
People v Gholam	1st Dept: 99 AD3d 441 (NY)	denied 2/22/13 (Lippman, Ch. J.)
People v Gibeault	County Ct, 10/1/12 (Schenectady)	denied 2/19/13 (Lippman, Ch. J.)
People v Giles	1st Dept: 99 AD3d 610 (NY)	denied 2/25/13 (Read, J.)
People v Gillespie	2d Dept: 97 AD3d 763 (Queens)	denied 2/20/13 (Lippman, Ch. J.)
People v Gilmore	2d Dept: 98 AD3d 1134 (Kings)	denied 2/25/13 (Read, J.)
People v Glasgow	3d Dept: 95 AD3d 1367 (Albany)	denied 2/21/13 (Lippman, Ch. J.)
People v Gonzales	4th Dept: 99 AD3d 1217 (Monroe)	denied 2/13/13 (Read, J.)
People v Gonzalez	4th Dept: 99 AD3d 1217 (Monroe)	denied 2/13/13 (Read, J.)
People v Gordian	1st Dept: 99 AD3d 538 (Bronx)	denied 2/26/13 (Lippman, Ch. J.)
People v Gressler	App Div, 3d Dept: 2012 NY Slip Op 84267(U) (Rensselaer)	denied 2/19/13 (Lippman, Ch. J.)
People v Grist	2d Dept: 98 AD3d 1061 (Kings)	denied 2/19/13 (Lippman, Ch. J.)
People v Gssime	App Div, 2d Dept: 2012 NY Slip Op 92031(U) (Nassau)	dismissed 2/28/13 (Pigott, J.)
People v Guity	1st Dept: 100 AD3d 562 (Bronx)	denied 2/4/13 (Lippman, Ch. J.)

People v Haigler	App Div, 1st Dept: 2012 NY Slip Op 66603(U) (NY)	denied reconsideration 2/25/13 (Read, J.)
People v Haley	3d Dept: 96 AD3d 1168 (Rensselaer)	denied 2/20/13 (Pigott, J.)
People v Heidt	2d Dept: 95 AD3d 1234 (Westchester)	denied 2/20/13 (Lippman, Ch. J.)
People v Hluboky	2d Dept: 99 AD3d 1020 (Suffolk)	denied 2/11/13 (Lippman, Ch. J.)
People v Hodges	1st Dept: 99 AD3d 629 (NY)	denied 2/25/13 (Read, J.)
People v Holland	2d Dept: 98 AD3d 1134 (Suffolk)	denied 2/25/13 (Read, J.)
People v Huger	1st Dept: 100 AD3d 468 (NY)	denied 2/12/13 (Read, J.)
People v Hyra	App Term, 2d Dept, 9th & 10th Jud Dists: 2012 NY Slip Op 92673(U) (Westchester)	denied reconsideration 2/11/13 (Lippman, Ch. J.)
People v Jackson	App Div, 1st Dept: 2012 NY Slip Op 89920(U) (Bronx)	denied 2/12/13 (Read, J.)
People v Jacobs	2d Dept: 101 AD3d 1044 (Nassau)	denied 2/20/13 (Lippman, Ch. J.)
People v James	1st Dept: 101 AD3d 447 (NY)	denied 2/12/13 (Read, J.)
People v Jamieson	4th Dept: 100 AD3d 1560 (Niagara)	denied 2/20/13 (Pigott, J.)
People v Jarvis	2d Dept: 101 AD3d 749 (Nassau)	denied 2/22/13 (Grafteo, J.)
People v Jenkins	App Div, 3d Dept: 2010 NY Slip Op 89584(U) (St. Lawrence)	dismissed 2/12/13 (Read, J.)
People v Johnson (Johnathan)	2d Dept: 101 AD3d 750 (Queens)	denied 2/22/13 (Grafteo, J.)
People v Johnson (Jonathan)	2d Dept: 101 AD3d 750 (Queens)	denied 2/22/13 (Grafteo, J.)
People v Johnson (Todd)	1st Dept: 99 AD3d 472 (NY)	granted 2/4/13 (Grafteo, J.)
People v Jones	4th Dept: 98 AD3d 1323 (Oneida)	denied 2/12/13 (Read, J.)
People v Judge	2d Dept: 101 AD3d 902 (Queens)	denied 2/20/13 (Lippman, Ch. J.)
People v Ju Ju Jiang	2d Dept: 99 AD3d 724 (Queens)	denied 2/13/13 (Read, J.)
People v Keenum	2d Dept: 101 AD3d 1045 (Dutchess)	denied 2/21/13 (Grafteo, J.)
People v Keiser	2d Dept: 100 AD3d 927 (Dutchess)	denied 2/20/13 (Pigott, J.)
People v Kidd	2d Dept: 100 AD3d 779 (Queens)	denied 2/21/13 (Grafteo, J.)
People v Kings	2d Dept: 100 AD3d 1019 (Kings)	denied 2/22/13 (Grafteo, J.)

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People v Lane	4th Dept: 100 AD3d 1540 (Erie)	denied 2/20/13 (Pigott, J.)
People v Long	4th Dept: 100 AD3d 1343 (Erie)	denied 2/20/13 (Pigott, J.)
People v Loret	4th Dept: 98 AD3d 1324 (Monroe)	denied 2/12/13 (Read, J.)
People v Mack	2d Dept: 99 AD3d 1022 (Orange)	denied 2/20/13 (Pigott, J.)
People v March	3d Dept: 96 AD3d 1101 (Chemung)	denied 2/26/13 (Lippman, Ch. J.)
People v Marsh	2d Dept: 100 AD3d 1020 (Suffolk)	denied 2/19/13 (Lippman, Ch. J.)
People v Marshall	2d Dept: 97 AD3d 697 (Kings)	denied 2/25/13 (Read, J.)
People v Martinez (Jose)	2d Dept: 97 AD3d 605 (Orange)	denied 2/26/13 (Lippman, Ch. J.)
People v Martinez (Selbin)	1st Dept: 100 AD3d 537 (Bronx)	granted 2/21/13 (Smith, J.)
People v May	4th Dept: 100 AD3d 1411 (Erie)	denied 2/20/13 (Pigott, J.)
People v McKethan	2d Dept: 96 AD3d 978 (Queens)	denied 2/4/13 (Lippman, Ch. J.)
People v McPhee	2d Dept: 99 AD3d 732 (Kings)	denied 2/25/13 (Lippman, Ch. J.)
People v Miller	3d Dept: 93 AD3d 882 (Fulton)	denied reconsideration 2/20/13 (Lippman, Ch. J.)
People v Mills	App Div, 4th Dept: 2013 NY Slip Op 61762(U) (Genesee)	dismissed 2/22/13 (Smith, J.)
People v Myers	4th Dept: 100 AD3d 1567 (Niagara)	denied 2/12/13 (Read, J.)
People v Nazario	2d Dept: 100 AD3d 783 (Queens)	denied 2/22/13 (Grafteo, J.)
People v Negron	1st Dept: 100 AD3d 541 (Bronx)	denied 2/12/13 (Read, J.)
People v Nelson	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 137(A) (Kings)	denied 2/25/13 (Read, J.)
People v Norfort	2d Dept: 101 AD3d 756 (Kings)	denied 2/21/13 (Smith, J.)
People v O'Brien	4th Dept: 98 AD3d 1264 (Onondaga)	denied 2/19/13 (Lippman, Ch. J.)
People v Owens	2d Dept: 99 AD3d 1024 (Dutchess)	denied 2/12/13 (Read, J.)
People v Pantaleon	2d Dept: 98 AD3d 1066 (Richmond)	denied 2/12/13 (Read, J.)
People v Pena	2d Dept: 100 AD3d 1024 (Kings)	denied 2/21/13 (Grafteo, J.)
People v Peqero	App Div, 1st Dept: 2011 NY Slip Op 79880(U) (NY)	dismissed 2/12/13 (Read, J.)

People v Pequero	App Div, 1st Dept: 2011 NY Slip Op 79880(U) (NY)	dismissed 2/12/13 (Read, J.)
People v Perez	App Term, 1st Dept: 37 Misc 3d 132(A) (NY)	denied 2/4/13 (Lippman, Ch. J.)
People v Perkins	2d Dept: 100 AD3d 805 (Kings)	denied 2/20/13 (Pigott, J.)
People v Pope	3d Dept: 96 AD3d 1231 (Broome)	denied 2/25/13 (Read, J.)
People v Porter	3d Dept: 101 AD3d 44 (Schenectady)	denied 2/25/13 (Read, J.)
People v Powell (Carlton)	2d Dept: 101 AD3d 756 (Queens)	withdrawn 2/25/13 (Grafteo, J.)
People v Powell (Troy)	App Div, 4th Dept, 11/27/12 (Oswego)	dismissed 2/21/13 (Grafteo, J.)
People v Prophet (Damien)	4th Dept: 94 AD3d 1500 (Erie)	denied reconsideration 2/22/13 (Lippman, Ch. J.)
People v Prophet (Damien)	4th Dept: 94 AD3d 1502 (Erie)	denied reconsideration 2/22/13 (Lippman, Ch. J.)
People v Prunier	3d Dept: 100 AD3d 1269 (Chemung)	denied 2/22/13 (Grafteo, J.)
People v Qoshja	1st Dept: 91 AD3d 497 (NY)	denied 2/26/13 (Lippman, Ch. J.)
People v Ralph	2d Dept: 91 AD3d 796 (Kings)	denied 2/26/13 (Lippman, Ch. J.)
People v Ramos	2d Dept: 100 AD3d 808 (Queens)	denied 2/22/13 (Grafteo, J.)
People v Rayan	1st Dept: 99 AD3d 566 (NY)	denied 2/12/13 (Read, J.)
People v Ricks	4th Dept: 98 AD3d 1324 (Erie)	denied 2/19/13 (Lippman, Ch. J.)
People v Rini	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 152(A) (Richmond)	denied reconsideration 2/19/13 (Lippman, Ch. J.)
People v Rivera	1st Dept: 100 AD3d 472 (NY)	denied 2/20/13 (Pigott, J.)
People v Rockefeller	3d Dept: 89 AD3d 1151 (Rensselaer)	denied 2/25/13 (Lippman, Ch. J.)
People v Rodriguez	2d Dept: 89 AD3d 1043 (Kings)	denied reconsideration 2/25/13 (Lippman, Ch. J.)
People v Rogers	2d Dept: 94 AD3d 1152 (Dutchess)	denied 2/4/13 (Lippman, Ch. J.)
People v Roiz	2d Dept: 101 AD3d 1048 (Nassau)	denied 2/22/13 (Grafteo, J.)

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People v Rosario	2d Dept: 100 AD3d 660 (Queens)	denied 2/25/13 (Read, J.)
People v Rose	App Div, 3d Dept: 2012 NY Slip Op 91231(U) (Albany)	denied 2/21/13 (Grafteo, J.)
People v Ruiz	1st Dept: 100 AD3d 451 (NY)	denied 2/22/13 (Grafteo, J.)
People v Salton	2d Dept: 101 AD3d 760 (Queens)	denied 2/21/13 (Grafteo, J.)
People v Samba (Serigue)	1st Dept: 97 AD3d 411 (NY)	denied 2/19/13 (Lippman, Ch. J.)
People v Samba (Seugn)	1st Dept: 97 AD3d 411 (NY)	denied 2/19/13 (Lippman, Ch. J.)
People v Scott	2d Dept: 99 AD3d 817 (Kings)	denied 2/25/13 (Lippman, Ch. J.)
People v Shaw	4th Dept: 98 AD3d 1323 (Onondaga)	denied 2/19/13 (Lippman, Ch. J.)
People v Simpkins	App Div, 2d Dept: 2012 NY Slip Op 94517(U) (Nassau)	dismissed 2/21/13 (Grafteo, J.)
People v Singleton	1st Dept: 99 AD3d 481 (NY)	denied 2/25/13 (Read, J.)
People v Smith	2d Dept: 101 AD3d 761 (Richmond)	denied* 2/21/13 (Grafteo, J.)
People v Spook	3d Dept: 101 AD3d 44 (Schenectady)	denied 2/25/13 (Read, J.)
People v Stanley	2d Dept: 99 AD3d 955 (Kings)	denied 2/19/13 (Lippman, Ch. J.)
People v Stanzione	App Div, 3d Dept: 2012 NY Slip Op 92784(U) (Greene)	dismissed 2/21/13 (Grafteo, J.)
People v Stone	1st Dept: 98 AD3d 910 (NY)	granted 2/21/13 (Lippman, Ch. J.)
People v Sunter	App Div, 1st Dept, 9/5/12 (NY)	dismissed 2/12/13 (Read, J.)
People v Tahaqa	App Div, 2d Dept: 2012 NY Slip Op 94861(U) (Queens)	dismissed 2/4/13 (Lippman, Ch. J.)
People v Tallman	3d Dept: 92 AD3d 1082 (St. Lawrence)	denied 2/20/13 (Lippman, Ch. J.)
People v Taylor	2d Dept: 98 AD3d 593 (Richmond)	granted 2/25/13 (Lippman, Ch. J.)
People v Terrance	1st Dept: 101 AD3d 624 (NY)	denied 2/22/13 (Grafteo, J.)
People v Thomas	2d Dept: 99 AD3d 737 (Queens)	denied 2/19/13 (Lippman, Ch. J.)
People v Torres	2d Dept: 96 AD3d 881 (Rockland)	denied 2/21/13 (Lippman, Ch. J.)
People v Truscio (Ann)	App Div, 4th Dept, 12/1/12 (Niagara)	dismissed 2/21/13 (Smith, J.)
People v Truscio (Ann)	County Ct, 4/4/12 (Niagara)	dismissed 2/21/13 (Smith, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brinson* (90 AD3d 670 [2011]), *lv granted* 18 NY3d 992 [2012]) and *People v Blankymsee* (92 AD3d 890 [2012], *lv granted* 18 NY3d 992 [2012]).

People v Ubbink	4th Dept: 100 AD3d 1528 (Onondaga)	denied 2/22/13 (Grafteo, J.)
People v Vailes	App Term, 2d Dept, 9th & 10th Jud Dists: 35 Misc 3d 132(A) (Nassau)	denied 2/19/13 (Lippman, Ch. J.)
People v Walker	3d Dept: 100 AD3d 1149 (Schenectady)	denied 2/19/13 (Lippman, Ch. J.)
People v Waller (Pete)	4th Dept: 94 AD3d 1500 (Erie)	denied reconsideration 2/22/13 (Lippman, Ch. J.)
People v Waller (Pete)	4th Dept: 94 AD3d 1502 (Erie)	denied reconsideration 2/22/13 (Lippman, Ch. J.)
People v Welch	App Div, 3d Dept: 2012 NY Slip Op 60311(U) (Tompkins)	denied 2/25/13 (Lippman, Ch. J.)
People v Wells	3d Dept: 101 AD3d 1250 (Chemung)	denied 2/21/13 (Smith, J.)
People v Williams (Jamal)	1st Dept: 99 AD3d 495 (NY)	denied 2/25/13 (Read, J.)
People v Williams (James)	4th Dept: 100 AD3d 1444 (Erie)	denied 2/19/13 (Lippman, Ch. J.)
People v Williams (Karl)	2d Dept: 97 AD3d 768 (Queens)	denied 2/13/13 (Read, J.)
People v Williams (Lamont)	4th Dept: 98 AD3d 1279 (Erie)	denied 2/12/13 (Read, J.)
People v Williams (Vincent)	App Div, 2d Dept: 2012 NY Slip Op 94861(U) (Queens)	dismissed 2/4/13 (Lippman, Ch. J.)
People v Wilson	2d Dept: 101 AD3d 764 (Kings)	denied 2/21/13 (Grafteo, J.)
People v Winkfield	1st Dept: 98 AD3d 923 (NY)	denied 2/25/13 (Read, J.)
People v Witter	1st Dept: 100 AD3d 556 (NY)	denied 2/21/13 (Smith, J.)
People v Woods	4th Dept: 96 AD3d 1511 (Erie)	denied 2/12/13 (Read, J.)
People v Zebrowski	App Div, 3d Dept: 2012 NY Slip Op 79995(U) (Albany)	denied 2/4/13 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(February 1, 2013 through February 28, 2013)

People v Rossi	2d Dept: 99 AD3d 947 (Nassau)	granted 2/7/13 (Chambers, J.)
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* Includes only applications that were granted.

[986 NE2d 436, 963 NYS2d 618]

In the Matter of ARISLEDA DUARTE, Respondent, v CITY OF NEW YORK, Appellant.

Argued February 14, 2013; decided March 21, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 17, 2012. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Kevin J. Kerrigan, J.; op 2011 NY Slip Op 31223[U] [2011]), entered in a proceeding pursuant to CPLR article 78, which had granted a petition to review a determination of the New York City Department of Correction denying petitioner's application for admission to the nursery program at a Rikers Island correctional facility upon the birth of her child, annulled the determination, and directed that the petitioner and her child be admitted to the nursery program.

Petitioner, a pregnant inmate awaiting trial at the Rose M. Singer Center Correctional Facility at Rikers Island, applied to the New York City Department of Correction to be admitted to the facility's nursery program, which allows for an inmate who gives birth while incarcerated to nurse and care for her newborn child in the facility's nursery for up to 18 months after the child's birth. The Department denied petitioner's application, and petitioner commenced a CPLR article 78 proceeding to review that determination.

Matter of Duarte v City of New York, 91 AD3d 778, appeal dismissed.

HEADNOTE

Appeal — Academic and Moot Questions — Denial of Application to Enter Nursery Program at Correctional Facility

An appeal from an order of the Appellate Division, which had affirmed a judgment annulling a determination denying petitioner inmate's application for admission to the nursery program at the correctional facility at which she was incarcerated, was dismissed as moot since petitioner's child had reached an age that rendered him ineligible for participation in the program (*see* Correction Law § 611). Moreover, in light of the New York City Department of Correction's revised nursery order, the Court of Appeals declined to invoke the mootness exception.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Fay Ng, Pamela Seider Dolgow and Janice Birnbaum* of counsel), for appellant.

Curtis, Mallet-Prevost, Colt & Mosle, LLP, New York City (*Valentina M. Morales* of counsel), and *Nixon Peabody LLP*, Manchester, New Hampshire (*Morgan Nighan* of counsel), for respondent.

Morningside Heights Legal Services, Inc., New York City (*Philip M. Genty* of counsel), for Columbia Law School Prisoners and Families Clinic, amicus curiae.

Steven Banks, Legal Aid Society, New York City (*Dori A. Lewis* of counsel), for Prisoners' Rights Project of the New York City Legal Aid Society, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed, without costs, as moot.

Respondent City of New York has asked us to review whether it was error for the Appellate Division to conclude that it was arbitrary and capricious for the New York City Department of Correction to deny petitioner's application to enter the nursery program at the Rose M. Singer Center at Rikers Island. We agree with petitioner that this proceeding is moot because her child is now of an age that renders him ineligible for participation in the nursery program pursuant to Correction Law § 611. Moreover, in light of the Department of Correction's revised nursery order, effective February 11, 2013, we decline to invoke the mootness exception (*see Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 714-715 [1980]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur.

Appeal dismissed, without costs, as moot, in a memorandum.

[986 NE2d 901, 964 NYS2d 67]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRELL NORRIS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELBERT NORRIS, Appellant.

Argued February 7, 2013; decided March 21, 2013

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 13, 2011. The Appellate Division (1) affirmed an order of the Supreme Court, Kings County (Alan D. Marrus, J.), which, after a hearing, had specified and informed defendant that upon granting his motion for resentencing, the court would vacate defendant's three consecutive indeterminate sentences of imprisonment of 5 to 10 years previously imposed upon his class B felony drug convictions for criminal sale of a controlled substance in the third degree, and impose determinate terms of imprisonment of seven years to run consecutively to each other, followed by a three-year period of postrelease supervision, unless defendant withdrew his application for resentencing or appealed from the order, and (2) remitted the matter to Supreme Court for further proceedings in order to afford defendant the opportunity to withdraw his application for resentencing before any sentence was imposed.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 20, 2011. The Appellate Division (1) affirmed an order of the Supreme Court, Kings County (Alan D. Marrus, J.), which had specified and informed defendant that upon granting his motion for resentencing, the court would vacate defendant's four consecutive indeterminate sentences of imprisonment of 5 to 10 years previously imposed upon his class B felony drug convictions for criminal sale of a controlled substance in the third degree, and impose a determinate prison term of six years on each of the sale counts, followed by three years of postrelease supervision, the terms to run consecutively to each other, unless defendant withdrew his application for resentencing or appealed from the order, and (2) remitted the matter to Supreme Court for further proceedings in order to afford defendant the opportunity to withdraw his application for resentencing before any sentence was imposed.

People v Norris, 90 AD3d 788, affirmed.

People v Norris, 90 AD3d 955, affirmed.

HEADNOTE

Crimes — Sentence — Drug Law Reform Act — Changing Consecutive to Concurrent Sentences Not Permitted

Under Penal Law § 70.25 (1), a court is authorized to direct whether sentences run concurrently or consecutively only when multiple sentences of

imprisonment are imposed on a person at the same time or when a person subject to a previously imposed undischarged term of imprisonment is sentenced to an additional term of imprisonment, and neither circumstance is present when a court imposes a determinate sentence under the 2004 or 2009 Drug Law Reform Act (DLRA) (*see* CPL 440.46). A resentencing under the DLRA constitutes alteration of the existing sentence as authorized by law, rather than imposition of a new sentence or of an additional term of imprisonment. Resentencing courts are not given the discretion to fashion new sentences or add terms of imprisonment, but are constrained to make an existing sentence determinate in the manner dictated by the DLRA. The intent of the legislature was to relieve the harshness of the original Rockefeller Drug Laws by introducing a system whereby existing sentence lengths are altered. Penal Law § 70.25 (1) is inapplicable to DLRA resentencing, regardless of whether the sentences that defendant sought to be made concurrent included sentences not subject to the DLRA or were all subject to the DLRA. Accordingly, courts resentencing defendants under the DLRA are without authority to make consecutive sentences run concurrently.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Paul Skip Laisure* of counsel), for appellant in the first above-entitled action.

Lynn W.L. Fahey, Appellate Advocates, New York City (*Kathleen E. Whooley* and *Paul Skip Laisure* of counsel), for appellant in the second above-entitled action.

Charles J. Hynes, District Attorney, Brooklyn (*Caroline R. Donhauser, Victor Barall* and *Leonard Joblove* of counsel), for respondent in the first and second above-entitled actions.

OPINION OF THE COURT

MEMORANDUM.

In each case, the order of the Appellate Division should be affirmed.

Defendants Tyrell Norris and Elbert Norris (who are not related) were charged with drug felonies following an investigation into gangs that sold drugs in a public housing development in Brooklyn in the early 2000s. Tyrell Norris was convicted in 2003 of four counts of criminal sale of a controlled substance in the third degree (Penal Law § 220.39 [1]) and one count of conspiracy in the third degree (Penal Law § 105.13). Elbert Norris, meanwhile, was convicted of five counts of third-degree criminal sale of a controlled substance and one count of third-degree conspiracy, under the same penal statutes.

Both defendants had significant criminal histories, and were adjudicated second felony offenders. In December 2003,

Supreme Court imposed on each defendant consecutive sentences of 5 to 10 years' imprisonment on the criminal sale of a controlled substance counts, as well as 3½ to 7 years' imprisonment on the conspiracy count, to run concurrently with the sale counts.

On direct appeal, the Appellate Division vacated one of Tyrell Norris's sale convictions along with the sentence imposed thereon (34 AD3d 501 [2d Dept 2006]). The dismissal of this count reduced his aggregate sentence from 20 to 40 years to 15 to 30 years. Similarly, one of Elbert Norris's sale convictions was vacated, reducing his aggregate sentence from 25 to 50 years to 20 to 40 years (34 AD3d 500 [2d Dept 2006]). In Elbert Norris's case, his sentence of incarceration was further reduced to 15 to 30 years, by operation of Penal Law § 70.30 (1) (e) (i).

In 2010, after the enactment of the Drug Law Reform Act (DLRA) of 2009 (L 2009, ch 56, part AAA, § 9, codified at CPL 440.46), both defendants sought resentencing to determinate sentences. The People consented to Tyrell Norris's determinate resentencing, but recommended consecutive terms of seven years' imprisonment on each of his three remaining sale convictions (with the conspiracy sentence running concurrently). In Elbert Norris's case, the People did not consent to determinate resentencing, and added, as an alternative argument, that if Elbert Norris were resentenced it should be to consecutive terms of imprisonment (with his conspiracy sentence running concurrently). In both cases, the People opposed running the sentences concurrently on the ground that Supreme Court had no authority, under CPL 440.46, to change the consecutive sentences to concurrent ones.

Supreme Court granted both defendants' motions for resentencing, but accepted the People's view that it had no authority to make the sentences run concurrently. The court offered to resentence Tyrell Norris to three consecutive terms of seven years' imprisonment, i.e., an aggregate sentence of 21 years, followed by postrelease supervision. Similarly, Supreme Court offered to resentence Elbert Norris to four consecutive terms of six years' imprisonment, i.e., an aggregate sentence of 24 years, plus postrelease supervision. Both defendants declined the specified offers, and appealed from the orders specifying the offered resentences.

In separate decisions, the Appellate Division affirmed Supreme Court's orders, and remitted the matters to Supreme Court. The Appellate Division held that, when resentencing a

defendant under CPL 440.46, a court is not authorized to alter multiple drug felony convictions that were originally imposed to run consecutively, so that they now run concurrently (*see People v Tyrell Norris*, 90 AD3d 788 [2d Dept 2011]; *People v Elbert Norris*, 90 AD3d 955 [2d Dept 2011]).

A Judge of this Court granted defendants leave to appeal to this Court, and we now affirm.

Under Penal Law § 70.25, a court is authorized to direct whether sentences run concurrently or consecutively only

“when multiple sentences of imprisonment are imposed on a person at the same time, or when a person who is subject to any undischarged term of imprisonment imposed at a previous time by a court of this state is sentenced to an additional term of imprisonment” (Penal Law § 70.25 [1]).

In *People v Acevedo* (14 NY3d 828 [2010]), we held that neither circumstance is present when a court imposes a determinate sentence under the 2004 DLRA. Such resentencing constitutes “alteration of the existing sentence as authorized by law” (*id.* at 831), rather than imposition of a new sentence or of an additional term of imprisonment. We based our analysis on the fact that “[t]he purpose of the DLRA is to ameliorate the harsh sentences required by the original Rockefeller Drug Law” (*id.*). Resentencing courts are not given the discretion to fashion new sentences or add terms of imprisonment, but are constrained to make an existing sentence determinate in the manner dictated by the DLRA.

The cases before us involve the 2009 DLRA, but for our purposes the analysis is the same as for the 2004 DLRA at issue in *Acevedo*. Defendants argue that *Acevedo* is distinguishable because *Acevedo* sought to have weapon possession sentences, which in themselves would not be subject to DLRA modification, run concurrently with his new, determinate sentence for first-degree criminal possession of a controlled substance. Defendants point out that, by contrast, the sentences they seek to run concurrently are *all* subject to the DLRA.

The distinction upon which defendants rely makes no difference under our analysis in *Acevedo*. Our rationale was based on the intent of the legislature to relieve the harshness of the original Rockefeller Drug Laws by introducing a system whereby existing sentence lengths are altered. Penal Law § 70.25 (1) is inapplicable to DLRA resentencing, regardless of whether the sentences that defendant seeks to be made concurrent include

sentences not subject to the DLRA, as in *Acevedo*, or, as here, are all subject to the DLRA.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur; Judge RIVERA taking no part.

In each case: Order affirmed, in a memorandum.

[986 NE2d 436, 963 NYS2d 618]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE RODRIGUEZ, Appellant.

Decided March 21, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 27, 2012. The Appellate Division affirmed a resentence of the Supreme Court, Kings County (James P. Sullivan, J.), which, pursuant to the Drug Law Reform Acts of 2004, 2005 and 2009, had resented defendant to three determinate terms of imprisonment of 15 years upon his convictions of criminal sale of a controlled substance in the first degree (three counts), with two of those terms to run concurrently with each other and the third term to run consecutively to the other two.

Upon his convictions of three counts of criminal sale of a controlled substance in the first degree, the defendant originally was sentenced to three determinate terms of imprisonment, with two of those terms of imprisonment to run concurrently with each other and the third term of imprisonment to run consecutively to the first two. The Appellate Division held that Supreme Court correctly concluded that it lacked authority under the Drug Law Reform Acts of 2004, 2005 and 2009 to alter defendant's sentence so that all three terms of imprisonment run concurrently with each other.

People v Rodriguez, 96 AD3d 1079, affirmed.

HEADNOTE

Crimes — Sentence — Drug Law Reform Act

An order of the Appellate Division, which affirmed defendant's resentence under the Drug Law Reform Acts of 2004, 2005 and 2009, concluding that Supreme Court lacked the authority to alter defendant's terms of imprisonment so that all of his terms would run concurrently with each other, was affirmed.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Ellen Fried of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (Victor Barall of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Norris*, 20 NY3d 1068 [2013] [decided today]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT. Taking no part: Judge RIVERA.

J.P. MORGAN SECURITIES INC. et al., Appellants, v VIGILANT INSURANCE COMPANY et al., Respondents.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 91 AD3d 226.

Motion by American Insurance Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

Chief Judge LIPPMAN taking no part.

In the Matter of VILMA LANCASTER et al., Appellants, v INCORPORATED VILLAGE OF FREEPORT et al., Respondents. (Proceeding No. 1.)

In the Matter of WILLIAM F. GLACKEN et al., Appellants, v INCORPORATED VILLAGE OF FREEPORT et al., Respondents. (Proceeding No. 2.)

Submitted February 11, 2013; decided March 21, 2013

Reported below, 92 AD3d 885.

Motion to dismiss appeal denied.

METROPOLITAN TAXICAB BOARD OF TRADE et al., Respondents, v MICHAEL R. BLOOMBERG, as Mayor of the City of New York, et al., Appellants. LIVERY ROUNDTABLE, INC., et al., Intervenor-Respondents; LIVERY BASE OWNERS, INC., et al., Intervenor-Appellants.

TAXICAB SERVICE ASSOCIATION et al., Respondents, v STATE OF NEW YORK et al., Appellants. LIVERY BASE OWNERS, INC., et al., Intervenor-Appellants.

GREATER NEW YORK TAXI ASSOCIATION et al., Respondents, v STATE OF NEW YORK et al., Appellants. LIVERY BASE OWNERS, INC., et al., Intervenor-Appellants.

Submitted March 4, 2013; decided March 21, 2013

Motion by Office of the Manhattan Borough President for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

SEGUNDO ONCE et al., Respondents, v SERVICE CENTER OF NEW YORK et al., Defendants, and 218 W 72ND ST. REALTY CORP. et al., Appellants.

Submitted December 10, 2012; decided March 21, 2013

Reported below, 96 AD3d 483.

Motion for leave to appeal dismissed upon the ground that appellants have failed to show that the order sought to be appealed from is final as required by Rules of the Court of Appeals (22 NYCRR) § 500.22 (b) (3).

STEVE PAPPAS et al., Respondents, v STEVE TZOLIS, Appellant, et al., Defendant.

Submitted January 14, 2013; decided March 21, 2013

Reported below, 87 AD3d 889.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements (*see* 20 NY3d 228 [2012]).

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY BUCHANAN, Also Known as SCIENCE, Also Known as SCIENTIFIC, Appellant.

Submitted February 19, 2013; decided March 21, 2013

Reported below, 95 AD3d 1433.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ANGEL CINTRON, Respondent.

Submitted March 4, 2013; decided March 21, 2013

Reported below, 99 AD3d 439.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD DOBMEIER, Appellant.

Submitted March 4, 2013; decided March 21, 2013

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHARMELLE JOHNSON, Appellant.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 99 AD3d 591.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SRISDI
KIDKARNDEE, Appellant.

Submitted March 11, 2013; decided March 21, 2013

Reported below, 2012 NY Slip Op 87645(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SELBIN
MARTINEZ, Appellant.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 100 AD3d 537.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAFEEZ
ODOFIN, Appellant.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 102 AD3d 551.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EN-
RIQUE RIVERA, Appellant.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 100 AD3d 658.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO RODRIGUEZ, Appellant.

Submitted February 19, 2013; decided March 21, 2013

Reported below, 102 AD3d 457.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALIAS STONE, Appellant.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 98 AD3d 910.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TALIAH TAYLOR, Appellant.

Submitted March 18, 2013; decided March 21, 2013

Reported below, 98 AD3d 593.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CONRADO PONS, Appellant, v WILLIAM A. LEE, Respondent.

Submitted January 7, 2013; decided March 21, 2013

Reported below, 2012 NY Slip Op 78923(U).

Motion for reargument denied [*see* 20 NY3d 905 (2012)].

Judge RIVERA taking no part.

In the Matter of NORMAN E. ROTH et al. Appellants, v CITY OF SYRACUSE et al., Respondents. (And Other Proceedings.)

Submitted March 18, 2013; decided March 21, 2013

Reported below, 78 AD3d 1590.

Motion by New York State Conference of Mayors and Municipal Officials et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

[987 NE2d 631, 965 NYS2d 71]

KEITH ORSI, an Infant, by His Parents and Natural Guardians,
LISA ORSI and Another, et al., Appellants, v SUSAN HARALABATOS, M.D., et al., Respondents, et al., Defendants.

Argued February 13, 2013; decided March 26, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 22, 2011. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, Suffolk County (Patrick A. Sweeney, J.), as had denied the motion of defendants Susan Haralabatos and Stony Brook Orthopaedic Associates for summary judgment dismissing the complaint insofar as asserted against them, and (2) granted defendants' motion.

Orsi v Haralabatos, 89 AD3d 997, reversed.

HEADNOTE

Physicians and Surgeons — Malpractice — Proximate Cause

In a medical malpractice action, the Appellate Division correctly concluded that there were issues of fact as to whether defendants departed from the applicable standard of care, but erred in granting summary judgment on the issue of proximate cause. Although the issue was preserved for review by being mentioned in an affirmation of counsel, it was not addressed in the experts' affidavits that the moving defendants submitted in support of their summary judgment motion. Those defendants thus failed to meet their initial burden of showing that any departure from the standard of care was not the proximate cause of plaintiff's injury.

APPEARANCES OF COUNSEL

Silberstein, Awad & Miklos, P.C., Garden City (*Dana E. Heitz* and *Joseph P. Awad* of counsel), for appellants.

Phillips Lytle LLP, New York City (*Eric M. Kraus* and *Craig R. Bucki* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and so much of the motion of defendants Haralabatos and Stony Brook Orthopaedic Associates as seeks summary judgment dismissing the medical malpractice cause of action against them should be denied.

We agree with the Appellate Division that there are issues of fact as to whether Haralabatos and Stony Brook departed from the applicable standard of care. The Appellate Division erred, however, in granting summary judgment on the issue of proximate cause. Although the issue was preserved for review by being mentioned in an affirmation of counsel, it was not addressed in the experts' affidavits that Haralabatos and Stony Brook submitted in support of their summary judgment motion. These defendants thus failed to meet their initial burden of showing that any departure from the standard of care was not the proximate cause of plaintiff Keith Orsi's osteomyelitis.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur.

Order reversed, with costs, and so much of the motion of defendants Haralabatos and Stony Brook Orthopaedic Associates as seeks summary judgment dismissing the medical malpractice cause of action against them denied, in a memorandum.

[988 NE2d 478, 965 NYS2d 743]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AKIEME NESBITT, Appellant.

Argued February 5, 2013; decided March 26, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 3, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Carol Berkman, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree (two counts).

People v Nesbitt, 89 AD3d 447, reversed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Failure to Vigorously Contest Charge

In a prosecution including charges of assault in the first degree, defense counsel's failure to request a lesser included offense charge, or to vigorously contest the first-degree assault charges, overlooked a good-faith basis for an argument that the injuries the victim received did not result in serious and protracted, or serious and permanent, disfigurement and rendered his assistance to defendant ineffective. While claims of ineffective assistance of counsel based on strategic trial choices must usually be adjudicated in posttrial motions, so that evidence may be presented to show the reasons for counsel's actions, where counsel expressed his belief that his client had no defense to the charges of assault in the first degree in plain language on the record, the record permitted the Court of Appeals to decide the claim on direct appeal. Counsel's belief that his client was without a defense to first degree assault was mistaken. The record afforded a good-faith basis for an argument that the injuries the victim received did not result in serious and protracted, or serious and permanent, disfigurement (*see* Penal Law §§ 120.10 [1], [2]; 10.00 [10]) and the meaning of these statutory terms was an open issue.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (David J. Klem of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Patricia Curran and Grace Vee of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Defendant's trial counsel informed the court (out of the jury's presence, but on the record) that he believed his client had no defense to the counts of the indictment charging assault in the first degree. As a result, counsel neither requested the submission of second degree assault as a lesser included offense nor made any serious effort to persuade the jury not to convict defendant of first degree assault. In his closing argument, counsel asked the jury to acquit defendant of attempted murder, but virtually invited a conviction for first degree assault. After saying: "on that particular charge [attempted murder], I'm going to ask that you actually check off the box that says 'Not Guilty,'" he added, as to the assault charges: "Make your decision . . . I'm sure whatever it is, it will be the right decision."

In many cases, there may be strategic reasons for a lawyer's choice not to request a lesser included offense charge, or to contest one charge vigorously while essentially ignoring others.

For that reason, claims of ineffective assistance based on such choices must usually be adjudicated in posttrial motions, so that evidence may be presented to show why counsel acted as he did. But this case, where the lawyer explained his thinking in plain language on the record, is an exception: The record permits us to decide the claim on direct appeal.

Counsel's belief that his client was without a defense to first degree assault was mistaken. The record affords a good-faith basis for an argument that the injuries the victim received did not result in serious and protracted, or serious and permanent, disfigurement (*see* Penal Law §§ 120.10 [1], [2]; 10.00 [10]). Our decision in *People v McKinnon* (15 NY3d 311 [2010]), though rendered after defendant's trial, shows that the meaning of these statutory terms was an open issue. We conclude that counsel's error in overlooking that issue rendered his assistance to defendant ineffective (*see People v Benevento*, 91 NY2d 708 [1998]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge RIVERA taking no part.

Order reversed and a new trial ordered, in a memorandum.

[987 NE2d 631, 965 NYS2d 71]

KASOWITZ, BENSON, TORRES & FRIEDMAN, LLP, Appellant, v
DUANE READE et al., Respondents.

Decided March 26, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 7, 2012. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Paul Wooten, J.; op 33 Misc 3d 1209[A], 2011 NY Slip Op 51821[U] [2011]), which had dismissed the complaint.

Plaintiff law firm asserted that it was entitled to a success fee in addition to the flat \$1 million fee it had already received in connection with its representation of defendant. The Appellate Division concluded that three emails exchanged by the parties constituted an unambiguous, integrated fee agreement, and that plaintiff was not entitled to a success fee under the terms of the fee agreement.

Kasowitz, Benson, Torres & Friedman, LLP v Duane Reade, 98 AD3d 403, affirmed.

HEADNOTE

Attorney and Client — Compensation

In an action in which plaintiff law firm alleged that it was entitled to an additional fee from defendant client, courts below did not err as a matter of law in dismissing the complaint.

APPEARANCES OF COUNSEL

Kasowitz, Benson, Torres & Friedman, LLP, New York City (Aaron H. Marks of counsel), for appellant.

McKenna Long & Aldridge, LLP, New York City (Charles E. Dorkey, III, of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The courts below did not err as a matter of law in dismissing the complaint (*see Innophos, Inc. v Rhodia, S.A.*, 10 NY3d 25, 30 [2008]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

In the Matter of SUSAN R. BARNEY, Respondent, v DENNIS G. VAN AUKEN, Appellant.

Submitted February 11, 2013; decided March 26, 2013

Reported below, 97 AD3d 959.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 856 (2013)].

Judge RIVERA taking no part.

KATHARINE BISCONE, Appellant, v JETBLUE AIRWAYS CORPORATION, Respondent, et al., Defendants.

Decided March 26, 2013

Reported below, 101 AD3d 1068.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

KATHARINE BISCONE, Appellant, v JETBLUE AIRWAYS CORPORATION, Respondent, et al., Defendants.

Decided March 26, 2013

Reported below, 103 AD3d 158.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

D.T., Also Known as D.T.-R., Individually and by ROBERTO RODRIGUEZ, as Commissioner of Social Services of Ulster County, Appellant, v IRWIN RICH, Defendant, and SAINT CABBINI HOME, INC., Respondent.

Submitted February 11, 2013; decided March 26, 2013

Reported below, 100 AD3d 1300.

Motion to dismiss appeal denied.

In the Matter of RIVEN FLAMENBAUM, Deceased. VORDERASIATISCHES MUSEUM, Respondent; HANNAH K. FLAMENBAUM, Appellant; ISRAEL FLAMENBAUM, Objectant-Respondent.

Submitted March 18, 2013; decided March 26, 2013

Reported below, 95 AD3d 1318.

Motion by Archaeological Institute of America et al. for leave to file a supplemental amici curiae brief on the appeal herein denied.

SALVATORE GUERRERA, Respondent, v ROBERT J. ZYSK, Appellant.

Submitted February 11, 2013; decided March 26, 2013

Reported below, 2012 NY Slip Op 94759(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of AMY R. GURVEY (Admitted as AMY REBECCA WEISSBROD), an Attorney and Counselor-at-Law, Appellant.
DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Decided March 26, 2013

Reported below, 102 AD3d 197.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of KEISHA GABRIEL S., Respondent, v ALPHONSO S., Appellant. (And Another Action.)

Submitted December 31, 2012; decided March 26, 2013

Reported below, 100 AD3d 449.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the order of Supreme Court, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MELVIN LEE, Appellant, v ERIE COUNTY DISTRICT ATTORNEY'S OFFICE, Respondent.

Submitted February 11, 2013; decided March 26, 2013

Reported below, 2012 NY Slip Op 88784(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JOSEPH MURRAY, Appellant, v SUZANNE MURRAY, Respondent.

Submitted February 4, 2013; decided March 26, 2013

Reported below, 101 AD3d 1320.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ORANGE COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of MISTY F.-R., Respondent, v GERMEL Y., Appellant. (And Another Proceeding.)

Submitted February 11, 2013; decided March 26, 2013

Reported below, 101 AD3d 1019.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v GEORGE OLIVERAS, Respondent.

Submitted March 18, 2013; decided March 26, 2013

Reported below, 90 AD3d 563.

Motion by Innocence Network for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIKAL SMITH, Appellant.

Submitted January 7, 2013; decided March 26, 2013

Reported below, 87 AD3d 920.

Motion to strike appellant's appendix denied without prejudice to the serving and filing of a supplemental appendix by respondent on or before May 10, 2013.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL AZIZ ZARIF SHABAZZ, Also Known as MICHAEL HURLEY, Appellant, v JEROME J. RICHARDS, Acting Judge of Franklin County Court, et al., Respondents.

Submitted February 11, 2013; decided March 26, 2013

Reported below, 2012 NY Slip Op 66089(U).

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 983 (2012)].

Judge RIVERA taking no part.

[987 NE2d 636, 965 NYS2d 75]

KENNETH J. HECKER, Appellant, v STATE OF NEW YORK, Respondent.

Argued February 7, 2013; decided March 28, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 10, 2012. The Appellate Division, with two Justices dissenting, affirmed an order of the Court of Claims (Renée Forgens Minarik, J.), which had granted a motion by defendant for summary judgment, dismissed the claim, and denied claimant's cross motion for partial summary judgment.

Hecker v State of New York, 92 AD3d 1261, affirmed.

HEADNOTE

Appeal — Matters Reviewable — Issue Not Preserved

The Court of Appeals lacked power to review either the issue as to whether the area in which plaintiff suffered his injury was a “floor, passageway [or] walkway” within the meaning of 12 NYCRR 23-1.7 (d), which was not preserved at the trial court, or the Appellate Division's exercise of its interests of justice jurisdiction to reach that issue.

APPEARANCES OF COUNSEL

Tones Vaisey, PLLC, Rochester (*Jeffrey A. Vaisey* of counsel), for appellant.

Kenney Shelton Liptak Nowak LLP, Buffalo (*Richard C. Brister* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

The issue decided by the Appellate Division—whether the area in which plaintiff suffered his injury was a “floor, passageway [or] walkway” within the meaning of 12 NYCRR 23-1.7 (d)—was not preserved in the Court of Claims, and the Appellate Division's ruling must be deemed an exercise of its interests of justice jurisdiction. We have no power to review either the Appellate Division's exercise of its discretion to reach that issue, or the issue itself (*Elezaj v Carlin Constr. Co.*, 89 NY2d

992, 994-995 [1997]; *Brown v City of New York*, 60 NY2d 893 [1983]; *Feinberg v Saks & Co.*, 56 NY2d 206, 210-211 [1982]; *Domino v Mercurio*, 13 NY2d 922, 923 [1963]).

SMITH, J. (concurring). The rule the Court's memorandum opinion relies on is supported by precedent, and I acquiesce, on constraint of that precedent, in the application of the rule to this case. I add this concurrence to explain why I think that the rule is a bad one, and that we should be prepared to reconsider it in a future case.

The decisions cited in the memorandum opinion hold that, where the Appellate Division chooses, in the exercise of its interests of justice jurisdiction, to decide an issue of law that was not preserved in the trial court, we may not review either (1) the Appellate Division's exercise of its discretion in deciding to reach the issue or (2) the issue itself. The first of these restrictions on our power follows from CPLR 5501 (b), which says that, with exceptions not relevant here, "[t]he court of appeals shall review questions of law only." The second restriction does not follow from any statute, does not make sense, and sometimes—as in this case—rewards a party for failing to preserve a legal issue.

The question of the applicability of 12 NYCRR 23-1.7 (d) to the area where plaintiff suffered his injuries is an issue of law of the sort that CPLR 5501 (b) authorizes us to review. The Appellate Division's unreviewable, discretionary choice to reach the issue does not make the issue itself any less one of law. Nor can I imagine any common sense reason why, if the Appellate Division erred in deciding that issue, we should be powerless to correct the error. None of the cases cited in the memorandum opinion, and no other authority of which I am aware, offers any justification, either in statutory language or in policy, for the conclusion that a legal issue in a civil case is made unreviewable here by the failure to preserve it in the trial court, even when the Appellate Division has chosen to review it.

That conclusion is, no doubt, thought to be a corollary of the fiction that we are jurisdictionally barred from reviewing unpreserved issues—a fiction that, as I have explained elsewhere, we have occasionally stated but do not adhere to with any consistency (see *Misicki v Caradonna*, 12 NY3d 511, 524-526 [2009, Smith, J., dissenting]). The underlying assumption seems to be that unpreserved questions of law are not questions of law at all, but I have found no civil case in which we have made that assumption explicit. We have occasionally said in criminal cases that unpreserved issues are not issues of law (e.g. *People v*

Knowles, 88 NY2d 763, 768 n [1996])—a misreading, as Judge Pigott explained in a recent dissenting opinion, of a statute limited to criminal cases, CPL 470.05 (2) (*see People v Riley*, 19 NY3d 944, 947-949 [2012]). In the civil area, there is not even a misread statute to support the notion that unpreserved issues are somehow not “legal” ones.

Whatever its rationale may be, the rule we follow today produces a bizarre result. It was defendant, the State of New York, that failed to preserve the section 23-1.7 (d) issue. The Appellate Division, exercising its discretion to forgive defendant’s oversight, reached the question anyway, decided that the section did not apply, and dismissed the claim. And now in this Court, claimant loses the case—whether he is right or wrong on the merits—because of *defendant’s* neglect. This result is so counter-intuitive—and the cases that we find to compel that result so little known—that the parties not only failed to anticipate it, but assumed the rule to be the opposite. The preservation question is hardly mentioned in the briefs, but when it was raised in oral argument, defendant asserted that the issue was preserved, and claimant said that it was not—i.e., each party took the position that was to the advantage of the other. Counsel will understandably scratch their heads when they read today’s decision.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge SMITH in a separate opinion in which Judge PIGOTT concurs; Judge RIVERA taking no part.

Order affirmed, with costs, in a memorandum.

[988 NE2d 480, 965 NYS2d 744]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AUSTIN CORNELIUS, Appellant.

Argued February 6, 2013; decided March 28, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 22, 2011. The Appellate Division modified, as a matter of discretion

in the interest of justice, a judgment of the Supreme Court, New York County (Ronald A. Zweibel, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, and sentenced him, as a second felony offender, to a term of 10 years. The modification consisted of reducing the sentence to a term of seven years. The Appellate Division affirmed the judgment as modified.

People v Cornelius, 89 AD3d 595, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Admission of Trespass Notices in Burglary Prosecution

In a burglary prosecution in which defendant was charged with unlawfully entering a chain store pharmacy with the intent to steal physical property and causing injury to a loss prevention officer, the admission into evidence of two 2004 trespass notices, prepared and issued by non-testifying witnesses, that had allegedly been issued to defendant instructing him to stay out of the chain's stores and warning him that he could be arrested for trespass should he enter one of those stores, was harmless beyond a reasonable doubt. The People's main witness, the loss prevention officer, testified that he had personally issued defendant a trespass notice in 2008, just seven months before the crime charged, and had told defendant that his privilege to enter all of the chain's stores had been revoked and that defendant could be arrested should he reenter. The 2008 trespass notice was also admitted in evidence along with three photographs taken of defendant at the time the notice was issued. Accordingly, the admission of the 2004 notices did not influence the jury's verdict.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (*Margaret E. Knight*, *Anna Roberts* and *Richard M. Greenberg* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Allen J. Vickey* and *David M. Cohn* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

After a jury trial, defendant was convicted of burglary in the second degree (Penal Law § 140.25 [1] [b]) for unlawfully entering a Duane Reade pharmacy in January 2009 with the intent to steal property and causing physical injury to a loss prevention officer. Prior to trial, defendant objected to the admission of two trespass notices—prepared and issued by non-testifying witnesses—that had allegedly been issued to defendant by Duane Reade employees in 2004. As relevant here, the top portion of the notices contained the following statements:

“I, Austin Cornelius, understand that my privilege to enter all Duane Reade stores is revoked. I was told that if I re-enter any of these stores, I can be arrested for the crime of Trespass, pursuant to section 140.10 of the New York State Penal Law and any other appropriate criminal charge.”

Supreme Court allowed the notices in evidence over defendant’s objection that they constituted “testimonial” evidence and that their admission violated his right of confrontation under *Crawford v Washington* (541 US 36 [2004]). The Appellate Division reduced defendant’s sentence in the interest of justice but otherwise affirmed the judgment of conviction (89 AD3d 595 [1st Dept 2011]).

Assuming, without deciding, that the contents of the 2004 notices were “testimonial,” their admission in this case was harmless beyond a reasonable doubt. The People’s main witness, the loss prevention officer, testified that he had personally issued defendant a trespass notice in July 2008, just seven months before the incident in question, and had told defendant that his privilege to enter all Duane Reade stores had been revoked and that defendant could be arrested should he reenter. The 2008 trespass notice was also admitted in evidence along with three photographs taken of defendant at the time the notice was issued. In light of this proof, we are satisfied beyond a reasonable doubt that the admission of the 2004 notices did not influence the jury’s verdict.

Defendant’s remaining contentions are without merit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and FIGOTT concur; Judge RIVERA taking no part.

Order affirmed, in a memorandum.

In the Matter of RALPH T. BYRD, a Suspended Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Decided March 28, 2013

Reported below, 102 AD3d 90.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

CITY OF NEW YORK, Respondent, v TRANSPORTAZUMAH LLC, Appellant.

Submitted February 4, 2013; decided March 28, 2013

Reported below, 101 AD3d 465.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the October 2011 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of COUNTY OF NASSAU et al., Appellants, v STATE OF NEW YORK et al., Respondents, and NEW YORK STATE BOARD OF ELECTIONS et al., Respondents.

Submitted December 24, 2012; decided March 28, 2013

Reported below, 100 AD3d 1052.

Motion, insofar as made by Nassau County Board of Elections and William T. Biamonte, for leave to appeal from so much of the Appellate Division order as affirmed the Supreme Court judgment, dismissed upon the ground that those parties, having not appealed from the judgment to the Appellate Division, may not appeal to the Court of Appeals from that part of the Appellate Division order affirming the judgment; motion, insofar as made by County of Nassau and John A. DeGrace, for leave to appeal from so much of the Appellate Division order as affirmed the Supreme Court judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order do not finally determine the proceeding within the meaning of the Constitution.

In the Matter of FORREST S.-R., an Infant. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; SHIRLEY X.S., Appellant. FORREST R., Nonparty Respondent.

Submitted January 28, 2013; decided March 28, 2013

Reported below, 101 AD3d 734.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ALEXANDRA GOMEZ-JIMENEZ et al., Appellants, v NEW YORK LAW SCHOOL, Respondent, et al., Defendants.

Submitted February 18, 2013; decided March 28, 2013

Reported below, 103 AD3d 13.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ and PIGOTT. Judge SMITH dissenting and voting to grant leave to appeal.

Taking no part: Judge RIVERA.

In the Matter of the Claim of GEORGIANA H. JUNGELS, Appellant, v SUNY BUFFALO, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted January 14, 2013; decided March 28, 2013

Reported below, 2012 NY Slip Op 79998(U); 2012 NY Slip Op 70753(U).

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 915 (2012)].

Judge RIVERA taking no part.

In the Matter of KEIJONTE W. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; TAMARRA W., Appellant, et al., Respondent. (And Four Other Proceedings.)

Decided March 28, 2013

Reported below, 101 AD3d 890.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERNEST DAVIS, Appellant.

Submitted February 4, 2013; decided March 28, 2013

Reported below, 38 Misc 3d 127(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v GASPARI
GUTIERREZ-LUCERO, Respondent.

Submitted February 11, 2013; decided March 28, 2013

Reported below, 103 AD3d 89.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD
ODUM, Appellant.

Submitted January 28, 2013; decided March 28, 2013

Reported below, 101 AD3d 1693.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered in an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of MARVIN POLLACK, Appellant, v PETER FORMICA,
Respondent. (And Another Proceeding.)

Submitted February 4, 2013; decided March 28, 2013

Reported below, 2012 NY Slip Op 79844(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.
